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**CITY OF GALLATIN  
COUNCIL MEETING**

**June 16, 2020**

**6:00 pm**

**ELECTRONIC MEETING**

Pursuant to Governor Lee's Executive Order No. 16 and No. 34 and the need to limit the community spread of COVID-19, the June 02, 2020 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin.

Join the Zoom Meeting at <https://us02web.zoom.us/j/83022895465> , dial +1 470 381 2552 or +1 470 250 9358, and enter Webinar ID: 830 2289 5465.

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- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Vice Mayor Camp – Fann – Fennell – Hayes – Love – Overton
- Approval of Minutes: May 19, 2020 City Council Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

**AGENDA**

1. **Public Hearing Resolution No. R2006-30** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the annexation of five (5) parcels totaling 524.14 +/- acres (Tax Map//Parcel – 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike, and providing for an effective date. **(Councilwoman Love)**
2. **Public Hearing Resolution No. R2006-31** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing five (5) parcels totaling 524.14 +/- acres (Tax Map//Parcel – 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike, into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Love)**
3. **Public Hearing Ordinance No. O2006-25** An ordinance of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres, located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilwoman Love)**

4. **Second Reading Ordinance No. 02005-22** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 0.67 +/- acre lot from the R-40 Low Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for the Montgomery Office, located south of Nashville Pike and east of Lakeshore Drive; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Overton)**
5. **Second Reading Ordinance No. 02005-23** Ordinance appropriating \$10,000 for Census Rapid Response Grant **(Vice Mayor Camp)**
6. **Second Reading Ordinance No. 02006-24** Ordinance appropriating \$15,510 for pooled city hall vehicle **(Councilman Alexander)**
7. **Resolution No. R2006-30** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the annexation of five (5) parcels totaling 524.14 +/- acres (Tax Map//Parcel – 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike, and providing for an effective date. **(Councilwoman Love)**
8. **Resolution No. R2006-31** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing five (5) parcels totaling 524.14 +/- acres (Tax Map//Parcel – 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike, into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Love)**
9. **Second Reading Ordinance No. 02006-25** An ordinance of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres, located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilwoman Love)**
10. **Resolution No. R2006-32** A resolution amending the Urban Growth Boundary for the City of Gallatin and amending the Growth Plan for Sumner County Tennessee, by adding a 10.51 +/- acre parcel, a 0.24 +/- acre portion of a parcel, a 0.04 +/- acre portion of the Old Hickory Lake Reservation and a 9.33 +/- acre portion of Big Station Camp Boulevard right-of-way to the Gallatin Urban Growth Boundary **(Councilman Hayes)**
11. **Resolution No. R2006-33** Resolution authorizing Mayor to execute Big Station Camp Boulevard Corridor Transportation Improvements Pro-Rata Share Agreement with TNHomesites.com and Tenn Properties Newmans Crossing GP **(Councilman Hayes)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

# City of Gallatin

## City Council Electronic Meeting

May 19, 2020

Pursuant to Governor Lee's Executive Order #16 and the need to limit the community spread of COVID-19, the May 19, 2020 Gallatin City Council Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meeting were available on the City's website.

Mayor Brown called the meeting to order at 6:03 P.M.

Councilman John D. Alexander led the opening prayer.

Mayor Brown called for an attendance roll call.

City Recorder Connie Kittrell called the roll and the following were present.

### Council

|                              |         |
|------------------------------|---------|
| Vice Mayor Steve Camp        | Present |
| Councilman John D. Alexander | Present |
| Councilman Steve Fann        | Present |
| Councilman Shawn Fennell     | Present |
| Councilman Craig Hayes       | Present |
| Councilwoman Lynda Love      | Present |
| Councilman Jimmy Overton     | Present |

### Department Heads/Others Present

|                                       |                                      |
|---------------------------------------|--------------------------------------|
| Rachel Nichols, Finance Director      | Nick Tuttle, City Engineer           |
| Susan High-McAuley, City Attorney     | Lori Smiley, IT Director             |
| Don Bandy, Police Chief               | Bill McCord, City Planner            |
| Chuck Stuart, Building Codes Official | Connie Kittrell, City Recorder       |
| Victor Williams, Fire Chief           | Zach Wilkinson, Public Works Dir.    |
| Connie Flood, HR Director             | David Gregory, Public Utilities Dir. |
| James Fenton, EDA Director            | Jeff Hentschel, Comm. Dir.           |
| David Brown, Parks and Rec. Dir.      |                                      |

Mayor read the instructions for the electronic meeting.

Councilman Fennell made motion to allow the meeting electronically; Councilman Overton seconded.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

#### **Approval of Minutes**

Mayor Brown presented the April 7, 2020 and May 5, 2020 City Council minutes for approval.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

#### **Public Recognition on Agenda Related Items**

Communications Director Jeff Hentschel stated the following are logged in for public recognition on agenda related items.



City Council Minutes  
May 19, 2020

- NeggActive - Pascal Jouvence of 1335 Long Hollow Pike commented on the Woolhawk Project.
- Michelle Jouvence of 1335 Long Hollow Pike had several comments about the budget and tax rate.
- Caller #435 said they would comment during non-agenda related items.
- Caller #718 made no comment.
- Caller #512 made no comment.
- Caller #250 Acer made no comment.
- Andy Leath said he available for any questions for the projects he has on the agenda.
- Bo Campbell made no comment.
- Charles Bone made no comment.
- E.K. Stephens made no comment.
- Rosemary Bates made no comment.
- SLS made no comment.
- WTVF made no comment.

Mayor's Comments

- Mayor said she was going to extend the State of Emergency one more week.

**Agenda**

**1. Ordinance #O2004-15 – Second Reading**

Vice Mayor Camp presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 (+/-) acre parcel, from the A-Agricultural Residential Zoning District to the R15 Medium Density Residential Zoning District, located east of Highway 109 and south of Odoms Bend Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Vice Mayor Camp made motion to approve; Councilman Overton seconded.

Council discussed.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | No  |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 6 ayes and 1 nay.

**2. Ordinance #O2005-17 – Second Reading**

Councilman Alexander presented this ordinance to provide revenue for the City of Gallatin, Tennessee for municipal purposes for the 2020 tax year and the 2021 fiscal year.

Councilman Alexander made motion to approve; Councilman Overton seconded.

Mayor commented on the certified tax rate, pending appeals and billing increases.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

**3. Ordinance #O2005-18 – Second Reading**

Councilman Overton presented this ordinance appropriating funds in the amount of \$5,000 for Rose Mont.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |           |
|----------------------|-----------|
| Vice Mayor Camp      | Abstained |
| Councilman Alexander | Yes       |
| Councilman Fann      | Yes       |
| Councilman Fennell   | Yes       |
| Councilman Hayes     | Yes       |
| Councilwoman Love    | Yes       |
| Councilman Overton   | Yes       |

Motion carried with 6 ayes, 0 nays and 1 abstention.

Vice Mayor Camp and Councilwoman Love disclosed they serve on the Rose Mont board.

**4. Ordinance #O2005-19 – Second Reading**

Councilman Hayes presented this ordinance of the City of Gallatin, Tennessee, adopting the annual budget for the fiscal year beginning July 1, 2020 through June 30, 2021.

Councilman Hayes made motion to approve; Councilwoman Love seconded.

Mayor provided a summary of the proposed budget.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

Vice Mayor Camp and Councilman Overton disclosed they serve on some of the non-profit boards.

5. **Ordinance #O2005-20 – First Reading**

Councilman Fann presented this ordinance appropriating \$129,600 received from the State of Tennessee for training supplements.

Councilman Fann made motion to approve; Councilwoman Love second.

Council discussed.

Fire Chief Victor Williams and Police Chief Don Bandy explained the supplements specific to their departments.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

**6. Ordinance #O2005-21 – First Reading**

Councilman Fennell presented this ordinance waiving tap fees on behalf of Habitat for Humanity.

Councilman Fennell made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

**7. Ordinance #O2005-22 – First Reading**

Councilman Overton presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 0.67 (+/-) acre lot from the R-40 Low Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for the Montgomery Office, located south of Nashville Pike and east of Lakeshore Drive; authorizing the revision to the indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

**8. Resolution #R2005-24**

Councilman Alexander presented this resolution to approve Payment in Lieu of Tax (PILOT) Program Economic Development Incentive for Project Woolhawk.

Councilman Alexander made motion to approve; Councilman Overton seconded.

There was discussion about a Fire Hall.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

**9. Resolution #R2005-25**

Vice Mayor Camp presented this resolution to approve Lease Agreement & Regulations City/Lessor – Gallatin Chamber of Commerce Farmer’s Market – West Franklin Street.

Vice Mayor Camp made motion to approve; Councilwoman Love seconded.

Council discussed.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |

|                    |     |
|--------------------|-----|
| Councilwoman Love  | Yes |
| Councilman Overton | Yes |

Motion carried with 7 ayes and 0 nays.

Councilman Overton disclosed he serves on the Chamber board.

#### **10. Resolution #R2005-27**

Councilwoman Love presented this resolution authorizing the Mayor to sign a Development Agreement with Woolhawk LLC.

Councilwoman Love made motion to approve; Councilman Overton seconded.

Mayor called for a roll call vote by City Recorder Connie Kittrell.

|                      |     |
|----------------------|-----|
| Vice Mayor Camp      | Yes |
| Councilman Alexander | Yes |
| Councilman Fann      | Yes |
| Councilman Fennell   | Yes |
| Councilman Hayes     | Yes |
| Councilwoman Love    | Yes |
| Councilman Overton   | Yes |

Motion carried with 7 ayes and 0 nays.

#### **Other Business**

Mayor opened other business.

- Councilman Alexander asked for an update on Gray Street.

Public Works Director Zach Wilkinson stated work continues and should be completed in a couple of months.

Mr. Wilkinson added that work on the South Water railroad should start sometime around the first of June.

- Councilman Fann asked who was responsible for mowing and maintaining the trees at the intersection at Nashville Pike and Kroger.

Council discussed.

Public Works Director Zach Wilkinson stated he had some ideas for this area.

- Councilman Alexander asked about the crosswalk signs.

Options/alternate signage for the crosswalk was discussed.

With no one else wishing to speak Mayor closed other business.

### **Public Recognition on Non-Agenda Related Items**

Mayor opened public recognition on non-agenda related items.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

- Caller #435 – Charles Brinkley of Alpha Drive spoke about the COVID -19 pandemic and asked if Gallatin/Sumner County is doing enough, enforcement, and masks.

Mayor gave an update on the pandemic.

- Pascal Jouvence said the workers are still working and he thanked Police Chief Bandy for his help.
- Caller #718 made no comment.
- Caller #240 – Frank Marchese of Harris Lane stated the workers are still working at Liberty Creek and asked what measures are being taken to stop them. Mr. Marchese thanked the efforts of the police department.

Building Codes Official Chuck Stuart said there isn't much to do other than what's being done and writing a ticket.

Council discussed.

- Caller #314 made no comment.



With no one else wishing to speak Mayor closed public recognition on non-agenda related items.

Adjourn

Mayor Brown adjourned the meeting at 7:16 P.M. without objection.

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Mayor Paige Brown

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City Recorder Connie Kittrell

**RESOLUTION NO. R2006-30**

**A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF FIVE (5) PARCELS TOTALING 524.14 +/- ACRES (TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND 111//118.00), LOCATED SOUTH OF ROUNDTREE DRIVE, WEST OF BRIGHTS LANE, AND NORTH OF HARTSVILLE PIKE, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the City of Gallatin received a petition by property owners for the annexation of five (5) parcels totaling 524.14 +/- acres contiguous to the City; and

**WHEREAS**, the area proposed for annexation to the City of Gallatin is substantially contiguous to the corporate limits to the City and within the City's Urban Growth Boundary; and

**WHEREAS**, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, has reviewed and recommended approval of this Plan of Service, as contained in GMRPC Resolution No. 2020-077.

**NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:**

**SECTION 1.** Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

**SECTION 2.** This Resolution shall be effective upon adoption, the public welfare requiring such.

**IT IS SO ORDERED.**

PRESENT AND VOTING:

AYE:

NAY:

DATED:

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MAYOR PAIGE BROWN

ATTEST:

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CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

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SUSAN HIGH-MCAULEY  
CITY ATTORNEY

Exhibit 'A' – Legal Descriptions of annexed territory  
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

**Tax Map 111//Parcel 002.00 (Argent Trust) – 372.85 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located east of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right of way of line of State Highway 25 (Hartsville Pike), having a right of way that varies, said iron rod being the southwest corner of The Aileen Hoffer Revocable Trust, of record in Book 3241, Page 747, Register's Office for Sumner County, Tennessee;

THENCE, leaving the Aileen Hoffer Revocable Trust along the right of way of State Highway 25 (Hartsville Pike) with a curve to the right having a central angle of  $10^{\circ} 27' 46''$ , a radius of 2,013.48 feet, a tangent of 184.35 feet, and a chord of  $S 82^{\circ} 03' 22'' W$ , 367.17 feet for an arc length of 367.68 feet to the easterly line of the Cumberland Electric Membership Corporation, of record in Record Book 3446, Page 43, R.O.S.C.;

THENCE, leaving said right of way line with the easterly line of Cumberland Electric Membership Corporation,  $N 31^{\circ} 13' 25'' W$ , 344.50 feet to an old iron rod being a common corner with Walter H. Stephenson, II, of record in Record Book 3432, Page 342, R.O.S.C.;

THENCE, leaving Cumberland Electric Membership Corporation continuing with Walter H. Stephenson, II, the following calls:

$N 31^{\circ} 35' 40'' W$ , 1,553.57 feet to an old iron rod,

$N 20^{\circ} 06' 17'' W$ , 964.14 feet to an old iron rod,

$N 07^{\circ} 20' 05'' E$ , 918.22 feet to an old iron rod being the southeasterly corner of City of Gallatin property of record in Record Book 4070, Page 790, R.O.S.C.;

THENCE, continuing with City of Gallatin property,  $N 07^{\circ} 20' 05'' E$ , 100.77 feet to an old iron rod being a common corner with Gregory Real Estate, LLC, of record in Record Book 1811, Page 783, R.O.S.C.;

THENCE, leaving City of Gallatin property continuing with the Gregory Real Estate, LLC, the following calls:

$N 07^{\circ} 03' 56'' E$ , 2,855.86 feet to an old iron rod,

$N 09^{\circ} 25' 10'' E$ , 698.99 feet to an old iron rod,

$S 80^{\circ} 54' 57'' E$ , 73.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

N 39° 51' 25" E, 43.45 feet to an old iron rod,

S 79° 51' 47" E, 3,324.96 feet a new one-half inch iron rod with cap stamp "Barge Design" on the westerly right of way of Brights Lane having a forty-foot wide right of way;

THENCE, with said westerly right of way line of Brights Lane the following calls:

With a curve to the right having a central angle of 05° 08' 28", with a radius of 1,817.94 feet, a tangent of 81.62 feet and a chord of S 16° 49' 02" E, 163.07 feet for an arc length of 163.12 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 19° 23' 16" E, 135.91 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 02° 58' 06", a radius of 3,811.96 feet, a tangent of 98.76 feet and a chord of S 17° 54' 13" E, 197.46 feet for an arc length of 197.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 16° 25' 11" E, 116.89 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 17° 57' 04", a radius of 754.75 feet, a tangent of 119.21 feet and a chord of S 07° 26' 39" E, 235.50 feet for an arc length of 236.46 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 29° 02' 15", a radius of 468.59 feet, a tangent of 121.35 feet and a chord of S 16° 03' 01" W, 234.95 feet for an arc length of 237.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 30° 34' 08" W, 39.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the left having a central angle of 30° 53' 43", a radius of 195.66 feet, a tangent of 54.07 feet and a chord of S 15° 07' 17" W, 104.23 feet for an arc length of 105.50 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 00° 19' 35" E, 216.94 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 01° 55' 03" W, 394.02 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 44' 49" W, 987.04 feet to a new one-half inch iron rod with cap stamp "Barge Design",

PUBLIC HEARING: June 16, 2020

S 02° 38' 08" W, 552.81 feet to a new one-half inch iron rod with cap stamp "Barge Design" to the common corner of the James R. Baker and Cathy D. Baker, of record in Record Book 428, Page 400, R.O.S.C.;

THENCE, leaving said westerly right of way of Brights Lane with Baker S 85° 05' 55" W, 1,190.18 feet to an old iron pipe being a common corner of Lot 22 and Lot 23, Oakland Section Two, of record in Plat Book 10, page 119, R.O.S.C.;

THENCE, S 65° 49' 48" W, 1,229.97 feet to an old iron rod being a common corner with Lot 41, Oakland Section Three, of record in Plat Book 10, page 259, and Edward J. Bellusor or record in Record Book 168, page 795, R.O.S.C.;

THENCE, leaving Oakland, Section Three with Bellusor the following calls:

S 65° 39' 06" W, 425.47 feet to an existing iron pipe,

S 26° 42' 06" E, 103.11 feet to a tree,

S 71° 23' 11" W, 214.01 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with Joseph Daniel Harsh, of record in Record Book 214, page 565, R.O.S.C.;

THENCE, with Joseph Daniel Harsh the following calls:

S 68° 21' 58" W, 124.68 feet,

S 49° 00' 39" W, 247.65 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with The Aileen Hoffer Revocable Trust, of record in Record Book 3241, page 747, R.O.S.C.;

THENCE, leaving Harsh with Aileen Hoffer Revocable Trust the following calls:

S 49° 46' 43" W, 518.76 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 37° 32' 45" E, 668.20 feet to an old iron rod,

S 37° 23' 56" E, 1,386.97 feet to the **POINT OF BEGINNING**.

Containing 16,241,440 square feet or 372.85 acres.

**Tax Map 112//Parcel 013.02 (Holleman) – 76.86 Acres**

**(R1A DISTRICT PORTION) – 36.08 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right-of-way line of State Highway 25, said iron rod being the southeast corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Beach One Properties, Inc. the following calls:

N 06° 45' 07" E, 1,250.31 feet to an old iron rod,  
N 83° 15' 30" W, 159.21 feet to a new iron rod,  
N 81° 17' 54" W, 416.76 feet to an old capped one-half inch iron rod stamped RLS 910, same being on the easterly line of Section 2, Sunnymead Subdivision, of record in Plat Book 10, page 62, R.O.S.C.;

THENCE, leaving Beach One Properties, Inc. with Section 2, Sunnymead Subdivision, N 08° 46' 19" E, 935.26 feet to the southwesterly corner of the MDR PUD zoning, same being on the easterly line of Lot 86, Section 7, Sunnymead Subdivision of record in Plat book 10, page 266, R.O.S.C.;

THENCE, leaving Lot 86, Section 7, Sunnymead Subdivision with the southerly boundary of said MDR PUD zoning line, S 83° 14' 58" E, 1,137.61 feet to a post being the northwest corner of Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, with Alexander, S 06° 45' 51" W, 948.87 feet to an old iron rod being a common corner with Thomas R. Hall, et ux, of record in Record Book 1318, page 688, R.O.S.C.;

THENCE, leaving Alexander with Hall the following calls:

N 83° 51' 00" W, 210.00 feet to a new iron rod,  
S 06° 44' 59" W, 1,242.83 feet to the northerly right-of-way line of Highway 25;

THENCE, leaving Hall with said northerly along a curve to the left, having a central angle of 03° 12' 30", a radius of 11519.16 feet, a tangent of 322.60 feet, and a chord of N 83° 42' 47" W, 644.95 feet for an arc length of 645.04 feet to the **POINT OF BEGINNING**.

Containing 1,571,769 square feet or 36.08 acres, more or less.

**(MDRPUD DISTRICT PORTION) – 40.78 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp

PUBLIC HEARING: June 16, 2020

Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at the northwest corner of the R1A zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision, of record in Plat Book 10, page 266, R.O.S.C., being N 08° 46' 19" E, 935.26 feet from an old capped one-half inch iron rod stamped RLS 910 being the northwest corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.

THENCE, with Section 7, Sunnymeade Subdivision, N 08° 46' 19" E, 1,018.08 feet to an old iron rod being the northeast corner of Section 7, Sunnymeade Subdivision of record in Plat Book 10, page 266, R.O.S.C., said iron rod being on the southerly line of Lot 6, Gallatin Industrial Center, Phase 3, Resubdivision of Lot 6, of record in Plat Book 28, page 325, R.O.S.C.;

THENCE, leaving Section 7, Sunnymeade Subdivision with said Lot 6, Gallatin Industrial Center, Phase 3, S 82° 54' 13" E, 1,380.01 feet to an old iron rod being the southwest corner of City of Gallatin property, of record in Record Book 4070, page 70, R.O.S.C.;

THENCE, with City of Gallatin property, S 82° 46' 10" E, 356.96 feet to a new iron rod, said iron rod being the northwest corner of James Caldwell, et ux of record in Record Book 4510, page 313, R.O.S.C.;

THENCE, leaving City of Gallatin property with Caldwell, S 06° 45' 51" W, 1,006.12 feet to an old iron rod being a common corner with Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, leaving Caldwell with Alexander, N 83° 14' 58" W, 635.00 feet to an old post;

THENCE, N 83° 14' 58" W, 1,137.61 feet to the **POINT OF BEGINNING**.

Containing 1,776,125 square feet or 40.78 acres, more or less.

**(P/O) Tax Map 105//Parcel 047.00 (Gregory) – 15.52 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:



**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southwest corner of Tax Map 105, Parcel 48.00, and the southeast corner of the herein described property;

THENCE, leaving Parcel 48.00 with the northerly line of Lot 4 the following calls:

N 80° 55' 04" W, 189.07 feet to a new iron rod,

N 85° 43' 58" W, 734.65 feet to a new iron rod,

N 85° 41' 02" W, 171.18 feet to the southeast corner of Lot 1, Gregory Real Estate, LLC of record in Plat Book 23, page 134, R.O.S.C.;

THENCE, leaving Lot 4, Gallatin Industrial Center, Phase 3 with Lot 1, N 09° 52' 02" E, 365.51 feet to the southerly right-of-way line of Roundtree Drive, having a fifty-foot wide right-of-way;

THENCE, leaving Lot 1, along said Roundtree Drive southerly right-of-way line the following calls:

With a curve to the left, having a central angle of 01° 50' 42", a radius of 1,827.39 feet, a tangent of 29.42 feet, and a chord of N 87° 30' 40" E, 58.84 feet for an arc length of 58.84 feet to a new iron rod,

N 86° 35' 19" E, 708.84 feet to a new iron rod,

With a curve to the left, having a central angle of 22° 44' 16", a radius of 1,306.79 feet, a tangent of 262.76 feet, and a chord of N 75° 13' 11" E, 515.20 feet for an arc length of 518.60 feet to a new iron rod,

N 63° 51' 03" E, 327.13 feet to a new iron rod,

With a curve to the right, having a central angle of 52° 24' 30", a radius of 213.51 feet, a tangent of 105.08 feet, and a chord of S 89° 31' 22" E, 188.56 feet for an arc length of 195.30 feet being the northwest corner of Tax Map 105, Parcel 48.00;

THENCE, leaving the southerly right of way of Roundtree Drive with Parcel 48.00, S 42° 49' 16" W, 1,058.33 feet to the **POINT OF BEGINNING**.

Containing 676,031 square feet or 15.52 acres, more or less.

**(P/O) Tax Map 105//Parcel 048.00 (Gregory) – 57.88 Acres**

PUBLIC HEARING: June 16, 2020

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southeast corner of Tax Map 105, Parcel 47.00, and the westerly most corner of the herein described property;

THENCE, leaving Lot 4 with Parcel 47, N 42° 49' 16" E, 1,058.33 feet to a new iron rod on the southerly right of way line of Roundtree Drive having a fifty-foot wide right of way;

THENCE, along said southerly right of way line the following calls:

With a curve to the right, having a central angle of 05° 00' 29", a radius of 213.51 feet, a tangent of 9.34 feet, and a chord of S 60° 48' 53" E, 18.66 feet for an arc length of 18.66 feet to a new iron rod,

With a curve to the left, having a central angle of 32° 21' 22", a radius of 562.68 feet, a tangent of 163.33 feet, and a chord of S 74° 29' 48" E, 313.70 feet for an arc length of 317.92 feet to a new iron rod,

N 89° 19' 02" E, 593.70 feet to a new iron rod,

With a curve to the right, having a central angle of 11° 00' 51", a radius of 975.00 feet, a tangent of 94.00 feet, and a chord of S 85° 10' 33" E, 187.14 feet for an arc length of 187.43 feet to a new iron rod,

S 79° 40' 07" E, 628.76 feet to a new iron rod,

With a curve to the left, having a central angle of 03° 36' 07", a radius of 1,025.00 feet, a tangent of 32.23 feet, and a chord of S 81° 28' 11" E, 64.43 feet for an arc length of 64.44 feet to a new iron rod,

S 83° 16' 14" E, 82.45 feet to a new iron rod,

With a curve to the left, having a central angle of 26° 15' 57", a radius of 525.00 feet, a tangent of 122.49 feet, and a chord of N 83° 35' 47" E, 238.57 feet for an arc length of 240.67 feet to a new iron rod,

N 70° 27' 49" E, 663.18 feet;

THENCE, leaving the southerly right of way line of Roundtree Drive with a new line severing Tax Map 105, Parcel 48.00, S 09° 25' 10" W, passing a new iron rod at 331.71 feet being the northwest corner of Independence Trust Company, Trustee property of record in Record Book 4267, page

704, R.O.S.C., for a total distance of 1,030.70 feet to the northeast corner of Tax Map 111, Parcel 1;

THENCE, leaving the westerly line of Independence Trust Company, Trustee property with Parcel 1, the following calls:

N 87° 05'39" W, 278.97 feet to an old iron rod,

N 88° 46'25" W, 1,771.99 feet to an old iron rod,

N 81° 52'52" W, 421.08 feet to an old iron rod being the northeast corner of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C.;

THENCE, with Lot 4 the following calls:

N 82° 33' 41" W, 262.53 feet to a new iron rod,

N 81° 40' 31" W, 474.01 feet to a new iron rod,

N 81° 41' 16" W, 78.97 feet to a new iron rod,

N 80° 55' 04" W, 1.11 feet to the **POINT OF BEGINNING**.

Containing 2,521,222 square feet or 57.88 acres, more or less.

**Tax Map 111//Parcel 118.00 (Caldwell) – 1.03 Acres**

BEING Lot No. 8 on the Final Subdivision Plat for JAMES AND FAYE CALDWELL, a plat of which is of record in Plat Book 19, pages 210-211, in the Register's Office of Sumner County, Tennessee, reference to which is hereby made for a more complete description of said lot.

**EXHIBIT 'B'**  
**PLAN OF SERVICE FOR**  
**TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND**  
**111//118.00**  
**(ANNX-2020-0006) pursuant to Tenn. Code Annotated § 6-51-102(b)**

**A. Potable Water**

The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that there is sufficient water infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation area currently have this service available. The developer will be responsible for all costs associated with the infrastructure improvements necessary to support the annexation and development of these properties.

**B. Sanitary Sewer**

The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that there is sufficient sanitary sewer infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation area currently have this service available. The developer will be responsible for all costs associated with the infrastructure improvements necessary to support the annexation and development of these properties.

**C. Street Construction and Maintenance**

No new public right-of-way is proposed to be annexed with this request. Any new roadways and future maintenance needs will be dependent upon subsequent development and shall be evaluated with future site plans and subdivision plats.

**D. Solid Waste and Refuse Collection**

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Industry and business will have access to city operated resource recovery programs and services. Depending on specific users, some or all sanitary waste collection services may be contracted to private service providers/operators.

**E. Planning and Zoning Services**

Upon annexation, planning and zoning services, including zoning enforcement, will be provided by the City of Gallatin.

**F. Building Inspections and Code Enforcement Services**

Upon annexation, building and code inspection services will be provided by the City of Gallatin.

**G. Fire Protection**

The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the project's (Wool Hawk's) location and distance from primary and secondary response fire stations, the size of the project, as well as the extended emergency apparatus travel/response times required for on-scene arrival,

the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town.

The Fire Department recommended that Fire Station #6 be considered as a part of this project. The location of the station will be on Commerce Drive (112//016.00) approximately 2.1 miles from the majority of the property and will require an average response time of five (5) minutes. As the annexed area is developed, fire protection will be evaluated to determine the sufficient levels of service. The City will begin the process of planning and construction of the fire station to serve the area.

**H. Police Protection**

After the effective date of the annexation, the Gallatin Police Department will provide police patrol, response to calls, and other routine police services to the properties. The Police Department indicated that additional police officers and departmental vehicles will be needed to provide service to this area.

**I. Animal Control**

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

**J. Recreational Facilities and Programs**

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. However, the City does not anticipate any residential development on the property so the need for additional recreation resources to maintain suitable Levels of Service is not anticipated.

**K. Street Lighting and Electric Service**

Cumberland Electric Membership Corporation currently services this area outside of Gallatin city limits. The Gallatin Department of Electricity indicated that additional electrical infrastructure would be necessary to provide service to this area. The department also indicated that GDE would provide temporary power while TVA would provide permanent power.

**L. Gas**

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that, upon extension of service lines, there is sufficient natural gas infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation currently have this service available. The developer will be responsible for all costs associated with the gas utility infrastructure improvements necessary to support the annexation and development of these properties.

PUBLIC HEARING: June 16, 2020

**M. School System**

The City provided written notice to the Sumner County School System of the proposed annexation and rezoning prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 26, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

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**SUBJECT:**

A Resolution No. R2006-30 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike.

**SUMMARY:**

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; and providing an effective date.

**RECOMMENDATION:**

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the Plan of Services in GMRPC Resolution No. 2020-077. (ANNX-2020-0006)

**ATTACHMENT:**

☒ Resolution  
☐ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

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Approved ☒  
Rejected ☐  
Deferred ☐

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**Notes:**

**RESOLUTION NO. R2006-31**

**A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING FIVE (5) PARCELS TOTALING 524.14 +/- ACRES (TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND 111//118.00), LOCATED SOUTH OF ROUNDTREE DRIVE, WEST OF BRIGHTS LANE, AND NORTH OF HARTSVILLE PIKE, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the owners of the properties of the affected areas described in Exhibit 'A' submitted a petition to annex five (5) parcels totaling 524.14 +/- acres substantially contiguous to the City of Gallatin city limits and located within the City of Gallatin Urban Growth Boundary; and

**WHEREAS**, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

**WHEREAS**, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of GMRPC Resolution No. 2020-077 for the proposed annexation and Plan of Service to the affected areas; and

**WHEREAS**, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2006-30.

**NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:**

Section 1. The City Council of the City of Gallatin does hereby annex the following properties as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 1.



Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

**IT IS SO ORDERED.**

PRESENT AND VOTING.

AYE:

NAY:

DATED:

\_\_\_\_\_  
MAYOR PAIGE BROWN

ATTEST:

\_\_\_\_\_  
CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

\_\_\_\_\_  
SUSAN HIGH-MCAULEY  
CITY ATTORNEY

Exhibit 'A' – Legal Descriptions of annexation territory

Exhibit 'B' – Maps of the annexation territory

EXHIBIT 'A'

**Tax Map 111//Parcel 002.00 (Argent Trust) – 372.85 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located east of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right of way of line of State Highway 25 (Hartsville Pike), having a right of way that varies, said iron rod being the southwest corner of The Aileen Hoffer Revocable Trust, of record in Book 3241, Page 747, Register's Office for Sumner County, Tennessee;

THENCE, leaving the Aileen Hoffer Revocable Trust along the right of way of State Highway 25 (Hartsville Pike) with a curve to the right having a central angle of  $10^{\circ} 27' 46''$ , a radius of 2,013.48 feet, a tangent of 184.35 feet, and a chord of S  $82^{\circ} 03' 22''$  W, 367.17 feet for an arc length of 367.68 feet to the easterly line of the Cumberland Electric Membership Corporation, of record in Record Book 3446, Page 43, R.O.S.C.;

THENCE, leaving said right of way line with the easterly line of Cumberland Electric Membership Corporation, N  $31^{\circ} 13' 25''$  W, 344.50 feet to an old iron rod being a common corner with Walter H. Stephenson, II, of record in Record Book 3432, Page 342, R.O.S.C.;

THENCE, leaving Cumberland Electric Membership Corporation continuing with Walter H. Stephenson, II, the following calls:

N  $31^{\circ} 35' 40''$  W, 1,553.57 feet to an old iron rod,

N  $20^{\circ} 06' 17''$  W, 964.14 feet to an old iron rod,

N  $07^{\circ} 20' 05''$  E, 918.22 feet to an old iron rod being the southeasterly corner of City of Gallatin property of record in Record Book 4070, Page 790, R.O.S.C.;

THENCE, continuing with City of Gallatin property, N  $07^{\circ} 20' 05''$  E, 100.77 feet to an old iron rod being a common corner with Gregory Real Estate, LLC, of record in Record Book 1811, Page 783, R.O.S.C.;

THENCE, leaving City of Gallatin property continuing with the Gregory Real Estate, LLC, the following calls:

N  $07^{\circ} 03' 56''$  E, 2,855.86 feet to an old iron rod,

N  $09^{\circ} 25' 10''$  E, 698.99 feet to an old iron rod,

S  $80^{\circ} 54' 57''$  E, 73.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

N 39° 51' 25" E, 43.45 feet to an old iron rod,

S 79° 51' 47" E, 3,324.96 feet a new one-half inch iron rod with cap stamp "Barge Design" on the westerly right of way of Brights Lane having a forty-foot wide right of way;

THENCE, with said westerly right of way line of Brights Lane the following calls:

With a curve to the right having a central angle of 05° 08' 28", with a radius of 1,817.94 feet, a tangent of 81.62 feet and a chord of S 16° 49' 02" E, 163.07 feet for an arc length of 163.12 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 19° 23' 16" E, 135.91 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 02° 58' 06", a radius of 3,811.96 feet, a tangent of 98.76 feet and a chord of S 17° 54' 13" E, 197.46 feet for an arc length of 197.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 16° 25' 11" E, 116.89 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 17° 57' 04", a radius of 754.75 feet, a tangent of 119.21 feet and a chord of S 07° 26' 39" E, 235.50 feet for an arc length of 236.46 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 29° 02' 15", a radius of 468.59 feet, a tangent of 121.35 feet and a chord of S 16° 03' 01" W, 234.95 feet for an arc length of 237.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 30° 34' 08" W, 39.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the left having a central angle of 30° 53' 43", a radius of 195.66 feet, a tangent of 54.07 feet and a chord of S 15° 07' 17" W, 104.23 feet for an arc length of 105.50 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 00° 19' 35" E, 216.94 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 01° 55' 03" W, 394.02 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 44' 49" W, 987.04 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 38' 08" W, 552.81 feet to a new one-half inch iron rod with cap stamp "Barge Design" to the common corner of the James R. Baker and Cathy D. Baker, of record in Record Book 428, Page 400, R.O.S.C.;

THENCE, leaving said westerly right of way of Brights Lane with Baker S 85° 05' 55" W, 1,190.18 feet to an old iron pipe being a common corner of Lot 22 and Lot 23, Oakland Section Two, of record in Plat Book 10, page 119, R.O.S.C.;

THENCE, S 65° 49' 48" W, 1,229.97 feet to an old iron rod being a common corner with Lot 41, Oakland Section Three, of record in Plat Book 10, page 259, and Edward J. Bellusor or record in Record Book 168, page 795, R.O.S.C.;

THENCE, leaving Oakland, Section Three with Bellusor the following calls:

S 65° 39' 06" W, 425.47 feet to an existing iron pipe,

S 26° 42' 06" E, 103.11 feet to a tree,

S 71° 23' 11" W, 214.01 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with Joseph Daniel Harsh, of record in Record Book 214, page 565, R.O.S.C.;

THENCE, with Joseph Daniel Harsh the following calls:

S 68° 21' 58" W, 124.68 feet,

S 49° 00' 39" W, 247.65 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with The Aileen Hoffer Revocable Trust, of record in Record Book 3241, page 747, R.O.S.C.;

THENCE, leaving Harsh with Aileen Hoffer Revocable Trust the following calls:

S 49° 46' 43" W, 518.76 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 37° 32' 45" E, 668.20 feet to an old iron rod,

S 37° 23' 56" E, 1,386.97 feet to the **POINT OF BEGINNING**.

Containing 16,241,440 square feet or 372.85 acres.

**Tax Map 112//Parcel 013.02 (Holleman) – 76.86 Acres**

**(R1A DISTRICT PORTION) – 36.08 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right-of-way line of State Highway 25, said iron rod being the southeast corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Beach One Properties, Inc. the following calls:

N 06° 45' 07" E, 1,250.31 feet to an old iron rod,  
N 83° 15' 30" W, 159.21 feet to a new iron rod,  
N 81° 17' 54" W, 416.76 feet to an old capped one-half inch iron rod stamped RLS 910,  
same being on the easterly line of Section 2, Sunnymeade Subdivision, of record in Plat Book 10, page 62, R.O.S.C.;

THENCE, leaving Beach One Properties, Inc. with Section 2, Sunnymeade Subdivision, N 08° 46' 19" E, 935.26 feet to the southwesterly corner of the MDR PUD zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision of record in Plat book 10, page 266, R.O.S.C.;

THENCE, leaving Lot 86, Section 7, Sunnymeade Subdivision with the southerly boundary of said MDR PUD zoning line, S 83° 14' 58" E, 1,137.61 feet to a post being the northwest corner of Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, with Alexander, S 06° 45' 51" W, 948.87 feet to an old iron rod being a common corner with Thomas R. Hall, et ux, of record in Record Book 1318, page 688, R.O.S.C.;

THENCE, leaving Alexander with Hall the following calls:

N 83° 51' 00" W, 210.00 feet to a new iron rod,  
S 06° 44' 59" W, 1,242.83 feet to the northerly right-of-way line of Highway 25;

THENCE, leaving Hall with said northerly along a curve to the left, having a central angle of  $03^{\circ} 12' 30''$ , a radius of 11519.16 feet, a tangent of 322.60 feet, and a chord of  $N 83^{\circ} 42' 47'' W$ , 644.95 feet for an arc length of 645.04 feet to the **POINT OF BEGINNING**.

Containing 1,571,769 square feet or 36.08 acres, more or less.

**(MDRPUD DISTRICT PORTION) – 40.78 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at the northwest corner of the R1A zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision, of record in Plat Book 10, page 266, R.O.S.C., being  $N 08^{\circ} 46' 19'' E$ , 935.26 feet from an old capped one-half inch iron rod stamped RLS 910 being the northwest corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.

THENCE, with Section 7, Sunnymeade Subdivision,  $N 08^{\circ} 46' 19'' E$ , 1,018.08 feet to an old iron rod being the northeast corner of Section 7, Sunnymeade Subdivision of record in Plat Book 10, page 266, R.O.S.C., said iron rod being on the southerly line of Lot 6, Gallatin Industrial Center, Phase 3, Resubdivision of Lot 6, of record in Plat Book 28, page 325, R.O.S.C.;

THENCE, leaving Section 7, Sunnymeade Subdivision with said Lot 6, Gallatin Industrial Center, Phase 3,  $S 82^{\circ} 54' 13'' E$ , 1,380.01 feet to an old iron rod being the southwest corner of City of Gallatin property, of record in Record Book 4070, page 70, R.O.S.C.;

THENCE, with City of Gallatin property,  $S 82^{\circ} 46' 10'' E$ , 356.96 feet to a new iron rod, said iron rod being the northwest corner of James Caldwell, et ux of record in Record Book 4510, page 313, R.O.S.C.;

THENCE, leaving City of Gallatin property with Caldwell,  $S 06^{\circ} 45' 51'' W$ , 1,006.12 feet to an old iron rod being a common corner with Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, leaving Caldwell with Alexander,  $N 83^{\circ} 14' 58'' W$ , 635.00 feet to an old post;

THENCE,  $N 83^{\circ} 14' 58'' W$ , 1,137.61 feet to the **POINT OF BEGINNING**.

Containing 1,776,125 square feet or 40.78 acres, more or less.

**(P/O) Tax Map 105//Parcel 047.00 (Gregory) – 15.52 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southwest corner of Tax Map 105, Parcel 48.00, and the southeast corner of the herein described property;

THENCE, leaving Parcel 48.00 with the northerly line of Lot 4 the following calls:

N 80° 55' 04" W, 189.07 feet to a new iron rod,

N 85° 43' 58" W, 734.65 feet to a new iron rod,

N 85° 41' 02" W, 171.18 feet to the southeast corner of Lot 1, Gregory Real Estate, LLC of record in Plat Book 23, page 134, R.O.S.C.;

THENCE, leaving Lot 4, Gallatin Industrial Center, Phase 3 with Lot 1, N 09° 52' 02" E, 365.51 feet to the southerly right-of-way line of Roundtree Drive, having a fifty-foot wide right-of-way;

THENCE, leaving Lot 1, along said Roundtree Drive southerly right-of-way line the following calls:

With a curve to the left, having a central angle of 01° 50' 42", a radius of 1,827.39 feet, a tangent of 29.42 feet, and a chord of N 87° 30' 40" E, 58.84 feet for an arc length of 58.84 feet to a new iron rod,

N 86° 35' 19" E, 708.84 feet to a new iron rod,

With a curve to the left, having a central angle of 22° 44' 16", a radius of 1,306.79 feet, a tangent of 262.76 feet, and a chord of N 75° 13' 11" E, 515.20 feet for an arc length of 518.60 feet to a new iron rod,

N 63° 51' 03" E, 327.13 feet to a new iron rod,

With a curve to the right, having a central angle of 52° 24' 30", a radius

of 213.51 feet, a tangent of 105.08 feet, and a chord of S 89° 31' 22" E, 188.56 feet for an arc length of 195.30 feet being the northwest corner of Tax Map 105, Parcel 48.00;

THENCE, leaving the southerly right of way of Roundtree Drive with Parcel 48.00, S 42° 49' 16" W, 1,058.33 feet to the **POINT OF BEGINNING**.

Containing 676,031 square feet or 15.52 acres, more or less.

**(P/O) Tax Map 105//Parcel 048.00 (Gregory) – 57.88 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southeast corner of Tax Map 105, Parcel 47.00, and the westerly most corner of the herein described property;

THENCE, leaving Lot 4 with Parcel 47, N 42° 49' 16" E, 1,058.33 feet to a new iron rod on the southerly right of way line of Roundtree Drive having a fifty-foot wide right of way;

THENCE, along said southerly right of way line the following calls:

With a curve to the right, having a central angle of 05° 00' 29", a radius of 213.51 feet, a tangent of 9.34 feet, and a chord of S 60° 48' 53" E, 18.66 feet for an arc length of 18.66 feet to a new iron rod,

With a curve to the left, having a central angle of 32° 21' 22", a radius  
Of 562.68 feet, a tangent of 163.33 feet, and a chord of S 74° 29' 48" E,  
313.70 feet for an arc length of 317.92 feet to a new iron rod,

N 89° 19' 02" E, 593.70 feet to a new iron rod,

With a curve to the right, having a central angle of 11° 00' 51", a radius of 975.00 feet, a tangent of 94.00 feet, and a chord of S 85° 10' 33" E, 187.14 feet for an arc length of 187.43 feet to a new iron rod,

S 79° 40' 07" E, 628.76 feet to a new iron rod,



With a curve to the left, having a central angle of  $03^{\circ} 36' 07''$ , a radius of 1,025.00 feet, a tangent of 32.23 feet, and a chord of  $S 81^{\circ} 28' 11'' E$ , 64.43 feet for an arc length of 64.44 feet to a new iron rod,

$S 83^{\circ} 16' 14'' E$ , 82.45 feet to a new iron rod,

With a curve to the left, having a central angle of  $26^{\circ} 15' 57''$ , a radius of 525.00 feet, a tangent of 122.49 feet, and a chord of  $N 83^{\circ} 35' 47'' E$ , 238.57 feet for an arc length of 240.67 feet to a new iron rod,

$N 70^{\circ} 27' 49'' E$ , 663.18 feet;

THENCE, leaving the southerly right of way line of Roundtree Drive with a new line severing Tax Map 105, Parcel 48.00,  $S 09^{\circ} 25' 10'' W$ , passing a new iron rod at 331.71 feet being the northwest corner of Independence Trust Company, Trustee property of record in Record Book 4267, page 704, R.O.S.C., for a total distance of 1,030.70 feet to the northeast corner of Tax Map 111, Parcel 1;

THENCE, leaving the westerly line of Independence Trust Company, Trustee property with Parcel 1, the following calls:

$N 87^{\circ} 05' 39'' W$ , 278.97 feet to an old iron rod,

$N 88^{\circ} 46' 25'' W$ , 1,771.99 feet to an old iron rod,

$N 81^{\circ} 52' 52'' W$ , 421.08 feet to an old iron rod being the northeast corner of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C.;

THENCE, with Lot 4 the following calls:

$N 82^{\circ} 33' 41'' W$ , 262.53 feet to a new iron rod,

$N 81^{\circ} 40' 31'' W$ , 474.01 feet to a new iron rod,

$N 81^{\circ} 41' 16'' W$ , 78.97 feet to a new iron rod,

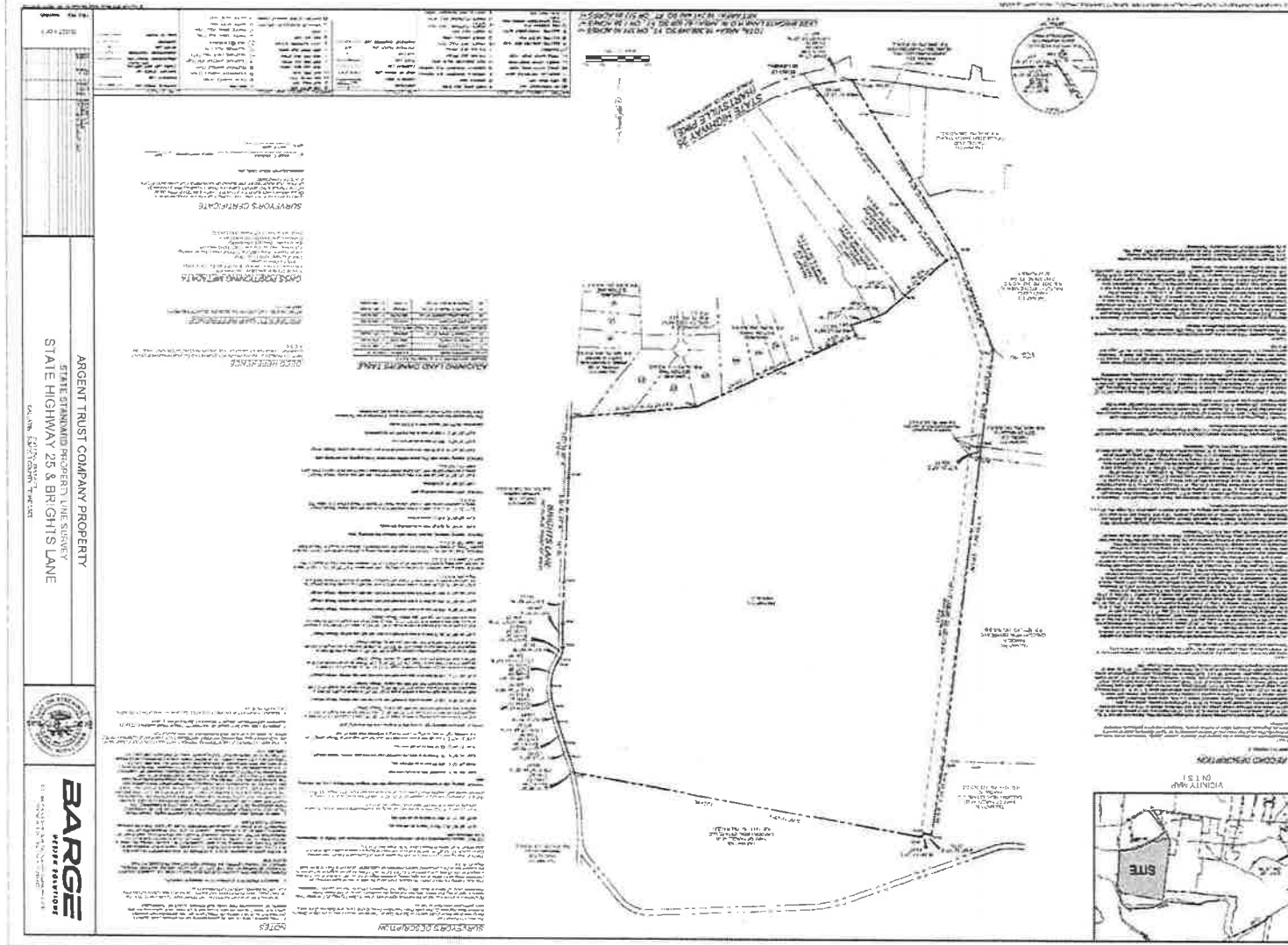
$N 80^{\circ} 55' 04'' W$ , 1.11 feet to the **POINT OF BEGINNING**.

Containing 2,521,222 square feet or 57.88 acres, more or less.

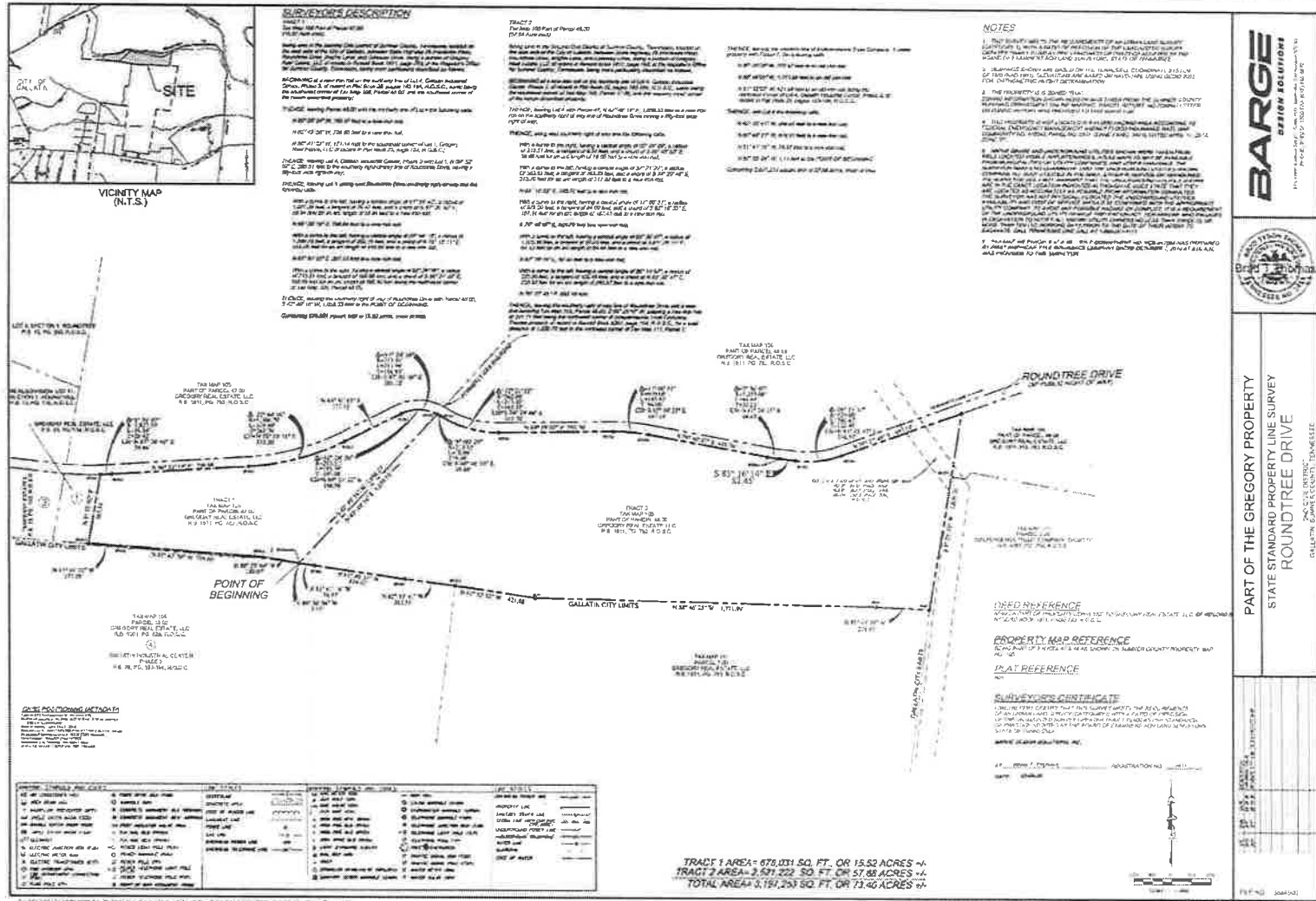
**Tax Map 111//Parcel 118.00 (Caldwell) – 1.03 Acres**

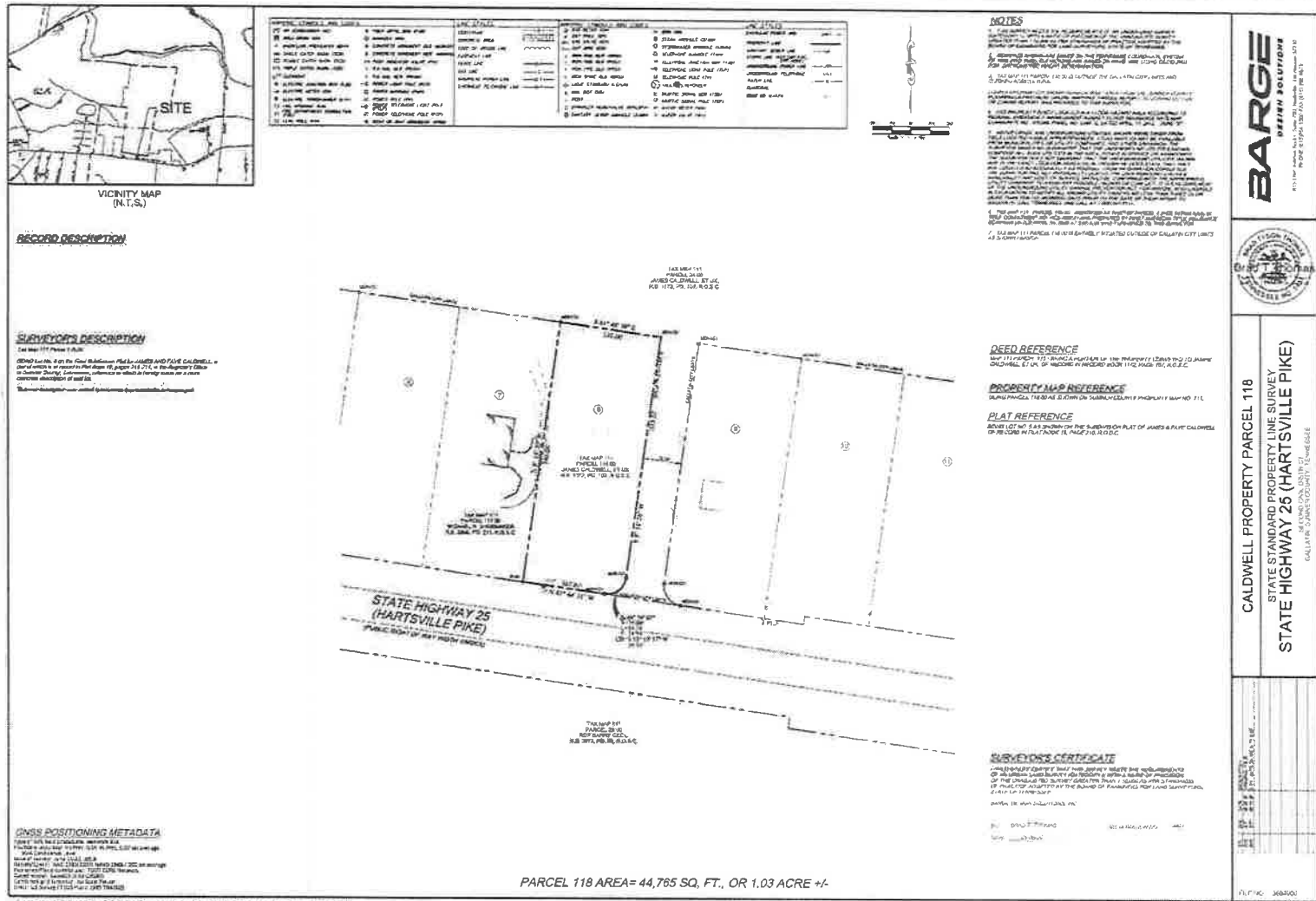
BEING Lot No. 8 on the Final Subdivision Plat for JAMES AND FAYE CALDWELL, a plat of which is of record in Plat Book 19, pages 210-211, in the Register's Office of Sumner County, Tennessee, reference to which is hereby made for a more complete description of said lot.

EXHIBIT 'B'



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Journal of Internal Medicine 255: 105–114





**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 26, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

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**SUBJECT:**

A Resolution No. R2006-31 of the City of Gallatin, Sumner County, Tennessee, annexing 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike.

**SUMMARY:**

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00) into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

**RECOMMENDATION:**

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-077. (ANNX-2020-0006)

**ATTACHMENT:**

☒ Resolution  
☐ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

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Approved ☒  
Rejected ☐  
Deferred ☐

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**Notes:**

**ORDINANCE NO. 02006-25**

**AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, TO REZONE 483.36 +/- ACRES FROM THE R1A-RESIDENTIAL 1A (SUMNER COUNTY) DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, TO REZONE 40.78 +/- ACRES FROM THE MDRPUD-MEDIUM DENSITY RESIDENTIAL PLANNED UNIT DEVELOPMENT (SUMNER COUNTY) DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, TO REZONE 116.22 +/- ACRES FROM R-15 (PRD) – RESIDENTIAL-15 PLANNED RESIDENTIAL DEVELOPMENT DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, AND TO REZONE 6.25 +/- ACRES FROM THE A-AGRICULTURAL RESIDENTIAL DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, TOTALING 646.61 +/- ACRES, LOCATED SOUTH OF ROUNDTREE DRIVE, WEST OF BRIGHTS LANE, AND NORTH OF HARTSVILLE PIKE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the owners of the subject properties submitted a complete application to rezone seven (7) parcels totaling 646.61 +/- acres, located in the City of Gallatin, Tennessee; and

**WHEREAS**, the proposed zoning map amendment conforms to the general plan of the area including the Airport Road Industrial Character Area and that the public necessity, convenience, and the general welfare, will be served by approving the proposed amendment; and

**WHEREAS**, the properties proposed for rezoning will have adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

**WHEREAS**, the proposed rezoning will provide opportunities for industrial development on the properties consistent with development in the adjacent Gallatin Industrial Center; and

**WHEREAS**, the proposed rezoning will be compatible with surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the properties are located; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning in GMRPC Resolution No. 2020-078; and

**WHEREAS**, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

**WHEREAS**, the City Council has approved by majority vote of the members present the rezoning request of the described properties; and

**NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE AS FOLLOWS:**

**Section 1.** The City Council of the City of Gallatin does hereby approve the rezoning of 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres as described in Exhibits ‘A’ and ‘B.’

**Section 2.** The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

**Section 3.** All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

**Section 4.** If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

**Section 5.** This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING: June 2, 2020

PASSED SECOND READING:

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MAYOR PAIGE BROWN

ATTEST:

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CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

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SUSAN HIGH-MACAULEY  
CITY ATTORNEY



PUBLIC HEARING: June 16, 2020

Exhibit 'A' – Legal Descriptions of rezoning area

Exhibit 'B' – Maps of the rezoning area

EXHIBIT 'A'

**R1A DISTRICT (SUMNER COUNTY) to IR-INDUSTRIAL RESTRICTIVE – 483.36 Acres**

**Tax Map 111//Parcel 002.00 (Argent Trust) – 372.85 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located east of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right of way of line of State Highway 25 (Hartsville Pike), having a right of way that varies, said iron rod being the southwest corner of The Aileen Hoffer Revocable Trust, of record in Book 3241, Page 747, Register's Office for Sumner County, Tennessee;

THENCE, leaving the Aileen Hoffer Revocable Trust along the right of way of State Highway 25 (Hartsville Pike) with a curve to the right having a central angle of  $10^{\circ} 27' 46''$ , a radius of 2,013.48 feet, a tangent of 184.35 feet, and a chord of S  $82^{\circ} 03' 22''$  W, 367.17 feet for an arc length of 367.68 feet to the easterly line of the Cumberland Electric Membership Corporation, of record in Record Book 3446, Page 43, R.O.S.C.;

THENCE, leaving said right of way line with the easterly line of Cumberland Electric Membership Corporation, N  $31^{\circ} 13' 25''$  W, 344.50 feet to an old iron rod being a common corner with Walter H. Stephenson, II, of record in Record Book 3432, Page 342, R.O.S.C.;

THENCE, leaving Cumberland Electric Membership Corporation continuing with Walter H. Stephenson, II, the following calls:

N  $31^{\circ} 35' 40''$  W, 1,553.57 feet to an old iron rod,

N  $20^{\circ} 06' 17''$  W, 964.14 feet to an old iron rod,

N  $07^{\circ} 20' 05''$  E, 918.22 feet to an old iron rod being the southeasterly corner of City of Gallatin property of record in Record Book 4070, Page 790, R.O.S.C.;

THENCE, continuing with City of Gallatin property, N  $07^{\circ} 20' 05''$  E, 100.77 feet to an old iron rod being a common corner with Gregory Real Estate, LLC, of record in Record Book 1811, Page 783, R.O.S.C.;

THENCE, leaving City of Gallatin property continuing with the Gregory Real Estate, LLC, the following calls:

N  $07^{\circ} 03' 56''$  E, 2,855.86 feet to an old iron rod,

N  $09^{\circ} 25' 10''$  E, 698.99 feet to an old iron rod,

S  $80^{\circ} 54' 57''$  E, 73.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

N 39° 51' 25" E, 43.45 feet to an old iron rod,

S 79° 51' 47" E, 3,324.96 feet a new one-half inch iron rod with cap stamp "Barge Design" on the westerly right of way of Brights Lane having a forty-foot wide right of way;

THENCE, with said westerly right of way line of Brights Lane the following calls:

With a curve to the right having a central angle of 05° 08' 28", with a radius of 1,817.94 feet, a tangent of 81.62 feet and a chord of S 16° 49' 02" E, 163.07 feet for an arc length of 163.12 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 19° 23' 16" E, 135.91 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 02° 58' 06", a radius of 3,811.96 feet, a tangent of 98.76 feet and a chord of S 17° 54' 13" E, 197.46 feet for an arc length of 197.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 16° 25' 11" E, 116.89 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 17° 57' 04", a radius of 754.75 feet, a tangent of 119.21 feet and a chord of S 07° 26' 39" E, 235.50 feet for an arc length of 236.46 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 29° 02' 15", a radius of 468.59 feet, a tangent of 121.35 feet and a chord of S 16° 03' 01" W, 234.95 feet for an arc length of 237.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 30° 34' 08" W, 39.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the left having a central angle of 30° 53' 43", a radius of 195.66 feet, a tangent of 54.07 feet and a chord of S 15° 07' 17" W, 104.23 feet for an arc length of 105.50 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 00° 19' 35" E, 216.94 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 01° 55' 03" W, 394.02 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 44' 49" W, 987.04 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 38' 08" W, 552.81 feet to a new one-half inch iron rod with cap stamp "Barge Design" to the common corner of the James R. Baker and Cathy D. Baker, of record in Record Book 428, Page 400, R.O.S.C.;

THENCE, leaving said westerly right of way of Brights Lane with Baker S 85° 05' 55" W, 1,190.18 feet to an old iron pipe being a common corner of Lot 22 and Lot 23, Oakland Section Two, of record in Plat Book 10, page 119, R.O.S.C.;

THENCE, S 65° 49' 48" W, 1,229.97 feet to an old iron rod being a common corner with Lot 41, Oakland Section Three, of record in Plat Book 10, page 259, and Edward J. Bellusor or record in Record Book 168, page 795, R.O.S.C.;

THENCE, leaving Oakland, Section Three with Bellusor the following calls:

S 65° 39' 06" W, 425.47 feet to an existing iron pipe,

S 26° 42' 06" E, 103.11 feet to a tree,

S 71° 23' 11" W, 214.01 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with Joseph Daniel Harsh, of record in Record Book 214, page 565, R.O.S.C.;

THENCE, with Joseph Daniel Harsh the following calls:

S 68° 21' 58" W, 124.68 feet,

S 49° 00' 39" W, 247.65 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with The Aileen Hoffer Revocable Trust, of record in Record Book 3241, page 747, R.O.S.C.;

THENCE, leaving Harsh with Aileen Hoffer Revocable Trust the following calls:

S 49° 46' 43" W, 518.76 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 37° 32' 45" E, 668.20 feet to an old iron rod,

S 37° 23' 56" E, 1,386.97 feet to the **POINT OF BEGINNING**.

Containing 16,241,440 square feet or 372.85 acres.

**Tax Map 112//Parcel 013.02 (Holleman)**  
**(R1A DISTRICT PORTION) – 36.08 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right-of-way line of State Highway 25, said iron rod being the southeast corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Beach One Properties, Inc. the following calls:

N 06° 45' 07" E, 1,250.31 feet to an old iron rod,

N 83° 15' 30" W, 159.21 feet to a new iron rod,

N 81° 17' 54" W, 416.76 feet to an old capped one-half inch iron rod stamped RLS 910, same being on the easterly line of Section 2, Sunnymeade Subdivision, of record in Plat Book 10, page 62, R.O.S.C.;

THENCE, leaving Beach One Properties, Inc. with Section 2, Sunnymeade Subdivision, N 08° 46' 19" E, 935.26 feet to the southwesterly corner of the MDR PUD zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision of record in Plat book 10, page 266, R.O.S.C.;

THENCE, leaving Lot 86, Section 7, Sunnymeade Subdivision with the southerly boundary of said MDR PUD zoning line, S 83° 14' 58" E, 1,137.61 feet to a post being the northwest corner of Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, with Alexander, S 06° 45' 51" W, 948.87 feet to an old iron rod being a common corner with Thomas R. Hall, et ux, of record in Record Book 1318, page 688, R.O.S.C.;

THENCE, leaving Alexander with Hall the following calls:

N 83° 51' 00" W, 210.00 feet to a new iron rod,

S 06° 44' 59" W, 1,242.83 feet to the northerly right-of-way line of Highway 25;

THENCE, leaving Hall with said northerly along a curve to the left, having a central angle of 03° 12' 30", a radius of 11519.16 feet, a tangent of 322.60 feet, and a chord of N 83° 42' 47" W, 644.95 feet for an arc length of 645.04 feet to the **POINT OF BEGINNING**.

PUBLIC HEARING: June 16, 2020

Containing 1,571,769 square feet or 36.08 acres, more or less.

**(P/O) Tax Map 105//Parcel 047.00 (Gregory) – 15.52 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southwest corner of Tax Map 105, Parcel 48.00, and the southeast corner of the herein described property;

THENCE, leaving Parcel 48.00 with the northerly line of Lot 4 the following calls:

N 80° 55' 04" W, 189.07 feet to a new iron rod,

N 85° 43' 58" W, 734.65 feet to a new iron rod,

N 85° 41' 02" W, 171.18 feet to the southeast corner of Lot 1, Gregory Real Estate, LLC of record in Plat Book 23, page 134, R.O.S.C.;

THENCE, leaving Lot 4, Gallatin Industrial Center, Phase 3 with Lot 1, N 09° 52' 02" E, 365.51 feet to the southerly right-of-way line of Roundtree Drive, having a fifty-foot wide right-of-way;

THENCE, leaving Lot 1, along said Roundtree Drive southerly right-of-way line the following calls:

With a curve to the left, having a central angle of 01° 50' 42", a radius of 1,827.39 feet, a tangent of 29.42 feet, and a chord of N 87° 30' 40" E, 58.84 feet for an arc length of 58.84 feet to a new iron rod,

N 86° 35' 19" E, 708.84 feet to a new iron rod,

With a curve to the left, having a central angle of 22° 44' 16", a radius of 1,306.79 feet, a tangent of 262.76 feet, and a chord of N 75° 13' 11" E, 515.20 feet for an arc length of 518.60 feet to a new iron rod,

N 63° 51' 03" E, 327.13 feet to a new iron rod,

With a curve to the right, having a central angle of 52° 24' 30", a radius of 213.51 feet, a tangent of 105.08 feet, and a chord of S 89° 31' 22" E,

188.56 feet for an arc length of 195.30 feet being the northwest corner of Tax Map 105, Parcel 48.00;

THENCE, leaving the southerly right of way of Roundtree Drive with Parcel 48.00, S 42° 49' 16" W, 1,058.33 feet to the **POINT OF BEGINNING**.

Containing 676,031 square feet or 15.52 acres, more or less.

**(P/O) Tax Map 105//Parcel 048.00 (Gregory) – 57.88 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southeast corner of Tax Map 105, Parcel 47.00, and the westerly most corner of the herein described property;

THENCE, leaving Lot 4 with Parcel 47, N 42° 49' 16" E, 1,058.33 feet to a new iron rod on the southerly right of way line of Roundtree Drive having a fifty-foot wide right of way;

THENCE, along said southerly right of way line the following calls:

With a curve to the right, having a central angle of 05° 00' 29", a radius of 213.51 feet, a tangent of 9.34 feet, and a chord of S 60° 48' 53" E, 18.66 feet for an arc length of 18.66 feet to a new iron rod,

With a curve to the left, having a central angle of 32° 21' 22", a radius of 562.68 feet, a tangent of 163.33 feet, and a chord of S 74° 29' 48" E, 313.70 feet for an arc length of 317.92 feet to a new iron rod,

N 89° 19' 02" E, 593.70 feet to a new iron rod,

With a curve to the right, having a central angle of 11° 00' 51", a radius of 975.00 feet, a tangent of 94.00 feet, and a chord of S 85° 10' 33" E, 187.14 feet for an arc length of 187.43 feet to a new iron rod,

S 79° 40' 07" E, 628.76 feet to a new iron rod,

With a curve to the left, having a central angle of 03° 36' 07", a radius of 1,025.00 feet, a tangent of 32.23 feet, and a chord of S 81° 28' 11" E, 64.43 feet for an arc length of 64.44 feet to a new iron rod,

S 83° 16' 14" E, 82.45 feet to a new iron rod,

With a curve to the left, having a central angle of  $26^{\circ} 15' 57''$ , a radius of 525.00 feet, a tangent of 122.49 feet, and a chord of  $N 83^{\circ} 35' 47'' E$ , 238.57 feet for an arc length of 240.67 feet to a new iron rod,

$N 70^{\circ} 27' 49'' E$ , 663.18 feet;

THENCE, leaving the southerly right of way line of Roundtree Drive with a new line severing Tax Map 105, Parcel 48.00,  $S 09^{\circ} 25' 10'' W$ , passing a new iron rod at 331.71 feet being the northwest corner of Independence Trust Company, Trustee property of record in Record Book 4267, page 704, R.O.S.C., for a total distance of 1,030.70 feet to the northeast corner of Tax Map 111, Parcel 1;

THENCE, leaving the westerly line of Independence Trust Company, Trustee property with Parcel 1, the following calls:

$N 87^{\circ} 05' 39'' W$ , 278.97 feet to an old iron rod,

$N 88^{\circ} 46' 25'' W$ , 1,771.99 feet to an old iron rod,

$N 81^{\circ} 52' 52'' W$ , 421.08 feet to an old iron rod being the northeast corner of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C.;

THENCE, with Lot 4 the following calls:

$N 82^{\circ} 33' 41'' W$ , 262.53 feet to a new iron rod,

$N 81^{\circ} 40' 31'' W$ , 474.01 feet to a new iron rod,

$N 81^{\circ} 41' 16'' W$ , 78.97 feet to a new iron rod,

$N 80^{\circ} 55' 04'' W$ , 1.11 feet to the **POINT OF BEGINNING**.

Containing 2,521,222 square feet or 57.88 acres, more or less.

**Tax Map 111//Parcel 118.00 (Caldwell) – 1.03 Acres**

BEING Lot No. 8 on the Final Subdivision Plat for JAMES AND FAYE CALDWELL, a plat of which is of record in Plat Book 19, pages 210-211, in the Register's Office of Sumner County, Tennessee, reference to which is hereby made for a more complete description of said lot.



**MDRPUD (SUMNER COUNTY) to IR-INDUSTRIAL RESTRICTIVE – 40.78 Acres**

**Tax Map 112//Parcel 013.02 (Holleman)**

**(MDRPUD DISTRICT PORTION) – 40.78 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at the northwest corner of the R1A zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision, of record in Plat Book 10, page 266, R.O.S.C., being N 08° 46' 19" E, 935.26 feet from an old capped one-half inch iron rod stamped RLS 910 being the northwest corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.

THENCE, with Section 7, Sunnymeade Subdivision, N 08° 46' 19" E, 1,018.08 feet to an old iron rod being the northeast corner of Section 7, Sunnymeade Subdivision of record in Plat Book 10, page 266, R.O.S.C., said iron rod being on the southerly line of Lot 6, Gallatin Industrial Center, Phase 3, Resubdivision of Lot 6, of record in Plat Book 28, page 325, R.O.S.C.;

THENCE, leaving Section 7, Sunnymeade Subdivision with said Lot 6, Gallatin Industrial Center, Phase 3, S 82° 54' 13" E, 1,380.01 feet to an old iron rod being the southwest corner of City of Gallatin property, of record in Record Book 4070, page 70, R.O.S.C.;

THENCE, with City of Gallatin property, S 82° 46' 10" E, 356.96 feet to a new iron rod, said iron rod being the northwest corner of James Caldwell, et ux of record in Record Book 4510, page 313, R.O.S.C.;

THENCE, leaving City of Gallatin property with Caldwell, S 06° 45' 51" W, 1,006.12 feet to an old iron rod being a common corner with Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, leaving Caldwell with Alexander, N 83° 14' 58" W, 635.00 feet to an old post;

THENCE, N 83° 14' 58" W, 1,137.61 feet to the **POINT OF BEGINNING**.

Containing 1,776,125 square feet or 40.78 acres, more or less.

**R-15 PRD to IR-INDUSTRIAL RESTRICTIVE – 116.22 Acres**

**Tax Map 111//Parcel 024.00 (Caldwell) – 116.22 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, situated in the City of Gallatin, between State Highway 25 (Hartsville Pike), and Gateway Drive, and between Kemp Road and Brights Lane, being more particularly described as follows:

**BEGINNING** at an old concrete monument on the northerly right-of-way line of State Highway 25, said concrete monument being a common corner with Lot 9, on the Final Subdivision Plat for James & Faye Caldwell of record in Plat Book 19, page 210, in the Register's Office for Sumner County, Tennessee;

THENCE, leaving Lot 9 with said right-of-way N 81° 44' 31" W, 100.00 feet to an old concrete monument being a common corner of Lot 8 of said Final Subdivision Plat for James & Faye Caldwell of record in Plat Book 19, page 211, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Lot 8 of said Final Subdivision Plat for James & Faye Caldwell the following calls:

With a curve to the left having a central angle of 89° 59' 02", a radius of 25.00 feet, a tangent of 24.99 feet, and a chord of N 53° 15' 57" E, 35.35 feet for an arc length of 39.26 feet to an old concrete monument,

N 08° 16' 26" E, 315.22 feet to an old concrete monument being the northeast corner of Lot 8,

N 81° 48' 30" W, 1,091.85 feet to an old concrete monument being the northwest corner of Lot 1, James & Faye Caldwell, of record in Plat Book 19, page 211, same being on the easterly line of Wilson Scott Webster, et ux, of record in Record Book 3463, page 426, R.O.S.C.;

THENCE, leaving Caldwell with Webster, N 06° 44' 59" E, passing a new iron rod at 921.90 feet being a common corner with Webster and Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C., in all for a total distance of 1,869.47 feet to an old iron rod being the northeast corner of Alexander, a common corner with Henry M. Holleman of record in Record Book 4118, page 371, R.O.S.C.;

THENCE, leaving Webster with Holleman, N 06° 45' 51" E, 1,006.12 feet to a new iron rod on the southerly line of City of Gallatin property of record in Record Book 4070, page 790, R.O.S.C.;

THENCE, leaving Holleman with said southerly line of City of Gallatin property, S 83° 12' 10" E, 1,757.52 feet to a new iron rod on the westerly line of Walter H. Stephenson, II of record in Record Book 3432, page 342, R.O.S.C.;

THENCE, leaving said southerly line of City of Gallatin property with Walter H. Stephenson, II, S 07° 22' 42" W, 2,700.71 feet to an old capped iron rod stamped RLS #910 being a common corner with the aforementioned James & Faye Caldwell of record in Plat Book 19, Page 211, R.O.S.C., same being the northwest corner of Lot 13;

THENCE, leaving Walter H. Stephenson, II, with James & Faye Caldwell the following calls:

S 07° 18' 58" W, 217.06 feet to a new iron rod,

N 81° 48' 30" W, 584.70 feet to an old concrete monument being the northwest corner of Lot 9,

S 08° 16' 26" W, 315.25 feet to an old concrete monument,

With a curve to the left, having a central angle of 90° 01' 48", a radius of 25.00 feet, a tangent of 25.01 feet, and a chord of S 36° 43' 37" W, 35.36 feet for an arc length of 39.28 feet to the **POINT OF BEGINNING**.

Containing 5,062,733 square feet or 116.22 acres, more or less.

**A-Agricultural Residential to IR-INDUSTRIAL RESTRICTIVE – 6.25 Acres**

**Tax Map 111/Parcel 001.01 (City of Gallatin) – 6.25 Acres**

BEING located in the 2<sup>nd</sup> Civil District of Sumner County, Tennessee, being north of State Route 25 (Hartsville Pike) and being a portion of the Gregory Real Estate, LLC Property as recorded in Record Book 1811, Page 783, in the Register's Office of Sumner County, Tennessee and being more particularly described as follows:

BEGINNING at an existing 1/2" iron pin monument in the northerly line of the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property as recorded in Record Book 3527, page 568, in the Register's Office of Sumner County, Tennessee, said monument also being the southeasterly corner common to Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00, recorded as Plat Book 28, Page 193, in the Register's Office of Sumner County, Tennessee;

Thence leaving said Patricia and Joseph Cole Property and continuing along with Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00, N 07°07'14" E a distance of 100.00' to a new iron pin monument;

Thence leaving said Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00 and continuing along with a new severance line across the Gregory Real Estate, LLC Property the following three calls: S 82°46'10" E a distance of 356.78' to a new iron pin monument;

Thence S 83°12'10" E a distance of 1757.39' to a new iron pin monument;

Thence S 82°54'50" E a distance of 610.42' to a new iron pin monument, said monument being a point in the westerly line of the Fred Kelly Property as recorded in Deed Book 113, Page 9, in the Register's Office of Sumner County, Tennessee;

Thence continuing along with the westerly line of the Fred Kelly Property, S 07°09'50" W a distance of 100.00' to a new iron pin monument, said monument being a northeasterly corner common to the Walter Stephenson Property as recorded in Record Book 3432, Page 342, in the Register's Office of Sumner County, Tennessee;

Thence leaving said Fred Kelly Property and continuing along with the northerly line of the Walter Stephenson Property, N 82°54'50" W a distance of 610.03' to a new iron pin monument, said monument being the northeasterly corner common to the James and Faye Caldwell Property as recorded in Record Book 1172, Page 107, in the Register's Office of Sumner County, Tennessee;

Thence leaving said Walter Stephenson Property and continuing along with the James and Faye Caldwell Property, N 83°12'10" W a distance of 1757.52' to a new iron pin monument, said monument being a northeasterly corner common to the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property;

Thence leaving said James and Faye Caldwell Property and continuing along with the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property, N 82°46'10" W a distance of 356.97' to an existing 1/2" iron pin monument, which is the point of beginning, having an area of 272,456 square feet, 6.25 acres more or less.

There is included with the above description a 60' wide easement for ingress and egress along the southerly portion as recorded in Deed Book 541, Page 517 in the Register's Office of Sumner County, Tennessee.

There is included with the above description a 60' wide by 100' long for ingress and egress easement described as follows: BEGINNING at an existing 1/2" iron pin monument in the northerly line of the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property as recorded in Record Book 3527, page 568, in the Register's Office of Sumner County, Tennessee, said monument also being the southeasterly corner common to Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00, recorded as Plat Book 28, Page 193, in the Register's Office of Sumner County, Tennessee;

Thence continuing along with the northerly lines of the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property and the James and Faye Caldwell Property the following two calls: S 82°46'10" E a distance of 356.97' to a new iron pin monument;

Thence S 83°12'10" E a distance of 1727.48' to a new iron pin monument, said monument being the TRUE POINT OF BEGINNING;

Thence continuing along with a 60' wide by 100' long for ingress and egress easement the following six calls: N 06°47'50" E a distance of 100.00' to a point;

Thence S 83°12'10" E a distance of 30.30' to a new iron pin monument;

Thence S 82°54'50" E a distance of 30.21' to a point;

Thence S 07°05'10" W a distance of 100.00' to a point;

Thence N 82°54'50" W a distance of 29.96' to a new iron pin monument;

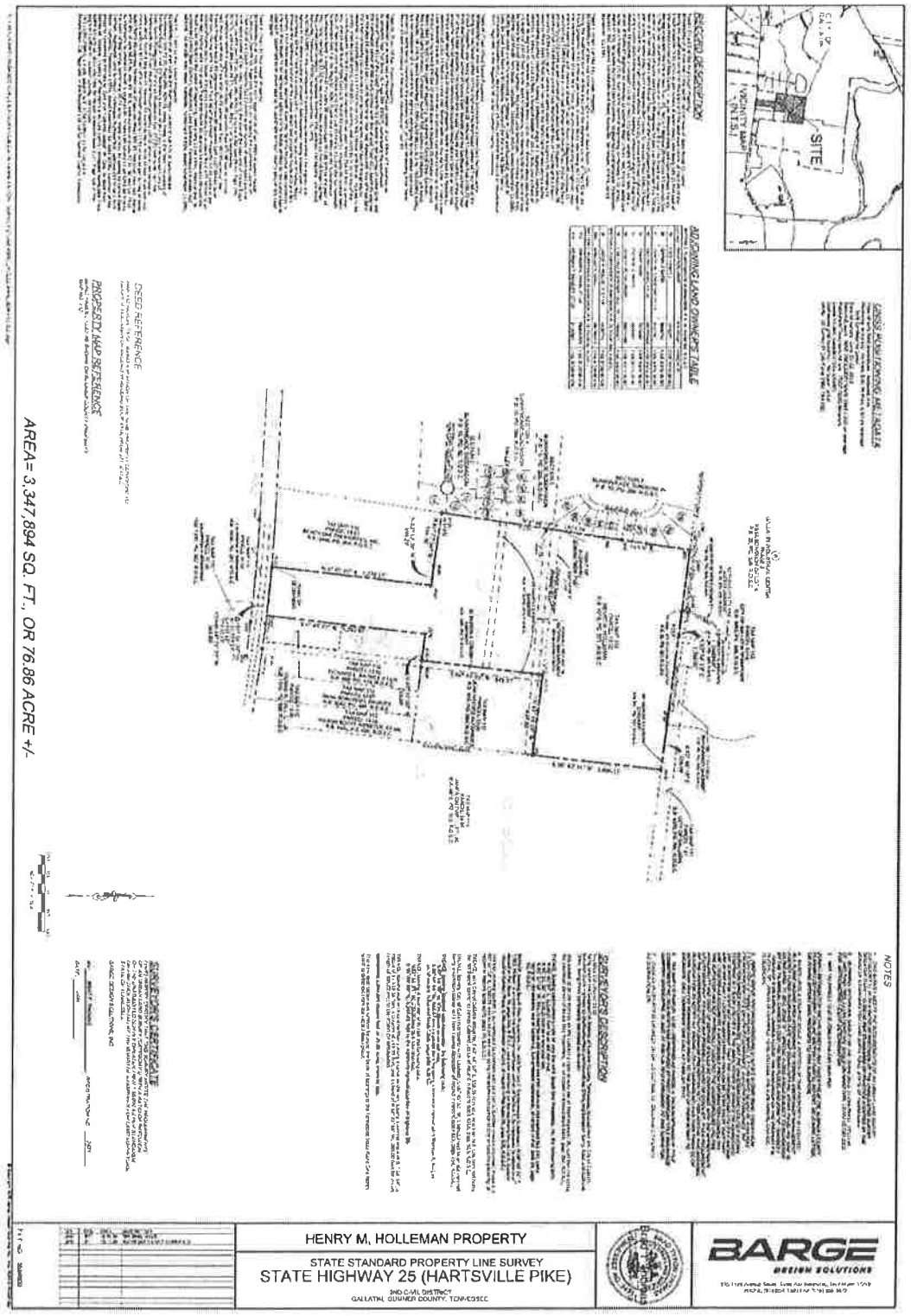
Thence N 83°12'10" W a distance of 30.04' to a point, which is the point of beginning, having an area of 6,025 square feet, 0.14 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

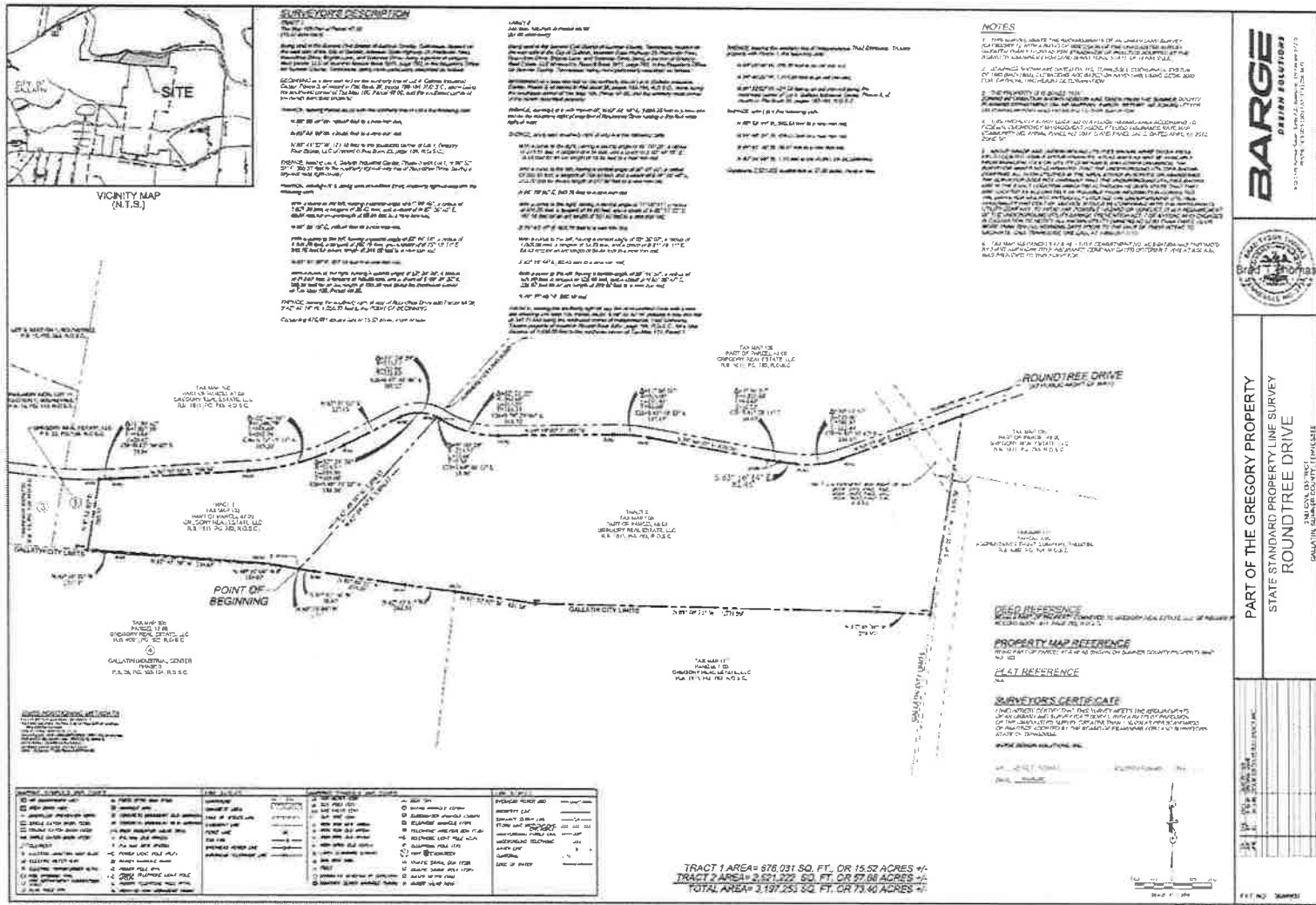
This description was prepared by Blue Ridge Surveying, Inc., certified by Brian M. Reifschneider RLS #2487, and dated November 10, 2014.



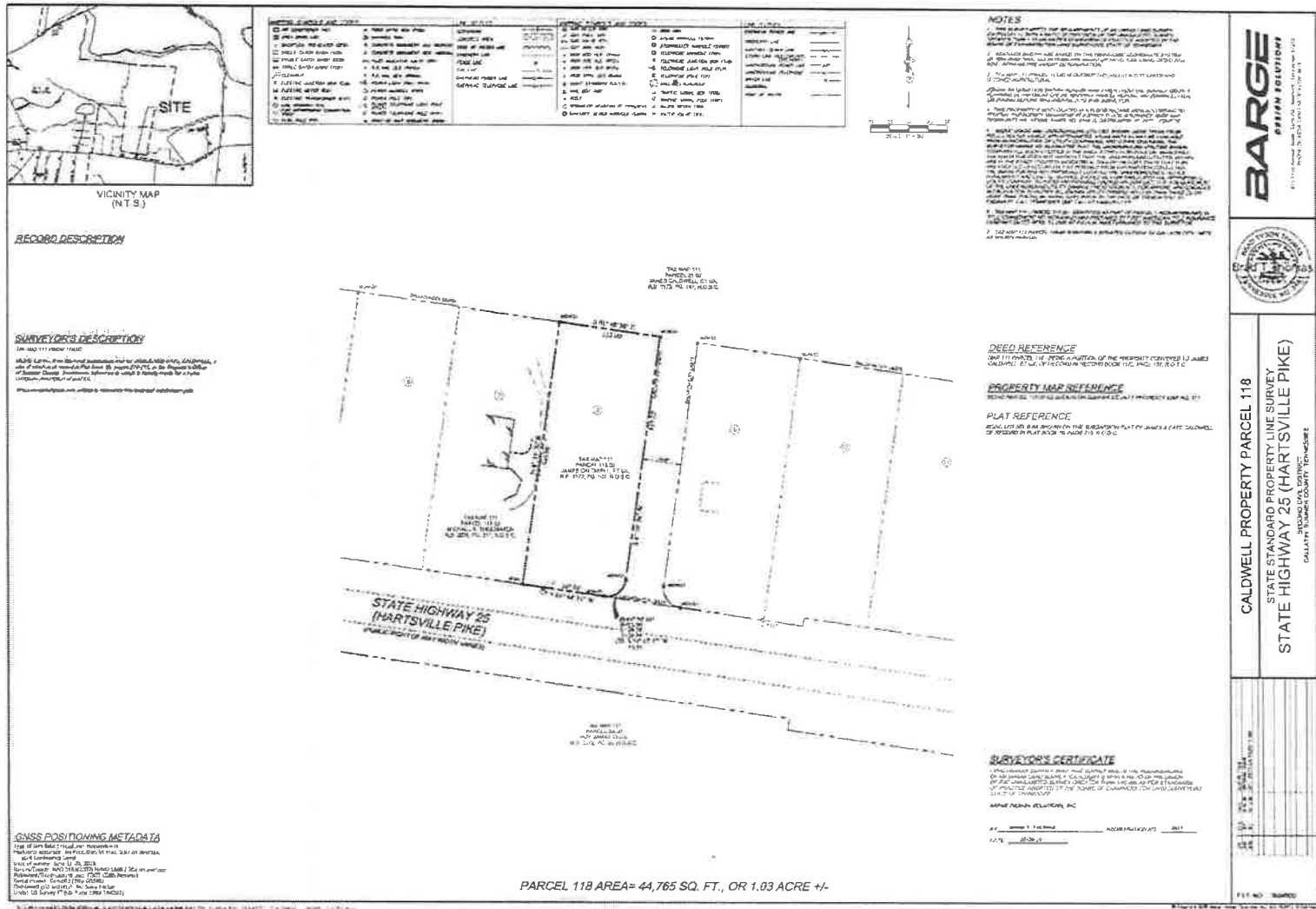
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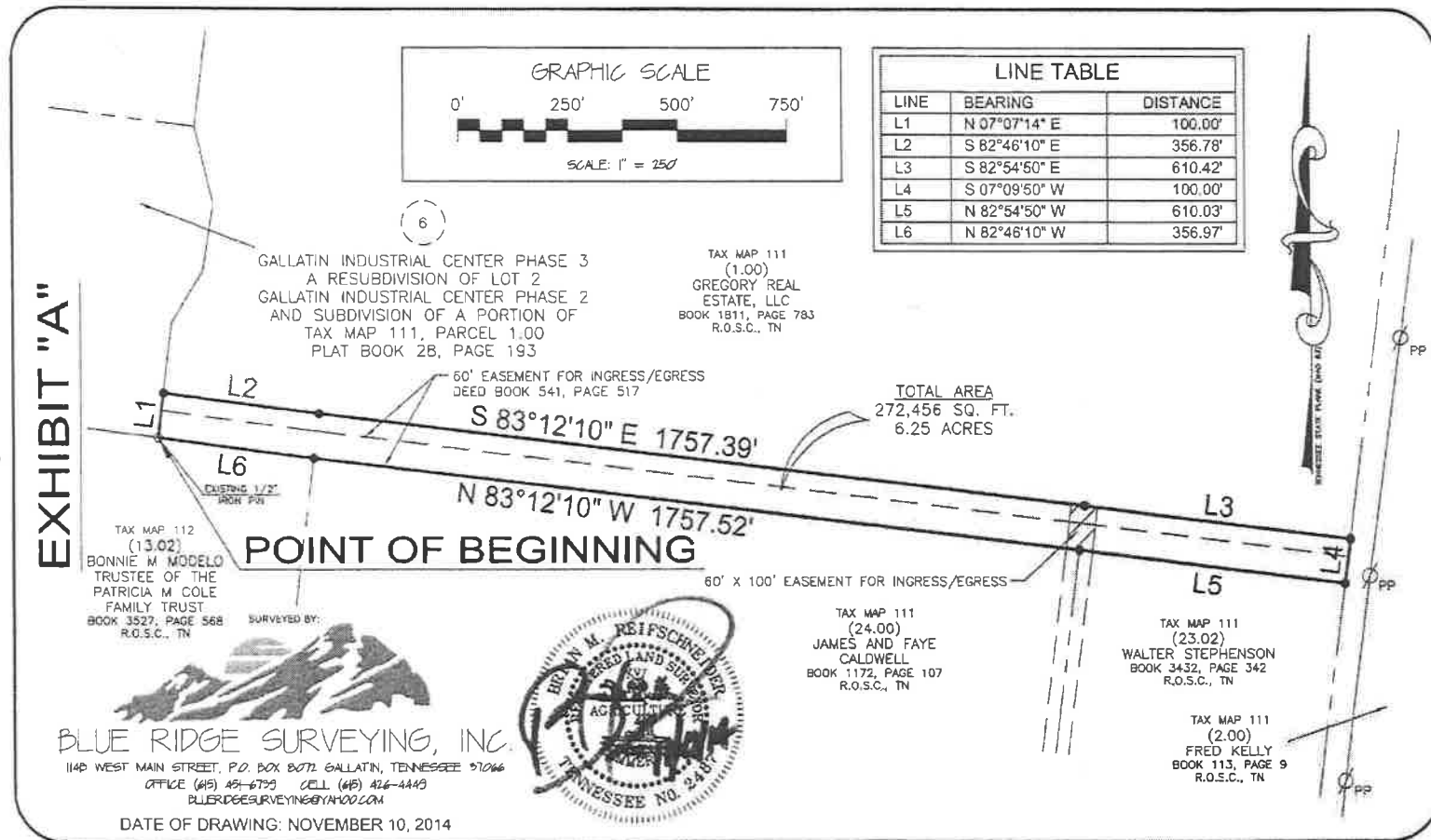
AREA= 3,347,894 SQ. FT., OR 76.86 ACRE +/-







375/1032,  
10 08 37 46  
MOS 181  
10 25 37 46 10 37 46 10 46 37 46



**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 26, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

**SUBJECT:**

Ordinance No. O2006-25 of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres.

**SUMMARY:**

An Ordinance of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres, located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

**RECOMMENDATION:**

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning request in GMRPC Resolution No. 2020-078 (ZONE-2020-0012).

**ATTACHMENT:**

☐ Resolution  
☒ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

Approved ☒  
Rejected ☐  
Deferred ☐

**Notes:**

**ORDINANCE NO. 02005-22**

**AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 0.67 +/- ACRE LOT FROM THE R-40 LOW DENSITY RESIDENTIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE MONTGOMERY OFFICE, LOCATED SOUTH OF NASHVILLE PIKE AND EAST OF LAKESHORE DRIVE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the owner of property submitted a complete application to rezone a 0.67 +/- acre lot with a Preliminary Master Development Plan for the Montgomery Office, located in the City of Gallatin, Tennessee; and

**WHEREAS**, the zoning map amendment conforms to the general plan of the area including the established Nashville Pike Office Corridor Community Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

**WHEREAS**, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

**WHEREAS**, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2020-062; and

**WHEREAS**, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

**WHEREAS**, the City Council approved by majority vote of the members present the rezoning request of the described property; and

**NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:**

**Section 1.** The City Council of the City of Gallatin does hereby rezone a 0.67 +/- acre lot from the R-40 Low Density Residential District to the MRO-Multiple Residential and Office District, as described in Exhibit 'A' and approves the Preliminary Master Development Plan for the Montgomery Office as described in Exhibit 'B'.

**Section 2.** The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

**Section 3.** All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

**Section 4.** If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

**Section 5.** This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: May 19, 2020

PASSED SECOND READING:

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MAYOR PAIGE BROWN

ATTEST:

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CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

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SUSAN HIGH-MACAULEY  
CITY ATTORNEY

Exhibit A: Legal Description  
Exhibit B: Description of PMDP

## EXHIBIT 'A'

### Legal Description (Tax Map 125M, Group B, Parcel 008.00)

The property described herein is located in the 3<sup>rd</sup> Civil District of Sumner County, Tennessee; located inside the City Limits of Gallatin, Tennessee; situated on the south side of Nashville Pike (also known as U.S. Highway 31E), approximately 286 feet north of the intersection with Lakeshore Drive; being Job Number 20022TRe as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 3<sup>rd</sup> day of March, 2020 in detail as follows:

Lot 6 of Leeland Heights Subdivision of record in Plat Book 1 Page 28.

**Beginning** on a half inch iron re-bar set 0.93 feet on the south right-of-way of Nashville Pike (also known as U.S. Highway 31E, being found approximately 72.5 feet from the center of said road, northeast corner of Lot 7A of The Re-Subdivision of Lot 7 and Part of Lot 8 of Leeland Heights Subdivision (P.B. 22 P. 106-owner Karen Carman Armstrong, R.B. 4124 P. 112), and being the northwest corner of the herein described tract, said iron re-bar set being further located 0.93 feet southeast of a five eights-inch iron re-bar found, thence leaving the beginning corner and running with the south right-of-way of Nashville Pike N 57 degrees 58 minutes 24 seconds E 95.25 feet to a half inch iron re-bar found in the south right-of-way of Nashville Pike, being found 72.5 feet from the center of said pike, northwest corner of Lot 5 of Leeland Heights Subdivision (P.B. 1 P. 28, owner Katherine Ann Hart, R.B. 3580 P. 419), thence running with the west line of Lot 5, S 32 degrees 59 minutes 39 seconds E 301.39 feet to a half inch iron re-bar set in the line of Katherine Carman Armstrong (R.B. 4121 P. 112), southwest corner of Lot 5 of Leeland Heights Subdivision, thence running with the line of Katherine Carmen Armstrong and picking up with the line of Mary Beth & Kathy Maxwell (R.B. 4489 P. 562) S 57 degrees 40 minutes 19 seconds W 97.27 feet to a five eights inch iron re-bar found in the north line of Mary Beth & Kathy Maxwell, southeast corner of Lot 7A of The Re-Subdivision of Lot 7 and Part of Lot 8 of Leeland Heights Subdivision (P.B. 22 P. 106-owner Karen Carman Armstrong, R.B. 4124 P. 112), thence running with the east line of Lot 7A, N 32 degrees 36 minutes 32 seconds W 301.87 feet to the beginning, containing 29,033.6 square feet or 0.67 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, right-of-way's, liens, leases, encroachments, utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All half inch iron re-bars' set are 18-inch-long and are capped with a red plastic cap stamped R.D. Graves T.L.S. 1628, unless otherwise noted.

The above described tract of land deeded to Malcolm S. Climer and wife Patricia J. Climer, from Donald A. Mills and wife, Mari Lilly Mills of record in Deed Book 512 Pages 211-212 of record in the Office of the Register for Sumner County, Tennessee.

## EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for the Montgomery Office, consisting of a one (1) sheet plan, prepared by GreenLID Design, LLC of Gallatin, TN, with Project No. 20.02G, with a plan date of February 28, 2020 and a revision date of May 4, 2020.



**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 12, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

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**SUBJECT:**

An Ordinance No. 02005-22 of the City of Gallatin, Sumner County, Tennessee, rezoning a 0.67 +/- acre lot from the R-40 Low Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for the Montgomery Office.

**SUMMARY:**

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 0.67 +/- acre lot (125M/B/008.00) from the R-40 Low Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for the Montgomery Office, located south of Nashville Pike and east of Lakeshore Drive; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

**RECOMMENDATION:**

On April 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2020-062 (File #ZONE-2020-0009).

**ATTACHMENT:**

☐ Resolution  
☒ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

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Approved ☒  
Rejected ☐  
Deferred ☐

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**Notes:**

ORDINANCE APPROPRIATING \$10,000 FOR  
CENSUS RAPID RESPONSE GRANT

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$10,000 is hereby appropriated from the General Fund Donations, account number 110-36710, to Mayor Census Rapid Recovery, account number 11041310-236-253, for grant funding from the National League of Cities to be used to improve responses in hard-to-count census areas of the city; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: June 2, 2020.

PASSED SECOND READING:

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MAYOR PAIGE BROWN

ATTEST:

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CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

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SUSAN HIGH-MCAULEY  
CITY ATTORNEY

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

05/26/2020

**DEPARTMENT:**    **Finance**

**AGENDA #**

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**SUBJECT:**

Ordinance appropriating Census Rapid Response grant

**SUMMARY:**

Ordinance appropriating \$10,000 from the National League of Cities for the Census Rapid Response grant, targeting hard-to-count areas of the city.

**RECOMMENDATION:**

approval

**ATTACHMENT:**

☐ Resolution  
☒ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

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Approved  
Rejected  
Deferred

|                                     |
|-------------------------------------|
| <input checked="" type="checkbox"/> |
| <input type="checkbox"/>            |
| <input type="checkbox"/>            |

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**Notes:**

ORDINANCE APPROPRIATING \$15,510 FOR  
POOLED CITY HALL VEHICLE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$15,510 is hereby appropriated from the General Fund Sale of Equipment, account number 110-36330, to Finance Department Transportation Equipment, account 11041500-941, for the purchase of a vehicle to be shared by Attorney, Planning, Information Technology and Finance; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: June 2, 2020.

PASSED SECOND READING:

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MAYOR PAIGE BROWN

ATTEST:

---

CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

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SUSAN HIGH-MCAULEY  
CITY ATTORNEY

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

05/26/2020

**DEPARTMENT:**     **Finance**

**AGENDA #**

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**SUBJECT:**

Ordinance appropriating funds from the sale of several old vehicles

**SUMMARY:**

Ordinance appropriating \$15,510 from the sale of several old vehicles. The funds will be used to purchase one good, used, reliable pooled vehicle for the Attorney's office, Information Technology, Planning and Finance.

**RECOMMENDATION:**

approval

**ATTACHMENT:**

|                                     |                   |
|-------------------------------------|-------------------|
| <input type="checkbox"/>            | <b>Resolution</b> |
| <input checked="" type="checkbox"/> | <b>Ordinance</b>  |

|                          |                       |
|--------------------------|-----------------------|
| <input type="checkbox"/> | <b>Correspondence</b> |
| <input type="checkbox"/> | <b>Contract</b>       |

|                          |                       |
|--------------------------|-----------------------|
| <input type="checkbox"/> | <b>Bid Tabulation</b> |
| <input type="checkbox"/> | <b>Other</b>          |

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|                 |                                     |
|-----------------|-------------------------------------|
| <b>Approved</b> | <input checked="" type="checkbox"/> |
| <b>Rejected</b> | <input type="checkbox"/>            |
| <b>Deferred</b> | <input type="checkbox"/>            |

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**Notes:**

**RESOLUTION NO. R2006-30**

**A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF FIVE (5) PARCELS TOTALING 524.14 +/- ACRES (TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND 111//118.00), LOCATED SOUTH OF ROUNDTREE DRIVE, WEST OF BRIGHTS LANE, AND NORTH OF HARTSVILLE PIKE, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the City of Gallatin received a petition by property owners for the annexation of five (5) parcels totaling 524.14 +/- acres contiguous to the City; and

**WHEREAS**, the area proposed for annexation to the City of Gallatin is substantially contiguous to the corporate limits to the City and within the City's Urban Growth Boundary; and

**WHEREAS**, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, has reviewed and recommended approval of this Plan of Service, as contained in GMRPC Resolution No. 2020-077.

**NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:**

**SECTION 1.** Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

**SECTION 2.** This Resolution shall be effective upon adoption, the public welfare requiring such.

**IT IS SO ORDERED.**

PRESENT AND VOTING:

AYE:

NAY:

DATED:

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MAYOR PAIGE BROWN

ATTEST:

---

CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

---

SUSAN HIGH-MCAULEY  
CITY ATTORNEY

Exhibit 'A' – Legal Descriptions of annexed territory  
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

**Tax Map 111/Parcel 002.00 (Argent Trust) – 372.85 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located east of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right of way of line of State Highway 25 (Hartsville Pike), having a right of way that varies, said iron rod being the southwest corner of The Aileen Hoffer Revocable Trust, of record in Book 3241, Page 747, Register's Office for Sumner County, Tennessee;

THENCE, leaving the Aileen Hoffer Revocable Trust along the right of way of State Highway 25 (Hartsville Pike) with a curve to the right having a central angle of  $10^{\circ} 27' 46''$ , a radius of 2,013.48 feet, a tangent of 184.35 feet, and a chord of  $S 82^{\circ} 03' 22'' W$ , 367.17 feet for an arc length of 367.68 feet to the easterly line of the Cumberland Electric Membership Corporation, of record in Record Book 3446, Page 43, R.O.S.C.;

THENCE, leaving said right of way line with the easterly line of Cumberland Electric Membership Corporation,  $N 31^{\circ} 13' 25'' W$ , 344.50 feet to an old iron rod being a common corner with Walter H. Stephenson, II, of record in Record Book 3432, Page 342, R.O.S.C.;

THENCE, leaving Cumberland Electric Membership Corporation continuing with Walter H. Stephenson, II, the following calls:

$N 31^{\circ} 35' 40'' W$ , 1,553.57 feet to an old iron rod,

$N 20^{\circ} 06' 17'' W$ , 964.14 feet to an old iron rod,

$N 07^{\circ} 20' 05'' E$ , 918.22 feet to an old iron rod being the southeasterly corner of City of Gallatin property of record in Record Book 4070, Page 790, R.O.S.C.;

THENCE, continuing with City of Gallatin property,  $N 07^{\circ} 20' 05'' E$ , 100.77 feet to an old iron rod being a common corner with Gregory Real Estate, LLC, of record in Record Book 1811, Page 783, R.O.S.C.;

THENCE, leaving City of Gallatin property continuing with the Gregory Real Estate, LLC, the following calls:

$N 07^{\circ} 03' 56'' E$ , 2,855.86 feet to an old iron rod,

$N 09^{\circ} 25' 10'' E$ , 698.99 feet to an old iron rod,

$S 80^{\circ} 54' 57'' E$ , 73.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",



N 39° 51' 25" E, 43.45 feet to an old iron rod,

S 79° 51' 47" E, 3,324.96 feet a new one-half inch iron rod with cap stamp "Barge Design" on the westerly right of way of Brights Lane having a forty-foot wide right of way;

THENCE, with said westerly right of way line of Brights Lane the following calls:

With a curve to the right having a central angle of 05° 08' 28", with a radius of 1,817.94 feet, a tangent of 81.62 feet and a chord of S 16° 49' 02" E, 163.07 feet for an arc length of 163.12 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 19° 23' 16" E, 135.91 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 02° 58' 06", a radius of 3,811.96 feet, a tangent of 98.76 feet and a chord of S 17° 54' 13" E, 197.46 feet for an arc length of 197.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 16° 25' 11" E, 116.89 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 17° 57' 04", a radius of 754.75 feet, a tangent of 119.21 feet and a chord of S 07° 26' 39" E, 235.50 feet for an arc length of 236.46 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 29° 02' 15", a radius of 468.59 feet, a tangent of 121.35 feet and a chord of S 16° 03' 01" W, 234.95 feet for an arc length of 237.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 30° 34' 08" W, 39.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the left having a central angle of 30° 53' 43", a radius of 195.66 feet, a tangent of 54.07 feet and a chord of S 15° 07' 17" W, 104.23 feet for an arc length of 105.50 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 00° 19' 35" E, 216.94 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 01° 55' 03" W, 394.02 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 44' 49" W, 987.04 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 38' 08" W, 552.81 feet to a new one-half inch iron rod with cap stamp "Barge Design" to the common corner of the James R. Baker and Cathy D. Baker, of record in Record Book 428, Page 400, R.O.S.C.;

THENCE, leaving said westerly right of way of Brights Lane with Baker S 85° 05' 55" W, 1,190.18 feet to an old iron pipe being a common corner of Lot 22 and Lot 23, Oakland Section Two, of record in Plat Book 10, page 119, R.O.S.C.;

THENCE, S 65° 49' 48" W, 1,229.97 feet to an old iron rod being a common corner with Lot 41, Oakland Section Three, of record in Plat Book 10, page 259, and Edward J. Bellusor or record in Record Book 168, page 795, R.O.S.C.;

THENCE, leaving Oakland, Section Three with Bellusor the following calls:

S 65° 39' 06" W, 425.47 feet to an existing iron pipe,

S 26° 42' 06" E, 103.11 feet to a tree,

S 71° 23' 11" W, 214.01 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with Joseph Daniel Harsh, of record in Record Book 214, page 565, R.O.S.C.;

THENCE, with Joseph Daniel Harsh the following calls:

S 68° 21' 58" W, 124.68 feet,

S 49° 00' 39" W, 247.65 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with The Aileen Hoffer Revocable Trust, of record in Record Book 3241, page 747, R.O.S.C.;

THENCE, leaving Harsh with Aileen Hoffer Revocable Trust the following calls:

S 49° 46' 43" W, 518.76 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 37° 32' 45" E, 668.20 feet to an old iron rod,

S 37° 23' 56" E, 1,386.97 feet to the **POINT OF BEGINNING**.

Containing 16,241,440 square feet or 372.85 acres.

**Tax Map 112//Parcel 013.02 (Holleman) – 76.86 Acres**

**(R1A DISTRICT PORTION) – 36.08 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right-of-way line of State Highway 25, said iron rod being the southeast corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Beach One Properties, Inc. the following calls:

N 06° 45' 07" E, 1,250.31 feet to an old iron rod,  
N 83° 15' 30" W, 159.21 feet to a new iron rod,  
N 81° 17' 54" W, 416.76 feet to an old capped one-half inch iron rod stamped RLS 910, same being on the easterly line of Section 2, Sunnymead Subdivision, of record in Plat Book 10, page 62, R.O.S.C.;

THENCE, leaving Beach One Properties, Inc. with Section 2, Sunnymead Subdivision, N 08° 46' 19" E, 935.26 feet to the southwesterly corner of the MDR PUD zoning, same being on the easterly line of Lot 86, Section 7, Sunnymead Subdivision of record in Plat book 10, page 266, R.O.S.C.;

THENCE, leaving Lot 86, Section 7, Sunnymead Subdivision with the southerly boundary of said MDR PUD zoning line, S 83° 14' 58" E, 1,137.61 feet to a post being the northwest corner of Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, with Alexander, S 06° 45' 51" W, 948.87 feet to an old iron rod being a common corner with Thomas R. Hall, et ux, of record in Record Book 1318, page 688, R.O.S.C.;

THENCE, leaving Alexander with Hall the following calls:

N 83° 51' 00" W, 210.00 feet to a new iron rod,  
S 06° 44' 59" W, 1,242.83 feet to the northerly right-of-way line of Highway 25;

THENCE, leaving Hall with said northerly along a curve to the left, having a central angle of 03° 12' 30", a radius of 11519.16 feet, a tangent of 322.60 feet, and a chord of N 83° 42' 47" W, 644.95 feet for an arc length of 645.04 feet to the **POINT OF BEGINNING**.

Containing 1,571,769 square feet or 36.08 acres, more or less.

**(MDRPUD DISTRICT PORTION) – 40.78 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp

Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at the northwest corner of the R1A zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision, of record in Plat Book 10, page 266, R.O.S.C., being N 08° 46' 19" E, 935.26 feet from an old capped one-half inch iron rod stamped RLS 910 being the northwest corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.

THENCE, with Section 7, Sunnymeade Subdivision, N 08° 46' 19" E, 1,018.08 feet to an old iron rod being the northeast corner of Section 7, Sunnymeade Subdivision of record in Plat Book 10, page 266, R.O.S.C., said iron rod being on the southerly line of Lot 6, Gallatin Industrial Center, Phase 3, Resubdivision of Lot 6, of record in Plat Book 28, page 325, R.O.S.C.;

THENCE, leaving Section 7, Sunnymeade Subdivision with said Lot 6, Gallatin Industrial Center, Phase 3, S 82° 54' 13" E, 1,380.01 feet to an old iron rod being the southwest corner of City of Gallatin property, of record in Record Book 4070, page 70, R.O.S.C.;

THENCE, with City of Gallatin property, S 82° 46' 10" E, 356.96 feet to a new iron rod, said iron rod being the northwest corner of James Caldwell, et ux of record in Record Book 4510, page 313, R.O.S.C.;

THENCE, leaving City of Gallatin property with Caldwell, S 06° 45' 51" W, 1,006.12 feet to an old iron rod being a common corner with Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, leaving Caldwell with Alexander, N 83° 14' 58" W, 635.00 feet to an old post;

THENCE, N 83° 14' 58" W, 1,137.61 feet to the **POINT OF BEGINNING**.

Containing 1,776,125 square feet or 40.78 acres, more or less.

**(P/O) Tax Map 105//Parcel 047.00 (Gregory) – 15.52 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southwest corner of Tax Map 105, Parcel 48.00, and the southeast corner of the herein described property;

THENCE, leaving Parcel 48.00 with the northerly line of Lot 4 the following calls:

N 80° 55' 04" W, 189.07 feet to a new iron rod,

N 85° 43' 58" W, 734.65 feet to a new iron rod,

N 85° 41' 02" W, 171.18 feet to the southeast corner of Lot 1, Gregory Real Estate, LLC of record in Plat Book 23, page 134, R.O.S.C.;

THENCE, leaving Lot 4, Gallatin Industrial Center, Phase 3 with Lot 1, N 09° 52' 02" E, 365.51 feet to the southerly right-of-way line of Roundtree Drive, having a fifty-foot wide right-of-way;

THENCE, leaving Lot 1, along said Roundtree Drive southerly right-of-way line the following calls:

With a curve to the left, having a central angle of 01° 50' 42", a radius of 1,827.39 feet, a tangent of 29.42 feet, and a chord of N 87° 30' 40" E, 58.84 feet for an arc length of 58.84 feet to a new iron rod,

N 86° 35' 19" E, 708.84 feet to a new iron rod,

With a curve to the left, having a central angle of 22° 44' 16", a radius of 1,306.79 feet, a tangent of 262.76 feet, and a chord of N 75° 13' 11" E, 515.20 feet for an arc length of 518.60 feet to a new iron rod,

N 63° 51' 03" E, 327.13 feet to a new iron rod,

With a curve to the right, having a central angle of 52° 24' 30", a radius of 213.51 feet, a tangent of 105.08 feet, and a chord of S 89° 31' 22" E, 188.56 feet for an arc length of 195.30 feet being the northwest corner of Tax Map 105, Parcel 48.00;

THENCE, leaving the southerly right of way of Roundtree Drive with Parcel 48.00, S 42° 49' 16" W, 1,058.33 feet to the **POINT OF BEGINNING**.

Containing 676,031 square feet or 15.52 acres, more or less.

**(P/O) Tax Map 105//Parcel 048.00 (Gregory) – 57.88 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southeast corner of Tax Map 105, Parcel 47.00, and the westerly most corner of the herein described property;

THENCE, leaving Lot 4 with Parcel 47, N 42° 49' 16" E, 1,058.33 feet to a new iron rod on the southerly right of way line of Roundtree Drive having a fifty-foot wide right of way;

THENCE, along said southerly right of way line the following calls:

With a curve to the right, having a central angle of 05° 00' 29", a radius of 213.51 feet, a tangent of 9.34 feet, and a chord of S 60° 48' 53" E, 18.66 feet for an arc length of 18.66 feet to a new iron rod,

With a curve to the left, having a central angle of 32° 21' 22", a radius Of 562.68 feet, a tangent of 163.33 feet, and a chord of S 74° 29' 48" E, 313.70 feet for an arc length of 317.92 feet to a new iron rod,

N 89° 19' 02" E, 593.70 feet to a new iron rod,

With a curve to the right, having a central angle of 11° 00' 51", a radius of 975.00 feet, a tangent of 94.00 feet, and a chord of S 85° 10' 33" E, 187.14 feet for an arc length of 187.43 feet to a new iron rod,

S 79° 40' 07" E, 628.76 feet to a new iron rod,

With a curve to the left, having a central angle of 03° 36' 07", a radius of 1,025.00 feet, a tangent of 32.23 feet, and a chord of S 81° 28' 11" E, 64.43 feet for an arc length of 64.44 feet to a new iron rod,

S 83° 16' 14" E, 82.45 feet to a new iron rod,

With a curve to the left, having a central angle of 26° 15' 57", a radius of 525.00 feet, a tangent of 122.49 feet, and a chord of N 83° 35' 47" E, 238.57 feet for an arc length of 240.67 feet to a new iron rod,

N 70° 27' 49 " E, 663.18 feet;

THENCE, leaving the southerly right of way line of Roundtree Drive with a new line severing Tax Map 105, Parcel 48.00, S 09° 25' 10" W, passing a new iron rod at 331.71 feet being the northwest corner of Independence Trust Company, Trustee property of record in Record Book 4267, page

704, R.O.S.C., for a total distance of 1,030.70 feet to the northeast corner of Tax Map 111, Parcel 1;

THENCE, leaving the westerly line of Independence Trust Company, Trustee property with Parcel 1, the following calls:

N 87° 05'39" W, 278.97 feet to an old iron rod,

N 88° 46'25" W, 1,771.99 feet to an old iron rod,

N 81° 52'52" W, 421.08 feet to an old iron rod being the northeast corner of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C.;

THENCE, with Lot 4 the following calls:

N 82° 33' 41" W, 262.53 feet to a new iron rod,

N 81° 40' 31" W, 474.01 feet to a new iron rod,

N 81° 41' 16" W, 78.97 feet to a new iron rod,

N 80° 55' 04" W, 1.11 feet to the **POINT OF BEGINNING**.

Containing 2,521,222 square feet or 57.88 acres, more or less.

**Tax Map 111//Parcel 118.00 (Caldwell) – 1.03 Acres**

BEING Lot No. 8 on the Final Subdivision Plat for JAMES AND FAYE CALDWELL, a plat of which is of record in Plat Book 19, pages 210-211, in the Register's Office of Sumner County, Tennessee, reference to which is hereby made for a more complete description of said lot.

**EXHIBIT 'B'**  
**PLAN OF SERVICE FOR**  
**TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND**  
**111//118.00**  
**(ANNX-2020-0006) pursuant to Tenn. Code Annotated § 6-51-102(b)**

**A. Potable Water**

The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that there is sufficient water infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation area currently have this service available. The developer will be responsible for all costs associated with the infrastructure improvements necessary to support the annexation and development of these properties.

**B. Sanitary Sewer**

The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that there is sufficient sanitary sewer infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation area currently have this service available. The developer will be responsible for all costs associated with the infrastructure improvements necessary to support the annexation and development of these properties.

**C. Street Construction and Maintenance**

No new public right-of-way is proposed to be annexed with this request. Any new roadways and future maintenance needs will be dependent upon subsequent development and shall be evaluated with future site plans and subdivision plats.

**D. Solid Waste and Refuse Collection**

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Industry and business will have access to city operated resource recovery programs and services. Depending on specific users, some or all sanitary waste collection services may be contracted to private service providers/operators.

**E. Planning and Zoning Services**

Upon annexation, planning and zoning services, including zoning enforcement, will be provided by the City of Gallatin.

**F. Building Inspections and Code Enforcement Services**

Upon annexation, building and code inspection services will be provided by the City of Gallatin.

**G. Fire Protection**

The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the project's (Wool Hawk's) location and distance from primary and secondary response fire stations, the size of the project, as well as the extended emergency apparatus travel/response times required for on-scene arrival,



the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town.

The Fire Department recommended that Fire Station #6 be considered as a part of this project. The location of the station will be on Commerce Drive (112//016.00) approximately 2.1 miles from the majority of the property and will require an average response time of five (5) minutes. As the annexed area is developed, fire protection will be evaluated to determine the sufficient levels of service. The City will begin the process of planning and construction of the fire station to serve the area.

**H. Police Protection**

After the effective date of the annexation, the Gallatin Police Department will provide police patrol, response to calls, and other routine police services to the properties. The Police Department indicated that additional police officers and departmental vehicles will be needed to provide service to this area.

**I. Animal Control**

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

**J. Recreational Facilities and Programs**

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. However, the City does not anticipate any residential development on the property so the need for additional recreation resources to maintain suitable Levels of Service is not anticipated.

**K. Street Lighting and Electric Service**

Cumberland Electric Membership Corporation currently services this area outside of Gallatin city limits. The Gallatin Department of Electricity indicated that additional electrical infrastructure would be necessary to provide service to this area. The department also indicated that GDE would provide temporary power while TVA would provide permanent power.

**L. Gas**

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that, upon extension of service lines, there is sufficient natural gas infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation currently have this service available. The developer will be responsible for all costs associated with the gas utility infrastructure improvements necessary to support the annexation and development of these properties.

**M. School System**

The City provided written notice to the Sumner County School System of the proposed annexation and rezoning prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 26, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

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**SUBJECT:**

A Resolution No. R2006-30 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike.

**SUMMARY:**

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; and providing an effective date.

**RECOMMENDATION:**

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the Plan of Services in GMRPC Resolution No. 2020-077. (ANNX-2020-0006)

**ATTACHMENT:**

☒ Resolution  
☐ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

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Approved ☒  
Rejected ☐  
Deferred ☐

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**Notes:**

**RESOLUTION NO. R2006-31**

**A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING FIVE (5) PARCELS TOTALING 524.14 +/- ACRES (TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND 111//118.00), LOCATED SOUTH OF ROUNDTREE DRIVE, WEST OF BRIGHTS LANE, AND NORTH OF HARTSVILLE PIKE, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the owners of the properties of the affected areas described in Exhibit 'A' submitted a petition to annex five (5) parcels totaling 524.14 +/- acres substantially contiguous to the City of Gallatin city limits and located within the City of Gallatin Urban Growth Boundary; and

**WHEREAS**, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

**WHEREAS**, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of GMRPC Resolution No. 2020-077 for the proposed annexation and Plan of Service to the affected areas; and

**WHEREAS**, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2006-30.

**NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:**

Section 1. The City Council of the City of Gallatin does hereby annex the following properties as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 1.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

**IT IS SO ORDERED.**

PRESENT AND VOTING.

AYE:

NAY:

DATED:

\_\_\_\_\_  
MAYOR PAIGE BROWN

ATTEST:

\_\_\_\_\_  
CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

\_\_\_\_\_  
SUSAN HIGH-MCAULEY  
CITY ATTORNEY

Exhibit 'A' – Legal Descriptions of annexation territory  
Exhibit 'B' – Maps of the annexation territory

EXHIBIT 'A'

**Tax Map 111//Parcel 002.00 (Argent Trust) – 372.85 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located east of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right of way of line of State Highway 25 (Hartsville Pike), having a right of way that varies, said iron rod being the southwest corner of The Aileen Hoffer Revocable Trust, of record in Book 3241, Page 747, Register's Office for Sumner County, Tennessee;

THENCE, leaving the Aileen Hoffer Revocable Trust along the right of way of State Highway 25 (Hartsville Pike) with a curve to the right having a central angle of  $10^{\circ} 27' 46''$ , a radius of 2,013.48 feet, a tangent of 184.35 feet, and a chord of  $S 82^{\circ} 03' 22'' W$ , 367.17 feet for an arc length of 367.68 feet to the easterly line of the Cumberland Electric Membership Corporation, of record in Record Book 3446, Page 43, R.O.S.C.;

THENCE, leaving said right of way line with the easterly line of Cumberland Electric Membership Corporation,  $N 31^{\circ} 13' 25'' W$ , 344.50 feet to an old iron rod being a common corner with Walter H. Stephenson, II, of record in Record Book 3432, Page 342, R.O.S.C.;

THENCE, leaving Cumberland Electric Membership Corporation continuing with Walter H. Stephenson, II, the following calls:

$N 31^{\circ} 35' 40'' W$ , 1,553.57 feet to an old iron rod,

$N 20^{\circ} 06' 17'' W$ , 964.14 feet to an old iron rod,

$N 07^{\circ} 20' 05'' E$ , 918.22 feet to an old iron rod being the southeasterly corner of City of Gallatin property of record in Record Book 4070, Page 790, R.O.S.C.;

THENCE, continuing with City of Gallatin property,  $N 07^{\circ} 20' 05'' E$ , 100.77 feet to an old iron rod being a common corner with Gregory Real Estate, LLC, of record in Record Book 1811, Page 783, R.O.S.C.;

THENCE, leaving City of Gallatin property continuing with the Gregory Real Estate, LLC, the following calls:

$N 07^{\circ} 03' 56'' E$ , 2,855.86 feet to an old iron rod,

$N 09^{\circ} 25' 10'' E$ , 698.99 feet to an old iron rod,

$S 80^{\circ} 54' 57'' E$ , 73.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

N 39° 51' 25" E, 43.45 feet to an old iron rod,

S 79° 51' 47" E, 3,324.96 feet a new one-half inch iron rod with cap stamp "Barge Design" on the westerly right of way of Brights Lane having a forty-foot wide right of way;

THENCE, with said westerly right of way line of Brights Lane the following calls:

With a curve to the right having a central angle of 05° 08' 28", with a radius of 1,817.94 feet, a tangent of 81.62 feet and a chord of S 16° 49' 02" E, 163.07 feet for an arc length of 163.12 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 19° 23' 16" E, 135.91 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 02° 58' 06", a radius of 3,811.96 feet, a tangent of 98.76 feet and a chord of S 17° 54' 13" E, 197.46 feet for an arc length of 197.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 16° 25' 11" E, 116.89 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 17° 57' 04", a radius of 754.75 feet, a tangent of 119.21 feet and a chord of S 07° 26' 39" E, 235.50 feet for an arc length of 236.46 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 29° 02' 15", a radius of 468.59 feet, a tangent of 121.35 feet and a chord of S 16° 03' 01" W, 234.95 feet for an arc length of 237.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 30° 34' 08" W, 39.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the left having a central angle of 30° 53' 43", a radius of 195.66 feet, a tangent of 54.07 feet and a chord of S 15° 07' 17" W, 104.23 feet for an arc length of 105.50 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 00° 19' 35" E, 216.94 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 01° 55' 03" W, 394.02 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 44' 49" W, 987.04 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 38' 08" W, 552.81 feet to a new one-half inch iron rod with cap stamp "Barge Design" to the common corner of the James R. Baker and Cathy D. Baker, of record in Record Book 428, Page 400, R.O.S.C.;

THENCE, leaving said westerly right of way of Brights Lane with Baker S 85° 05' 55" W, 1,190.18 feet to an old iron pipe being a common corner of Lot 22 and Lot 23, Oakland Section Two, of record in Plat Book 10, page 119, R.O.S.C.;

THENCE, S 65° 49' 48" W, 1,229.97 feet to an old iron rod being a common corner with Lot 41, Oakland Section Three, of record in Plat Book 10, page 259, and Edward J. Bellusor or record in Record Book 168, page 795, R.O.S.C.;

THENCE, leaving Oakland, Section Three with Bellusor the following calls:

S 65° 39' 06" W, 425.47 feet to an existing iron pipe,

S 26° 42' 06" E, 103.11 feet to a tree,

S 71° 23' 11" W, 214.01 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with Joseph Daniel Harsh, of record in Record Book 214, page 565, R.O.S.C.;

THENCE, with Joseph Daniel Harsh the following calls:

S 68° 21' 58" W, 124.68 feet,

S 49° 00' 39" W, 247.65 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with The Aileen Hoffer Revocable Trust, of record in Record Book 3241, page 747, R.O.S.C.;

THENCE, leaving Harsh with Aileen Hoffer Revocable Trust the following calls:

S 49° 46' 43" W, 518.76 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 37° 32' 45" E, 668.20 feet to an old iron rod,

S 37° 23' 56" E, 1,386.97 feet to the **POINT OF BEGINNING.**

Containing 16,241,440 square feet or 372.85 acres.



**Tax Map 112//Parcel 013.02 (Holleman) – 76.86 Acres**

**(R1A DISTRICT PORTION) – 36.08 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right-of-way line of State Highway 25, said iron rod being the southeast corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Beach One Properties, Inc. the following calls:

N 06° 45' 07" E, 1,250.31 feet to an old iron rod,  
N 83° 15' 30" W, 159.21 feet to a new iron rod,  
N 81° 17' 54" W, 416.76 feet to an old capped one-half inch iron rod stamped RLS 910,  
same being on the easterly line of Section 2, Sunnymeade Subdivision, of record in Plat Book 10, page 62, R.O.S.C.;

THENCE, leaving Beach One Properties, Inc. with Section 2, Sunnymeade Subdivision, N 08° 46' 19" E, 935.26 feet to the southwesterly corner of the MDR PUD zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision of record in Plat book 10, page 266, R.O.S.C.;

THENCE, leaving Lot 86, Section 7, Sunnymeade Subdivision with the southerly boundary of said MDR PUD zoning line, S 83° 14' 58" E, 1,137.61 feet to a post being the northwest corner of Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, with Alexander, S 06° 45' 51" W, 948.87 feet to an old iron rod being a common corner with Thomas R. Hall, et ux, of record in Record Book 1318, page 688, R.O.S.C.;

THENCE, leaving Alexander with Hall the following calls:

N 83° 51' 00" W, 210.00 feet to a new iron rod,  
S 06° 44' 59" W, 1,242.83 feet to the northerly right-of-way line of Highway 25;

THENCE, leaving Hall with said northerly along a curve to the left, having a central angle of  $03^{\circ} 12' 30''$ , a radius of 11519.16 feet, a tangent of 322.60 feet, and a chord of  $N 83^{\circ} 42' 47'' W$ , 644.95 feet for an arc length of 645.04 feet to the **POINT OF BEGINNING**.

Containing 1,571,769 square feet or 36.08 acres, more or less.

**(MDRPUD DISTRICT PORTION) – 40.78 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at the northwest corner of the R1A zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision, of record in Plat Book 10, page 266, R.O.S.C., being  $N 08^{\circ} 46' 19'' E$ , 935.26 feet from an old capped one-half inch iron rod stamped RLS 910 being the northwest corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.

THENCE, with Section 7, Sunnymeade Subdivision,  $N 08^{\circ} 46' 19'' E$ , 1,018.08 feet to an old iron rod being the northeast corner of Section 7, Sunnymeade Subdivision of record in Plat Book 10, page 266, R.O.S.C., said iron rod being on the southerly line of Lot 6, Gallatin Industrial Center, Phase 3, Resubdivision of Lot 6, of record in Plat Book 28, page 325, R.O.S.C.;

THENCE, leaving Section 7, Sunnymeade Subdivision with said Lot 6, Gallatin Industrial Center, Phase 3,  $S 82^{\circ} 54' 13'' E$ , 1,380.01 feet to an old iron rod being the southwest corner of City of Gallatin property, of record in Record Book 4070, page 70, R.O.S.C.;

THENCE, with City of Gallatin property,  $S 82^{\circ} 46' 10'' E$ , 356.96 feet to a new iron rod, said iron rod being the northwest corner of James Caldwell, et ux of record in Record Book 4510, page 313, R.O.S.C.;

THENCE, leaving City of Gallatin property with Caldwell,  $S 06^{\circ} 45' 51'' W$ , 1,006.12 feet to an old iron rod being a common corner with Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, leaving Caldwell with Alexander,  $N 83^{\circ} 14' 58'' W$ , 635.00 feet to an old post;

THENCE,  $N 83^{\circ} 14' 58'' W$ , 1,137.61 feet to the **POINT OF BEGINNING**.

Containing 1,776,125 square feet or 40.78 acres, more or less.

**(P/O) Tax Map 105//Parcel 047.00 (Gregory) – 15.52 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southwest corner of Tax Map 105, Parcel 48.00, and the southeast corner of the herein described property;

THENCE, leaving Parcel 48.00 with the northerly line of Lot 4 the following calls:

N 80° 55' 04" W, 189.07 feet to a new iron rod,

N 85° 43' 58" W, 734.65 feet to a new iron rod,

N 85° 41' 02" W, 171.18 feet to the southeast corner of Lot 1, Gregory Real Estate, LLC of record in Plat Book 23, page 134, R.O.S.C.;

THENCE, leaving Lot 4, Gallatin Industrial Center, Phase 3 with Lot 1, N 09° 52' 02" E, 365.51 feet to the southerly right-of-way line of Roundtree Drive, having a fifty-foot wide right-of-way;

THENCE, leaving Lot 1, along said Roundtree Drive southerly right-of-way line the following calls:

With a curve to the left, having a central angle of 01° 50' 42", a radius of 1,827.39 feet, a tangent of 29.42 feet, and a chord of N 87° 30' 40" E, 58.84 feet for an arc length of 58.84 feet to a new iron rod,

N 86° 35' 19" E, 708.84 feet to a new iron rod,

With a curve to the left, having a central angle of 22° 44' 16", a radius of 1,306.79 feet, a tangent of 262.76 feet, and a chord of N 75° 13' 11" E, 515.20 feet for an arc length of 518.60 feet to a new iron rod,

N 63° 51' 03" E, 327.13 feet to a new iron rod,

With a curve to the right, having a central angle of 52° 24' 30", a radius

of 213.51 feet, a tangent of 105.08 feet, and a chord of S 89° 31' 22" E, 188.56 feet for an arc length of 195.30 feet being the northwest corner of Tax Map 105, Parcel 48.00;

THENCE, leaving the southerly right of way of Roundtree Drive with Parcel 48.00, S 42° 49' 16" W, 1,058.33 feet to the **POINT OF BEGINNING**.

Containing 676,031 square feet or 15.52 acres, more or less.

**(P/O) Tax Map 105//Parcel 048.00 (Gregory) – 57.88 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southeast corner of Tax Map 105, Parcel 47.00, and the westerly most corner of the herein described property;

THENCE, leaving Lot 4 with Parcel 47, N 42° 49' 16" E, 1,058.33 feet to a new iron rod on the southerly right of way line of Roundtree Drive having a fifty-foot wide right of way;

THENCE, along said southerly right of way line the following calls:

With a curve to the right, having a central angle of 05° 00' 29", a radius of 213.51 feet, a tangent of 9.34 feet, and a chord of S 60° 48' 53" E, 18.66 feet for an arc length of 18.66 feet to a new iron rod,

With a curve to the left, having a central angle of 32° 21' 22", a radius of 562.68 feet, a tangent of 163.33 feet, and a chord of S 74° 29' 48" E, 313.70 feet for an arc length of 317.92 feet to a new iron rod,

N 89° 19' 02" E, 593.70 feet to a new iron rod,

With a curve to the right, having a central angle of 11° 00' 51", a radius of 975.00 feet, a tangent of 94.00 feet, and a chord of S 85° 10' 33" E, 187.14 feet for an arc length of 187.43 feet to a new iron rod,

S 79° 40' 07" E, 628.76 feet to a new iron rod,

With a curve to the left, having a central angle of  $03^{\circ} 36' 07''$ , a radius of 1,025.00 feet, a tangent of 32.23 feet, and a chord of  $S 81^{\circ} 28' 11'' E$ , 64.43 feet for an arc length of 64.44 feet to a new iron rod,

$S 83^{\circ} 16' 14'' E$ , 82.45 feet to a new iron rod,

With a curve to the left, having a central angle of  $26^{\circ} 15' 57''$ , a radius of 525.00 feet, a tangent of 122.49 feet, and a chord of  $N 83^{\circ} 35' 47'' E$ , 238.57 feet for an arc length of 240.67 feet to a new iron rod,

$N 70^{\circ} 27' 49'' E$ , 663.18 feet;

THENCE, leaving the southerly right of way line of Roundtree Drive with a new line severing Tax Map 105, Parcel 48.00,  $S 09^{\circ} 25' 10'' W$ , passing a new iron rod at 331.71 feet being the northwest corner of Independence Trust Company, Trustee property of record in Record Book 4267, page 704, R.O.S.C., for a total distance of 1,030.70 feet to the northeast corner of Tax Map 111, Parcel 1;

THENCE, leaving the westerly line of Independence Trust Company, Trustee property with Parcel 1, the following calls:

$N 87^{\circ} 05' 39'' W$ , 278.97 feet to an old iron rod,

$N 88^{\circ} 46' 25'' W$ , 1,771.99 feet to an old iron rod,

$N 81^{\circ} 52' 52'' W$ , 421.08 feet to an old iron rod being the northeast corner of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C.;

THENCE, with Lot 4 the following calls:

$N 82^{\circ} 33' 41'' W$ , 262.53 feet to a new iron rod,

$N 81^{\circ} 40' 31'' W$ , 474.01 feet to a new iron rod,

$N 81^{\circ} 41' 16'' W$ , 78.97 feet to a new iron rod,

$N 80^{\circ} 55' 04'' W$ , 1.11 feet to the **POINT OF BEGINNING**.

Containing 2,521,222 square feet or 57.88 acres, more or less.

#### **Tax Map 111//Parcel 118.00 (Caldwell) – 1.03 Acres**

BEING Lot No. 8 on the Final Subdivision Plat for JAMES AND FAYE CALDWELL, a plat of which is of record in Plat Book 19, pages 210-211, in the Register's Office of Sumner County, Tennessee, reference to which is hereby made for a more complete description of said lot.

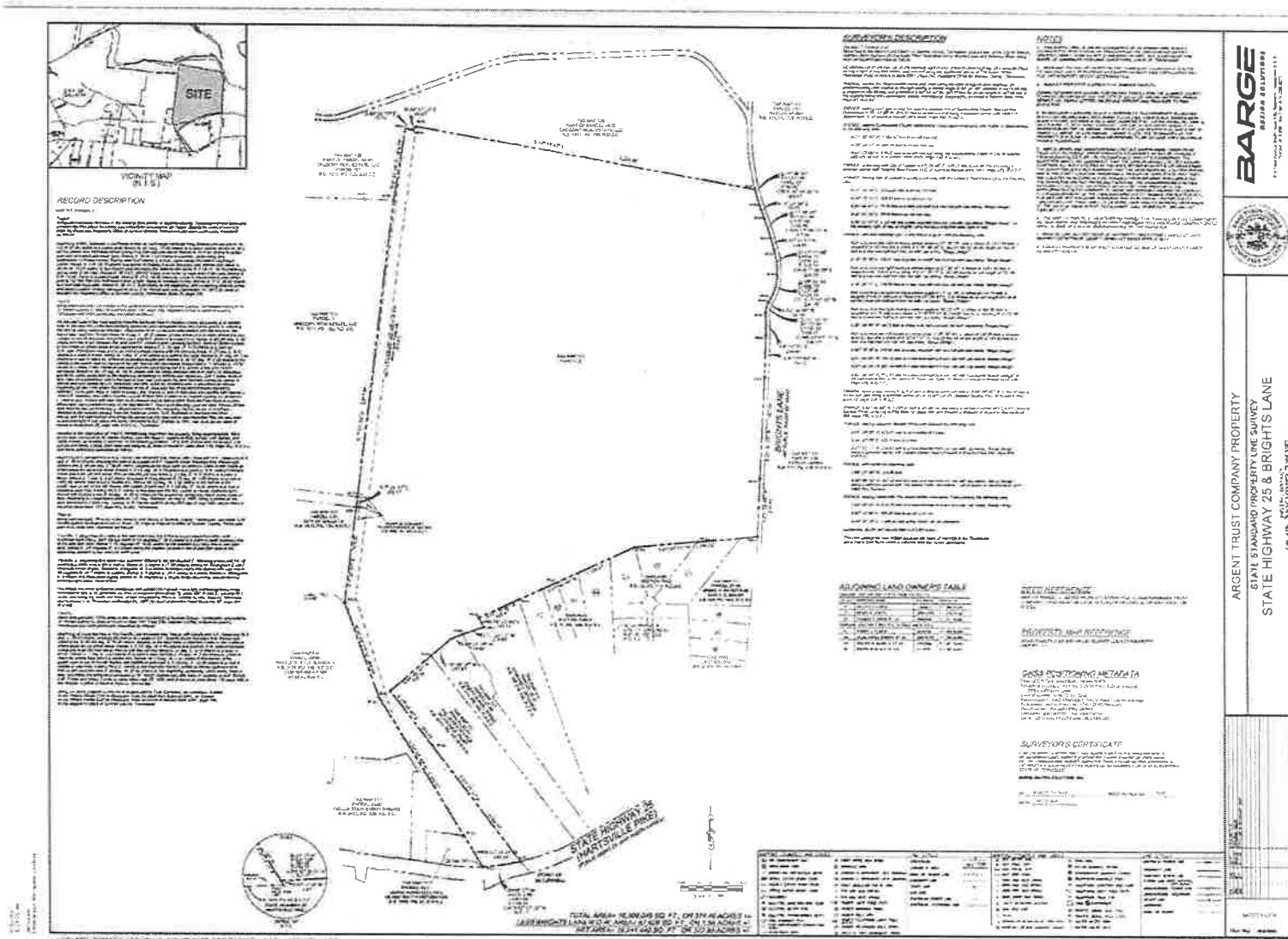
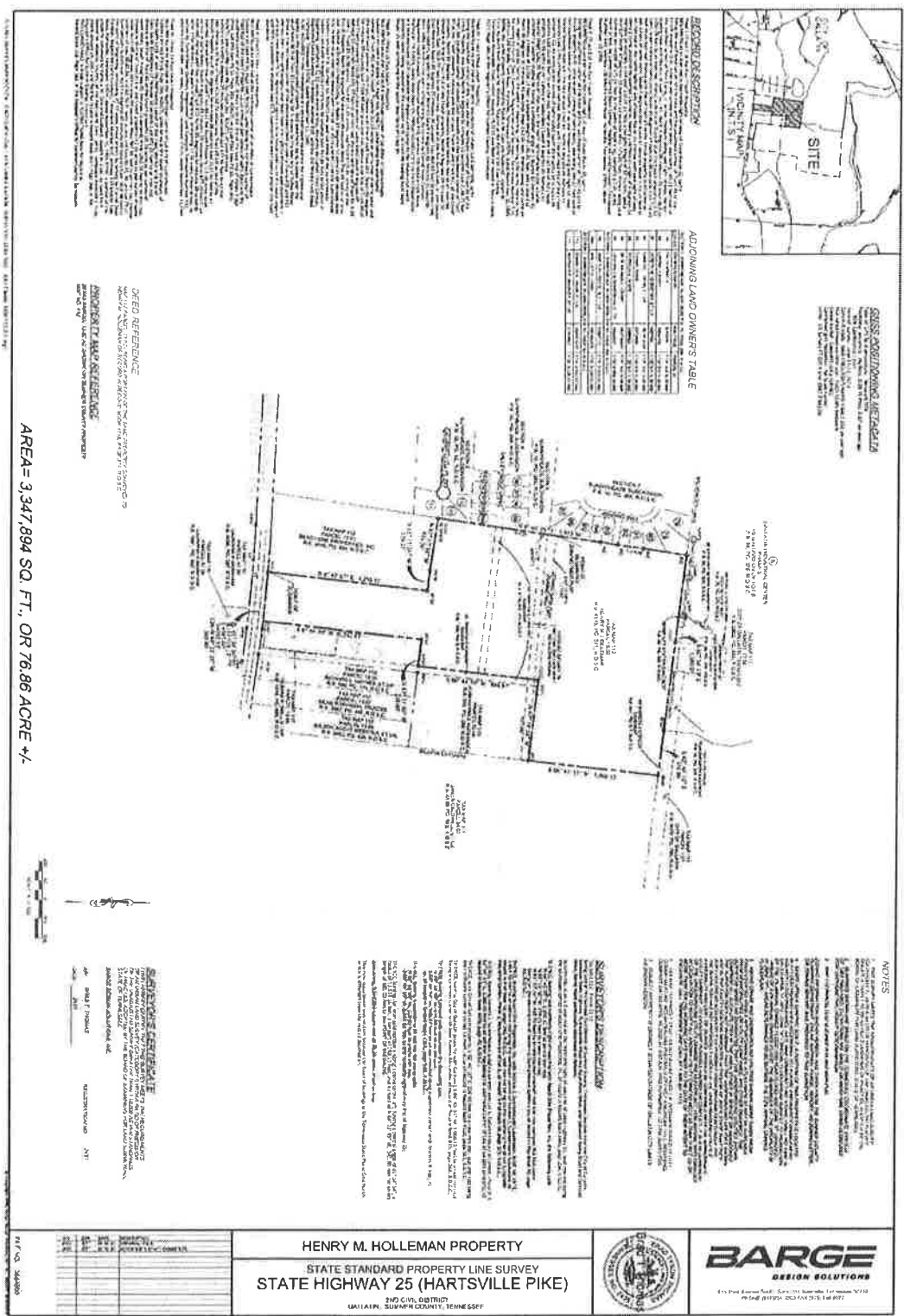


EXHIBIT 'B'







# **GNSS POSITIONING METADATA**

PARCEL 118 AREA= 44,765 SQ. FT., OR 1.03 ACRE +/-

**SILVERIOR'S CERTIFICATE**

THIS CERTIFICATE IS GRANTED TO THE FOLLOWING MEMBER OF THE SILVERIOR SOCIETY OF THE UNITED STATES OF AMERICA, IN RECOGNITION OF HIS/HER CONTRIBUTION TO THE SOCIETY'S PURPOSES AND IN RECOGNITION OF HIS/HER SERVICE TO THE FIELD OF MANAGEMENT CONSULTING.

NAME OF MEMBER: \_\_\_\_\_

DATE: \_\_\_\_\_

SILVERIOR SOCIETY OF THE UNITED STATES OF AMERICA

10000 W. 10th Ave., Suite 100, Denver, CO 80202

TEL: (303) 755-1000 FAX: (303) 755-1001

WWW.SILVERIORSOCIETY.COM

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Journal of Internal Medicine 247: 395–401

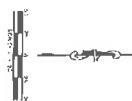
STATE HIGHWAY 25  
(HARTSVILLE PIKE)

CALDWELL PROPERTY PARCEL 118  
STATE STANDARD PROPERTY LINE SURVEY  
STATE HIGHWAY 25 (HARTSVILLE PIKE)  
SECOND CIVIL DISTRICT  
GALLATIN SUMNER COUNTY, TENNESSEE

SALE BY ORDER OF THE SHERIFF  
141 West 117 Street, N.Y.C.

SPONSORED BY: A series of four booklets, based on research conducted by the University of York, are available from the National Institute for Research in Dementia (NIRD) at [www.nird.ac.uk](http://www.nird.ac.uk). The booklets are: 'What is dementia?', 'How dementia affects the brain', 'How dementia affects the body', and 'How dementia affects the mind'. The booklets are available in English, Welsh, and Urdu. They are also available in large print and Braille. For more information, contact NIRD on 01904 626262 or email [info@nird.ac.uk](mailto:info@nird.ac.uk).

RECORD DESCRIPTION

[illegible][illegible]

## DEED REFERENCE

CHANDRASEKHAR ET AL. / *DETERMINING AN ALCOHOL MONITORING PROGRAM* 703

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PLAT REFERENCE  
 BENCH LOT NO. & US SHOWING THE NUMBER AND OF JAMES & PAIT CULTURED  
 OR RECEIVED BY PLAT BOOK IN FILE FOR A.O.N.C.



**BARGE**  
DESIGN SOLUTIONS

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 26, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

**SUBJECT:**

A Resolution No. R2006-31 of the City of Gallatin, Sumner County, Tennessee, annexing 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike.

**SUMMARY:**

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00) into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

**RECOMMENDATION:**

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-077. (ANNX-2020-0006)

**ATTACHMENT:**

☒ Resolution  
☐ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

Approved ☒  
Rejected ☐  
Deferred ☐

**Notes:**

**ORDINANCE NO. 02006-25**

**AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, TO REZONE 483.36 +/- ACRES FROM THE R1A-RESIDENTIAL 1A (SUMNER COUNTY) DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, TO REZONE 40.78 +/- ACRES FROM THE MDRPUD-MEDIUM DENSITY RESIDENTIAL PLANNED UNIT DEVELOPMENT (SUMNER COUNTY) DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, TO REZONE 116.22 +/- ACRES FROM R-15 (PRD) – RESIDENTIAL-15 PLANNED RESIDENTIAL DEVELOPMENT DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, AND TO REZONE 6.25 +/- ACRES FROM THE A-AGRICULTURAL RESIDENTIAL DISTRICT TO THE IR-INDUSTRIAL RESTRICTIVE DISTRICT, TOTALING 646.61 +/- ACRES, LOCATED SOUTH OF ROUNDTREE DRIVE, WEST OF BRIGHTS LANE, AND NORTH OF HARTSVILLE PIKE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.**

**WHEREAS**, the owners of the subject properties submitted a complete application to rezone seven (7) parcels totaling 646.61 +/- acres, located in the City of Gallatin, Tennessee; and

**WHEREAS**, the proposed zoning map amendment conforms to the general plan of the area including the Airport Road Industrial Character Area and that the public necessity, convenience, and the general welfare, will be served by approving the proposed amendment; and

**WHEREAS**, the properties proposed for rezoning will have adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

**WHEREAS**, the proposed rezoning will provide opportunities for industrial development on the properties consistent with development in the adjacent Gallatin Industrial Center; and

**WHEREAS**, the proposed rezoning will be compatible with surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the properties are located; and

**WHEREAS**, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning in GMRPC Resolution No. 2020-078; and

**WHEREAS**, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

**WHEREAS**, the City Council has approved by majority vote of the members present the rezoning request of the described properties; and

**NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE AS FOLLOWS:**

**Section 1.** The City Council of the City of Gallatin does hereby approve the rezoning of 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres as described in Exhibits 'A' and 'B.'

**Section 2.** The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

**Section 3.** All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

**Section 4.** If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

**Section 5.** This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING: June 2, 2020

PASSED SECOND READING:

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MAYOR PAIGE BROWN

ATTEST:

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CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

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SUSAN HIGH-MACAULEY  
CITY ATTORNEY

Exhibit 'A' – Legal Descriptions of rezoning area

Exhibit 'B' – Maps of the rezoning area

EXHIBIT 'A'

**R1A DISTRICT (SUMNER COUNTY) to IR-INDUSTRIAL RESTRICTIVE – 483.36 Acres**

**Tax Map 111//Parcel 002.00 (Argent Trust) – 372.85 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located east of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right of way of line of State Highway 25 (Hartsville Pike), having a right of way that varies, said iron rod being the southwest corner of The Aileen Hoffer Revocable Trust, of record in Book 3241, Page 747, Register's Office for Sumner County, Tennessee;

THENCE, leaving the Aileen Hoffer Revocable Trust along the right of way of State Highway 25 (Hartsville Pike) with a curve to the right having a central angle of  $10^{\circ} 27' 46''$ , a radius of 2,013.48 feet, a tangent of 184.35 feet, and a chord of S  $82^{\circ} 03' 22''$  W, 367.17 feet for an arc length of 367.68 feet to the easterly line of the Cumberland Electric Membership Corporation, of record in Record Book 3446, Page 43, R.O.S.C.;

THENCE, leaving said right of way line with the easterly line of Cumberland Electric Membership Corporation, N  $31^{\circ} 13' 25''$  W, 344.50 feet to an old iron rod being a common corner with Walter H. Stephenson, II, of record in Record Book 3432, Page 342, R.O.S.C.;

THENCE, leaving Cumberland Electric Membership Corporation continuing with Walter H. Stephenson, II, the following calls:

N  $31^{\circ} 35' 40''$  W, 1,553.57 feet to an old iron rod,

N  $20^{\circ} 06' 17''$  W, 964.14 feet to an old iron rod,

N  $07^{\circ} 20' 05''$  E, 918.22 feet to an old iron rod being the southeasterly corner of City of Gallatin property of record in Record Book 4070, Page 790, R.O.S.C.;

THENCE, continuing with City of Gallatin property, N  $07^{\circ} 20' 05''$  E, 100.77 feet to an old iron rod being a common corner with Gregory Real Estate, LLC, of record in Record Book 1811, Page 783, R.O.S.C.;

THENCE, leaving City of Gallatin property continuing with the Gregory Real Estate, LLC, the following calls:

N  $07^{\circ} 03' 56''$  E, 2,855.86 feet to an old iron rod,

N  $09^{\circ} 25' 10''$  E, 698.99 feet to an old iron rod,

S  $80^{\circ} 54' 57''$  E, 73.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

N 39° 51' 25" E, 43.45 feet to an old iron rod,

S 79° 51' 47" E, 3,324.96 feet a new one-half inch iron rod with cap stamp "Barge Design" on the westerly right of way of Brights Lane having a forty-foot wide right of way;

THENCE, with said westerly right of way line of Brights Lane the following calls:

With a curve to the right having a central angle of 05° 08' 28", with a radius of 1,817.94 feet, a tangent of 81.62 feet and a chord of S 16° 49' 02" E, 163.07 feet for an arc length of 163.12 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 19° 23' 16" E, 135.91 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 02° 58' 06", a radius of 3,811.96 feet, a tangent of 98.76 feet and a chord of S 17° 54' 13" E, 197.46 feet for an arc length of 197.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 16° 25' 11" E, 116.89 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 17° 57' 04", a radius of 754.75 feet, a tangent of 119.21 feet and a chord of S 07° 26' 39" E, 235.50 feet for an arc length of 236.46 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the right having a central angle of 29° 02' 15", a radius of 468.59 feet, a tangent of 121.35 feet and a chord of S 16° 03' 01" W, 234.95 feet for an arc length of 237.48 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 30° 34' 08" W, 39.70 feet to a new one-half inch iron rod with cap stamp "Barge Design",

With a curve to the left having a central angle of 30° 53' 43", a radius of 195.66 feet, a tangent of 54.07 feet and a chord of S 15° 07' 17" W, 104.23 feet for an arc length of 105.50 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 00° 19' 35" E, 216.94 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 01° 55' 03" W, 394.02 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 44' 49" W, 987.04 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 02° 38' 08" W, 552.81 feet to a new one-half inch iron rod with cap stamp "Barge Design" to the common corner of the James R. Baker and Cathy D. Baker, of record in Record Book 428, Page 400, R.O.S.C.;

THENCE, leaving said westerly right of way of Brights Lane with Baker S 85° 05' 55" W, 1,190.18 feet to an old iron pipe being a common corner of Lot 22 and Lot 23, Oakland Section Two, of record in Plat Book 10, page 119, R.O.S.C.;

THENCE, S 65° 49' 48" W, 1,229.97 feet to an old iron rod being a common corner with Lot 41, Oakland Section Three, of record in Plat Book 10, page 259, and Edward J. Bellusor or record in Record Book 168, page 795, R.O.S.C.;

THENCE, leaving Oakland, Section Three with Bellusor the following calls:

S 65° 39' 06" W, 425.47 feet to an existing iron pipe,

S 26° 42' 06" E, 103.11 feet to a tree,

S 71° 23' 11" W, 214.01 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with Joseph Daniel Harsh, of record in Record Book 214, page 565, R.O.S.C.;

THENCE, with Joseph Daniel Harsh the following calls:

S 68° 21' 58" W, 124.68 feet,

S 49° 00' 39" W, 247.65 feet to a new one-half inch iron rod with cap stamp "Barge Design" being a common corner with The Aileen Hoffer Revocable Trust, of record in Record Book 3241, page 747, R.O.S.C.;

THENCE, leaving Harsh with Aileen Hoffer Revocable Trust the following calls:

S 49° 46' 43" W, 518.76 feet to a new one-half inch iron rod with cap stamp "Barge Design",

S 37° 32' 45" E, 668.20 feet to an old iron rod,

S 37° 23' 56" E, 1,386.97 feet to the **POINT OF BEGINNING.**

Containing 16,241,440 square feet or 372.85 acres.



**Tax Map 112//Parcel 013.02 (Holleman)**

**(R1A DISTRICT PORTION) – 36.08 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at an old iron rod on the northerly right-of-way line of State Highway 25, said iron rod being the southeast corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Beach One Properties, Inc. the following calls:

N 06° 45' 07" E, 1,250.31 feet to an old iron rod,

N 83° 15' 30" W, 159.21 feet to a new iron rod,

N 81° 17' 54" W, 416.76 feet to an old capped one-half inch iron rod stamped RLS 910, same being on the easterly line of Section 2, Sunnymeade Subdivision, of record in Plat Book 10, page 62, R.O.S.C.;

THENCE, leaving Beach One Properties, Inc. with Section 2, Sunnymeade Subdivision, N 08° 46' 19" E, 935.26 feet to the southwesterly corner of the MDR PUD zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision of record in Plat book 10, page 266, R.O.S.C.;

THENCE, leaving Lot 86, Section 7, Sunnymeade Subdivision with the southerly boundary of said MDR PUD zoning line, S 83° 14' 58" E, 1,137.61 feet to a post being the northwest corner of Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, with Alexander, S 06° 45' 51" W, 948.87 feet to an old iron rod being a common corner with Thomas R. Hall, et ux, of record in Record Book 1318, page 688, R.O.S.C.;

THENCE, leaving Alexander with Hall the following calls:

N 83° 51' 00" W, 210.00 feet to a new iron rod,

S 06° 44' 59" W, 1,242.83 feet to the northerly right-of-way line of Highway 25;

THENCE, leaving Hall with said northerly along a curve to the left, having a central angle of 03° 12' 30", a radius of 11519.16 feet, a tangent of 322.60 feet, and a chord of N 83° 42' 47" W, 644.95 feet for an arc length of 645.04 feet to the **POINT OF BEGINNING**.

Containing 1,571,769 square feet or 36.08 acres, more or less.

**(P/O) Tax Map 105//Parcel 047.00 (Gregory) – 15.52 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southwest corner of Tax Map 105, Parcel 48.00, and the southeast corner of the herein described property;

THENCE, leaving Parcel 48.00 with the northerly line of Lot 4 the following calls:

N 80° 55' 04" W, 189.07 feet to a new iron rod,

N 85° 43' 58" W, 734.65 feet to a new iron rod,

N 85° 41' 02" W, 171.18 feet to the southeast corner of Lot 1, Gregory Real Estate, LLC of record in Plat Book 23, page 134, R.O.S.C.;

THENCE, leaving Lot 4, Gallatin Industrial Center, Phase 3 with Lot 1, N 09° 52' 02" E, 365.51 feet to the southerly right-of-way line of Roundtree Drive, having a fifty-foot wide right-of-way;

THENCE, leaving Lot 1, along said Roundtree Drive southerly right-of-way line the following calls:

With a curve to the left, having a central angle of 01° 50' 42", a radius of 1,827.39 feet, a tangent of 29.42 feet, and a chord of N 87° 30' 40" E, 58.84 feet for an arc length of 58.84 feet to a new iron rod,

N 86° 35' 19" E, 708.84 feet to a new iron rod,

With a curve to the left, having a central angle of 22° 44' 16", a radius of 1,306.79 feet, a tangent of 262.76 feet, and a chord of N 75° 13' 11" E, 515.20 feet for an arc length of 518.60 feet to a new iron rod,

N 63° 51' 03" E, 327.13 feet to a new iron rod,

With a curve to the right, having a central angle of 52° 24' 30", a radius of 213.51 feet, a tangent of 105.08 feet, and a chord of S 89° 31' 22" E,

188.56 feet for an arc length of 195.30 feet being the northwest corner of Tax Map 105, Parcel 48.00;

THENCE, leaving the southerly right of way of Roundtree Drive with Parcel 48.00, S 42° 49' 16" W, 1,058.33 feet to the **POINT OF BEGINNING**.

Containing 676,031 square feet or 15.52 acres, more or less.

**(P/O) Tax Map 105//Parcel 048.00 (Gregory) – 57.88 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located on the east side of the City of Gallatin, between State Highway 25 (Hartsville Pike), Roundtree Drive, Brights Lane, and Gateway Drive, being a portion of Gregory Real Estate, LLC of record in Record Book 1811, page 783, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at a new iron rod on the northerly line of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C., same being the southeast corner of Tax Map 105, Parcel 47.00, and the westerly most corner of the herein described property;

THENCE, leaving Lot 4 with Parcel 47, N 42° 49' 16" E, 1,058.33 feet to a new iron rod on the southerly right of way line of Roundtree Drive having a fifty-foot wide right of way;

THENCE, along said southerly right of way line the following calls:

With a curve to the right, having a central angle of 05° 00' 29", a radius of 213.51 feet, a tangent of 9.34 feet, and a chord of S 60° 48' 53" E, 18.66 feet for an arc length of 18.66 feet to a new iron rod,

With a curve to the left, having a central angle of 32° 21' 22", a radius of 562.68 feet, a tangent of 163.33 feet, and a chord of S 74° 29' 48" E, 313.70 feet for an arc length of 317.92 feet to a new iron rod,

N 89° 19' 02" E, 593.70 feet to a new iron rod,

With a curve to the right, having a central angle of 11° 00' 51", a radius of 975.00 feet, a tangent of 94.00 feet, and a chord of S 85° 10' 33" E, 187.14 feet for an arc length of 187.43 feet to a new iron rod,

S 79° 40' 07" E, 628.76 feet to a new iron rod,

With a curve to the left, having a central angle of 03° 36' 07", a radius of 1,025.00 feet, a tangent of 32.23 feet, and a chord of S 81° 28' 11" E, 64.43 feet for an arc length of 64.44 feet to a new iron rod,

S 83° 16' 14" E, 82.45 feet to a new iron rod,

With a curve to the left, having a central angle of 26° 15' 57", a radius of 525.00 feet, a tangent of 122.49 feet, and a chord of N 83° 35' 47" E, 238.57 feet for an arc length of 240.67 feet to a new iron rod,

N 70° 27' 49 " E, 663.18 feet;

THENCE, leaving the southerly right of way line of Roundtree Drive with a new line severing Tax Map 105, Parcel 48.00, S 09° 25'10" W, passing a new iron rod at 331.71 feet being the northwest corner of Independence Trust Company, Trustee property of record in Record Book 4267, page 704, R.O.S.C., for a total distance of 1,030.70 feet to the northeast corner of Tax Map 111, Parcel 1;

THENCE, leaving the westerly line of Independence Trust Company, Trustee property with Parcel 1, the following calls:

N 87° 05'39" W, 278.97 feet to an old iron rod,

N 88° 46'25" W, 1,771.99 feet to an old iron rod,

N 81° 52'52" W, 421.08 feet to an old iron rod being the northeast corner of Lot 4, Gallatin Industrial Center, Phase 3, of record in Plat Book 28, pages 193-194, R.O.S.C.;

THENCE, with Lot 4 the following calls:

N 82° 33' 41" W, 262.53 feet to a new iron rod,

N 81° 40' 31" W, 474.01 feet to a new iron rod,

N 81° 41' 16" W, 78.97 feet to a new iron rod,

N 80° 55' 04" W, 1.11 feet to the **POINT OF BEGINNING**.

Containing 2,521,222 square feet or 57.88 acres, more or less.

#### **Tax Map 111//Parcel 118.00 (Caldwell) – 1.03 Acres**

BEING Lot No. 8 on the Final Subdivision Plat for JAMES AND FAYE CALDWELL, a plat of which is of record in Plat Book 19, pages 210-211, in the Register's Office of Sumner County, Tennessee, reference to which is hereby made for a more complete description of said lot.

**MDRPUD (SUMNER COUNTY) to IR-INDUSTRIAL RESTRICTIVE – 40.78 Acres**

**Tax Map 112//Parcel 013.02 (Holleman)**

**(MDRPUD DISTRICT PORTION) – 40.78 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, located near the City of Gallatin, between State Highway 25 (Hartsville Pike) and Roundtree Drive, and between Kemp Road and Oakland Drive, being a portion of the same land conveyed to Henry M. Holleman of record in Record Book 4118, page 371, in the Register's Office for Sumner County, Tennessee, being more particularly described as follows:

**BEGINNING** at the northwest corner of the R1A zoning, same being on the easterly line of Lot 86, Section 7, Sunnymeade Subdivision, of record in Plat Book 10, page 266, R.O.S.C., being N 08° 46' 19" E, 935.26 feet from an old capped one-half inch iron rod stamped RLS 910 being the northwest corner of Beach One Properties, Inc. of record in Record Book 3446, page 254, R.O.S.C.

THENCE, with Section 7, Sunnymeade Subdivision, N 08° 46' 19" E, 1,018.08 feet to an old iron rod being the northeast corner of Section 7, Sunnymeade Subdivision of record in Plat Book 10, page 266, R.O.S.C., said iron rod being on the southerly line of Lot 6, Gallatin Industrial Center, Phase 3, Resubdivision of Lot 6, of record in Plat Book 28, page 325, R.O.S.C.;

THENCE, leaving Section 7, Sunnymeade Subdivision with said Lot 6, Gallatin Industrial Center, Phase 3, S 82° 54' 13" E, 1,380.01 feet to an old iron rod being the southwest corner of City of Gallatin property, of record in Record Book 4070, page 70, R.O.S.C.;

THENCE, with City of Gallatin property, S 82° 46' 10" E, 356.96 feet to a new iron rod, said iron rod being the northwest corner of James Caldwell, et ux of record in Record Book 4510, page 313, R.O.S.C.;

THENCE, leaving City of Gallatin property with Caldwell, S 06° 45' 51" W, 1,006.12 feet to an old iron rod being a common corner with Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C.;

THENCE, leaving Caldwell with Alexander, N 83° 14' 58" W, 635.00 feet to an old post;

THENCE, N 83° 14' 58" W, 1,137.61 feet to the **POINT OF BEGINNING**.

Containing 1,776,125 square feet or 40.78 acres, more or less.

**R-15 PRD to IR-INDUSTRIAL RESTRICTIVE – 116.22 Acres**

**Tax Map 111//Parcel 024.00 (Caldwell) – 116.22 Acres**

Being land in the Second Civil District of Sumner County, Tennessee, situated in the City of Gallatin, between State Highway 25 (Hartsville Pike), and Gateway Drive, and between Kemp Road and Brights Lane, being more particularly described as follows:

**BEGINNING** at an old concrete monument on the northerly right-of-way line of State Highway 25, said concrete monument being a common corner with Lot 9, on the Final Subdivision Plat for James & Faye Caldwell of record in Plat Book 19, page 210, in the Register's Office for Sumner County, Tennessee;

THENCE, leaving Lot 9 with said right-of-way N 81° 44' 31" W, 100.00 feet to an old concrete monument being a common corner of Lot 8 of said Final Subdivision Plat for James & Faye Caldwell of record in Plat Book 19, page 211, R.O.S.C.;

THENCE, leaving said northerly right-of-way line with Lot 8 of said Final Subdivision Plat for James & Faye Caldwell the following calls:

With a curve to the left having a central angle of 89° 59' 02", a radius of 25.00 feet, a tangent of 24.99 feet, and a chord of N 53° 15' 57" E, 35.35 feet for an arc length of 39.26 feet to an old concrete monument,

N 08° 16' 26" E, 315.22 feet to an old concrete monument being the northeast corner of Lot 8,

N 81° 48' 30" W, 1,091.85 feet to an old concrete monument being the northwest corner of Lot 1, James & Faye Caldwell, of record in Plat Book 19, page 211, same being on the easterly line of Wilson Scott Webster, et ux, of record in Record Book 3463, page 426, R.O.S.C.;

THENCE, leaving Caldwell with Webster, N 06° 44' 59" E, passing a new iron rod at 921.90 feet being a common corner with Webster and Jean Haynes Alexander of record in Record Book 819, page 264, R.O.S.C., in all for a total distance of 1,869.47 feet to an old iron rod being the northeast corner of Alexander, a common corner with Henry M. Holleman of record in Record Book 4118, page 371, R.O.S.C.;

THENCE, leaving Webster with Holleman, N 06° 45' 51" E, 1,006.12 feet to a new iron rod on the southerly line of City of Gallatin property of record in Record Book 4070, page 790, R.O.S.C.;

THENCE, leaving Holleman with said southerly line of City of Gallatin property, S 83° 12' 10" E, 1,757.52 feet to a new iron rod on the westerly line of Walter H. Stephenson, II of record in Record Book 3432, page 342, R.O.S.C.;

THENCE, leaving said southerly line of City of Gallatin property with Walter H. Stephenson, II, S 07° 22' 42" W, 2,700.71 feet to an old capped iron rod stamped RLS #910 being a common corner with the aforementioned James & Faye Caldwell of record in Plat Book 19, Page 211, R.O.S.C., same being the northwest corner of Lot 13;

THENCE, leaving Walter H. Stephenson, II, with James & Faye Caldwell the following calls:

S 07° 18' 58" W, 217.06 feet to a new iron rod,

N 81° 48' 30" W, 584.70 feet to an old concrete monument being the northwest corner of Lot 9,

S 08° 16' 26" W, 315.25 feet to an old concrete monument,

With a curve to the left, having a central angle of 90° 01' 48", a radius of 25.00 feet, a tangent of 25.01 feet, and a chord of S 36° 43' 37" W, 35.36 feet for an arc length of 39.28 feet to the **POINT OF BEGINNING**.

Containing 5,062,733 square feet or 116.22 acres, more or less.

**A-Agricultural Residential to IR-INDUSTRIAL RESTRICTIVE – 6.25 Acres**

**Tax Map 111//Parcel 001.01 (City of Gallatin) – 6.25 Acres**

BEING located in the 2<sup>nd</sup> Civil District of Sumner County, Tennessee, being north of State Route 25 (Hartsville Pike) and being a portion of the Gregory Real Estate, LLC Property as recorded in Record Book 1811, Page 783, in the Register's Office of Sumner County, Tennessee and being more particularly described as follows:

BEGINNING at an existing 1/2" iron pin monument in the northerly line of the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property as recorded in Record Book 3527, page 568, in the Register's Office of Sumner County, Tennessee, said monument also being the southeasterly corner common to Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00, recorded as Plat Book 28, Page 193, in the Register's Office of Sumner County, Tennessee;

Thence leaving said Patricia and Joseph Cole Property and continuing along with Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00, N 07°07'14" E a distance of 100.00' to a new iron pin monument;

Thence leaving said Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00 and continuing along with a new severance line across the Gregory Real Estate, LLC Property the following three calls: S 82°46'10" E a distance of 356.78' to a new iron pin monument;

Thence S 83°12'10" E a distance of 1757.39' to a new iron pin monument;

Thence S 82°54'50" E a distance of 610.42' to a new iron pin monument, said monument being a point in the westerly line of the Fred Kelly Property as recorded in Deed Book 113, Page 9, in the Register's Office of Sumner County, Tennessee;

Thence continuing along with the westerly line of the Fred Kelly Property, S 07°09'50" W a distance of 100.00' to a new iron pin monument, said monument being a northeasterly corner common to the Walter Stephenson Property as recorded in Record Book 3432, Page 342, in the Register's Office of Sumner County, Tennessee;

Thence leaving said Fred Kelly Property and continuing along with the northerly line of the Walter Stephenson Property, N 82°54'50" W a distance of 610.03' to a new iron pin monument, said monument being the northeasterly corner common to the James and Faye Caldwell Property as recorded in Record Book 1172, Page 107, in the Register's Office of Sumner County, Tennessee;

Thence leaving said Walter Stephenson Property and continuing along with the James and Faye Caldwell Property, N 83°12'10" W a distance of 1757.52' to a new iron pin monument, said monument being a northeasterly corner common to the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property;

Thence leaving said James and Faye Caldwell Property and continuing along with the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property, N 82°46'10" W a distance of 356.97' to an existing 1/2" iron pin monument, which is the point of beginning, having an area of 272,456 square feet, 6.25 acres more or less.

There is included with the above description a 60' wide easement for ingress and egress along the southerly portion as recorded in Deed Book 541, Page 517 in the Register's Office of Sumner County, Tennessee.

There is included with the above description a 60' wide by 100' long for ingress and egress easement described as follows: BEGINNING at an existing 1/2" iron pin monument in the northerly line of the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property as recorded in Record Book 3527, page 568, in the Register's Office of Sumner County, Tennessee, said monument also being the southeasterly corner common to Lot 6 of the Gallatin Industrial Center Phase 3, A Resubdivision of Lot 2 Gallatin Industrial Center Phase 2 and Subdivision of a Portion of Tax Map 111, Parcel 1.00, recorded as Plat Book 28, Page 193, in the Register's Office of Sumner County, Tennessee;

Thence continuing along with the northerly lines of the Bonnie M. Modelo Trustee of the Patricia M. Cole Family Tennessee Revocable Trust Property and the James and Faye Caldwell Property the following two calls: S 82°46'10" E a distance of 356.97' to a new iron pin monument;

Thence S 83°12'10" E a distance of 1727.48' to a new iron pin monument, said monument being the TRUE POINT OF BEGINNING;



Thence continuing along with a 60' wide by 100' long for ingress and egress easement the following six calls: N 06°47'50" E a distance of 100.00' to a point;

Thence S 83°12'10" E a distance of 30.30' to a new iron pin monument;

Thence S 82°54'50" E a distance of 30.21' to a point;

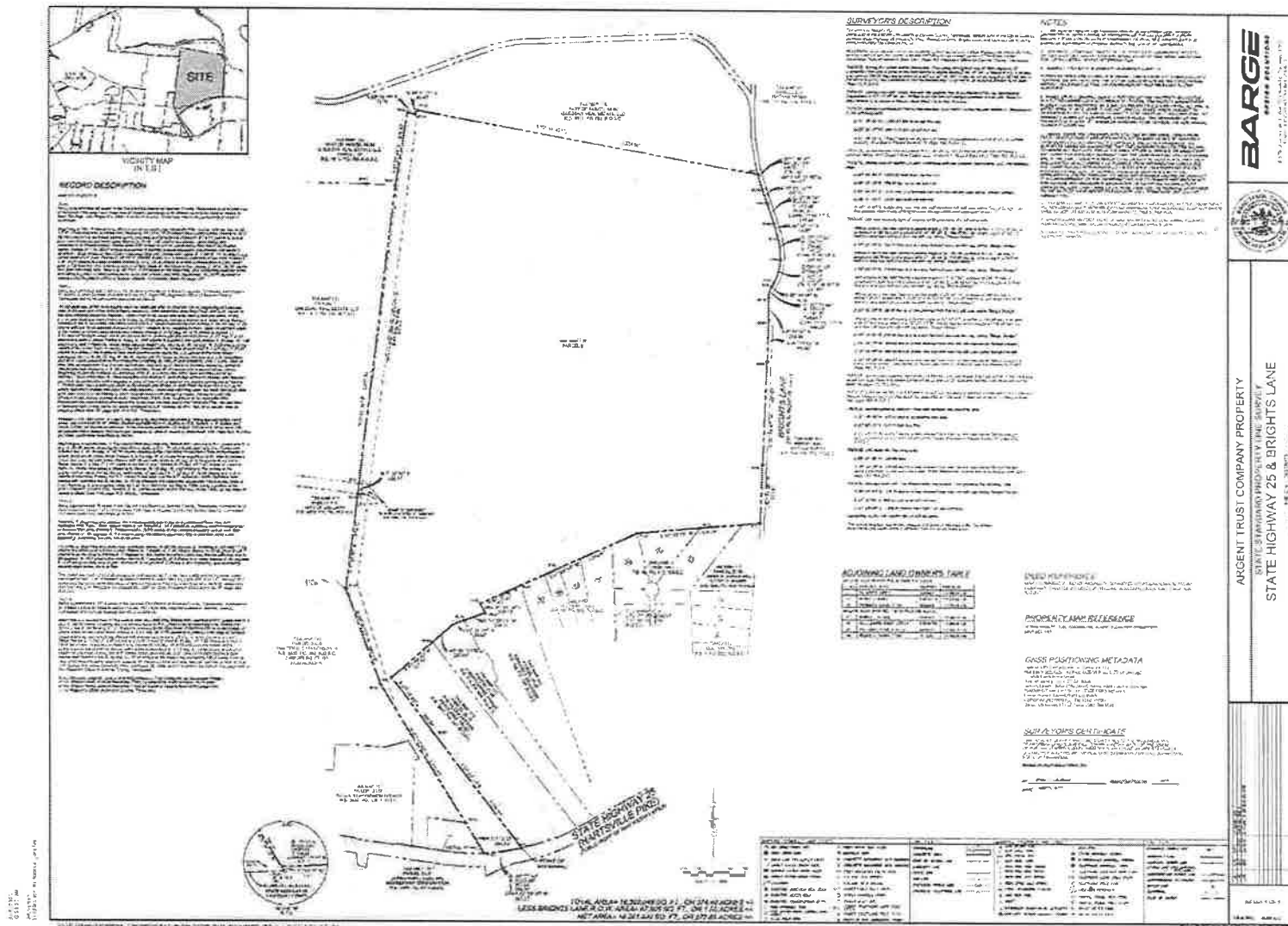
Thence S 07°05'10" W a distance of 100.00' to a point;

Thence N 82°54'50" W a distance of 29.96' to a new iron pin monument;

Thence N 83°12'10" W a distance of 30.04' to a point, which is the point of beginning, having an area of 6,025 square feet, 0.14 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by Blue Ridge Surveying, Inc., certified by Brian M. Reifschneider RLS #2487, and dated November 10, 2014.







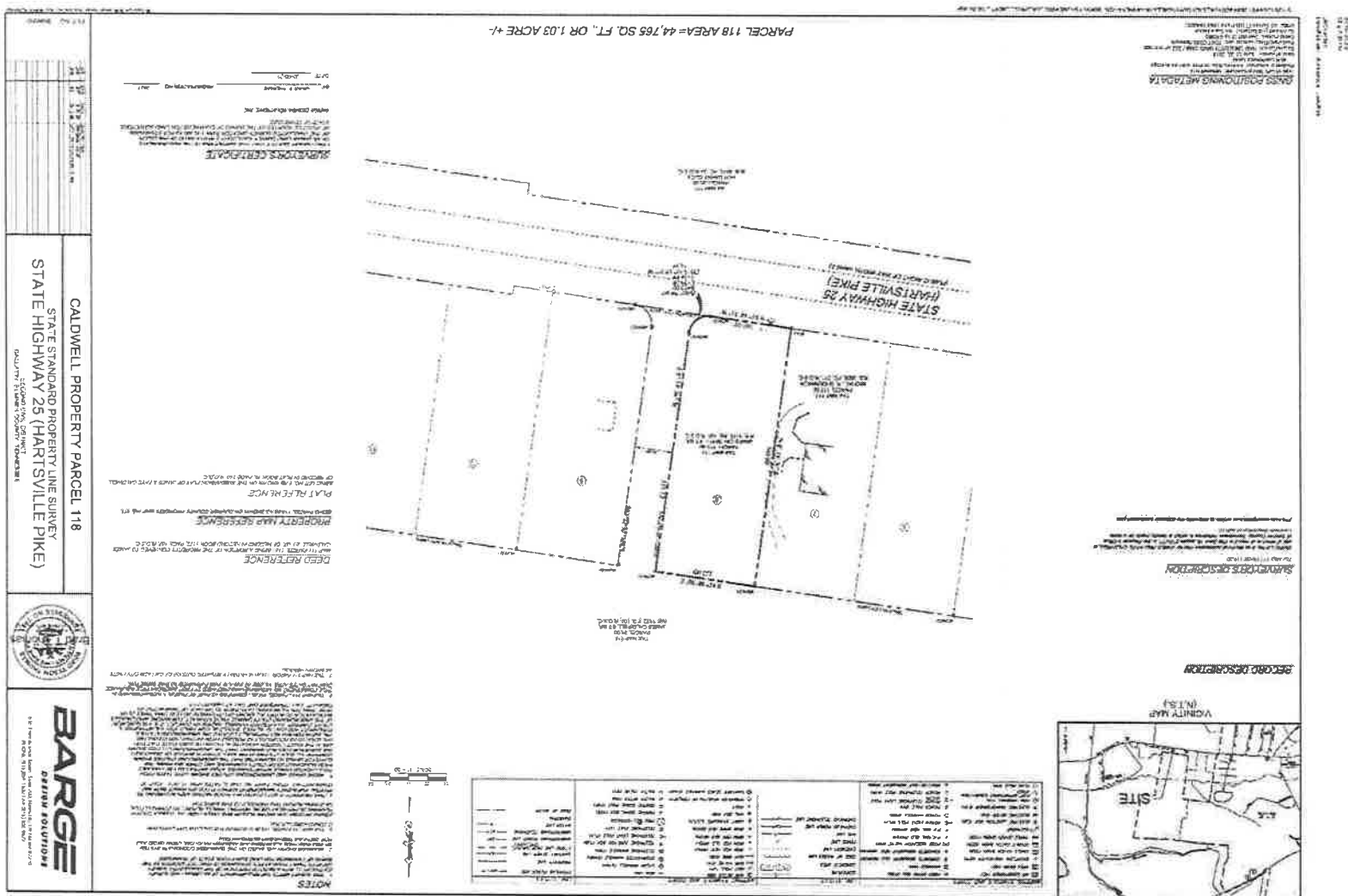




EXHIBIT "A"

GRAPHIC SCALE

0' 250' 500' 750'

SCALE: 1" = 250'

| LINE | BEARING       | DISTANCE |
|------|---------------|----------|
| L1   | N 07°07'14" E | 100.00'  |
| L2   | S 82°46'10" E | 356.78'  |
| L3   | S 82°54'50" E | 610.42'  |
| L4   | S 07°09'50" W | 100.00'  |
| L5   | N 82°54'50" W | 610.03'  |
| L6   | N 82°46'10" W | 356.97'  |

6

GALLATIN INDUSTRIAL CENTER PHASE 3  
A RESUBDIVISION OF LOT 2  
GALLATIN INDUSTRIAL CENTER PHASE 2  
AND SUBDIVISION OF A PORTION OF  
TAX MAP 111, PARCEL 1.00  
PLAT BOOK 28, PAGE 193

TAX MAP 111  
(1.00)  
GREGORY REAL  
ESTATE, LLC  
BOOK 1811, PAGE 783  
R.O.S.C., TN

60' EASEMENT FOR INGRESS/EGRESS  
DEED BOOK 541, PAGE 517

TOTAL AREA  
272,456 SQ. FT.  
6.25 ACRES

TAX MAP 112  
(13.02)  
BONNIE M MODELO  
TRUSTEE OF THE  
PATRICIA M COLE  
FAMILY TRUST  
BOOK 3527, PAGE 566  
R.O.S.C., TN

SURVEYED BY:

POINT OF BEGINNING

60' X 100' EASEMENT FOR INGRESS/EGRESS

TAX MAP 111  
(24.00)  
JAMES AND FAYE  
CALDWELL  
BOOK 1172, PAGE 107  
R.O.S.C., TN

TAX MAP 111  
(23.02)  
WALTER STEPHENSON  
BOOK 3432, PAGE 342  
R.O.S.C., TN

TAX MAP 111  
(2.00)  
FRED KELLY  
BOOK 113, PAGE 9  
R.O.S.C., TN

BLUE RIDGE SURVEYING, INC.  
1146 WEST MAIN STREET, P.O. BOX 8071 GALLATIN, TENNESSEE 37066  
OFFICE (615) 451-6795 CELL (615) 426-4449  
BLUERIDGESURVEYING@YAHOO.COM

DATE OF DRAWING: NOVEMBER 10, 2014

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

MAY 26, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

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**SUBJECT:**

Ordinance No. O2006-25 of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres.

**SUMMARY:**

An Ordinance of the City of Gallatin, Sumner County, Tennessee, to rezone 483.36 +/- acres from the R1A-Residential 1A (Sumner County) District to the IR-Industrial Restrictive District, to rezone 40.78 +/- acres from the MDRPUD-Medium Density Residential Planned Unit Development (Sumner County) District to the IR-Industrial Restrictive District, to rezone 116.22 +/- acres from R-15 (PRD) – Residential-15 Planned Residential Development District to the IR-Industrial Restrictive District, and to rezone 6.25 +/- acres from the A-Agricultural Residential District to the IR-Industrial Restrictive District, totaling 646.61 +/- acres, located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

**RECOMMENDATION:**

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning request in GMRPC Resolution No. 2020-078 (ZONE-2020-0012).

**ATTACHMENT:**

☐ Resolution  
☒ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

---

Approved ☒  
Rejected ☐  
Deferred ☐

---

**Notes:**



**A RESOLUTION AMENDING THE URBAN GROWTH BOUNDARY FOR THE CITY OF GALLATIN AND AMENDING THE GROWTH PLAN FOR SUMNER COUNTY TENNESSEE, BY ADDING A 10.51± ACRE PARCEL, A 0.24 ± ACRE PORTION OF PARCEL, A 0.04± ACRE PORTION OF THE OLD HICKORY LAKE RESERVATION AND A 9.33± ACRE PORTION OF BIG STATION CAMP BOULEVARD RIGHT-OF-WAY TO THE GALLATIN URBAN GROWTH BOUNDARY**

**WHEREAS**, a single parcel of land and a portion of a parcel of land located on the east side of Big Station Camp Boulevard, comprising 10.75± acres, and a portion of the Old Hickory Lake Reservation and a portion of Big Station Camp Boulevard right-of-way, comprising 9.57 acres, is located within the current Urban Growth Boundary (UGB) of the City of Hendersonville, Tennessee; and

**WHEREAS**, the City of Gallatin and the City of Hendersonville desire to amend the Urban Growth Boundary of the Cities by contracting the Urban Growth Boundary of the City of Hendersonville to remove certain properties and rights-of-way from the City of Hendersonville's Urban Growth Boundary and to add the same properties and right-of-way to the City of Gallatin's Urban Growth Boundary; and

**WHEREAS**, the City of Hendersonville is considering a similar resolution to contract the boundary line of the its Urban Growth Boundary as described above to allow for the City of Gallatin to expand its Urban Growth Boundary, and

**WHEREAS**, the City of Gallatin desires to amend its Urban Growth Boundary line along a common boundary line of the two cities upon approval of this resolution and upon approval by the Local Government Policy and Advisory Committee (LGPAC), conditioned upon adoption of a resolution by the City of Hendersonville to do the same, as requested by a contiguous property owner and/or the City of Gallatin, meeting the requirements of T.C.A. 6-58-118, which does not require the county coordinating committee to approve.

**NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin City Council hereby approves amendment of the Urban Growth Boundary of the City of Gallatin as follows:**

**Section 1.** The property identified as Tax Map 137, Parcel 011.01 consisting of 10.51± acres, and a portion of parcel 012.00, consisting of 0.24± acres, and a 0.04± acre portion of the Old Hickory Reservoir Reservation located north of Lakeland Drive, and all of Big Station Camp Boulevard right-of-way located between just south of Lakeland Drive at the current Gallatin City Limits and the CSX Railroad consisting of approximately 9.33± acres, as shown on the Sumner County, Tennessee, Tax Assessor's Office, and as indicated in Exhibit 'A' is hereby added to the Urban Growth Boundary of the City of Gallatin upon approval by the LGPAC. By taking such action the Hendersonville Urban Growth Boundary and Gallatin Urban Growth Boundary will be set to the western right-of-way line of Big Station Camp Boulevard right-of-way from just south of Lakeland Drive and Lower Station Camp Creek Road, approximately 800 feet north of

Nashville Pike, to the south right-of-way line of the CSX Railroad. This will permit the Big Station Camp Boulevard right-of-way, as described above, and the aforementioned parcels to be annexed into the Gallatin City Limits for its entirety from Nashville Pike to the CSX Railroad right-of-way and, upon approval of a similar resolution by the City of Hendersonville, to permit the properties described above to be removed from the Hendersonville Urban Growth Boundary.

**Section 2.** All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

**Section 3.** Upon approval of the Resolution and approval by the LGPAC the Urban Growth Boundary shall be amended on official maps of the City.

**Section 4.** If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

**Section 5.** This resolution shall take effect at the earliest date allowed by law, the public welfare requiring such.

**IT IS SO ORDERED.**

PRESENT AND VOTING.

AYE:

NAY:

DATED:

\_\_\_\_\_  
MAYOR PAIGE BROWN

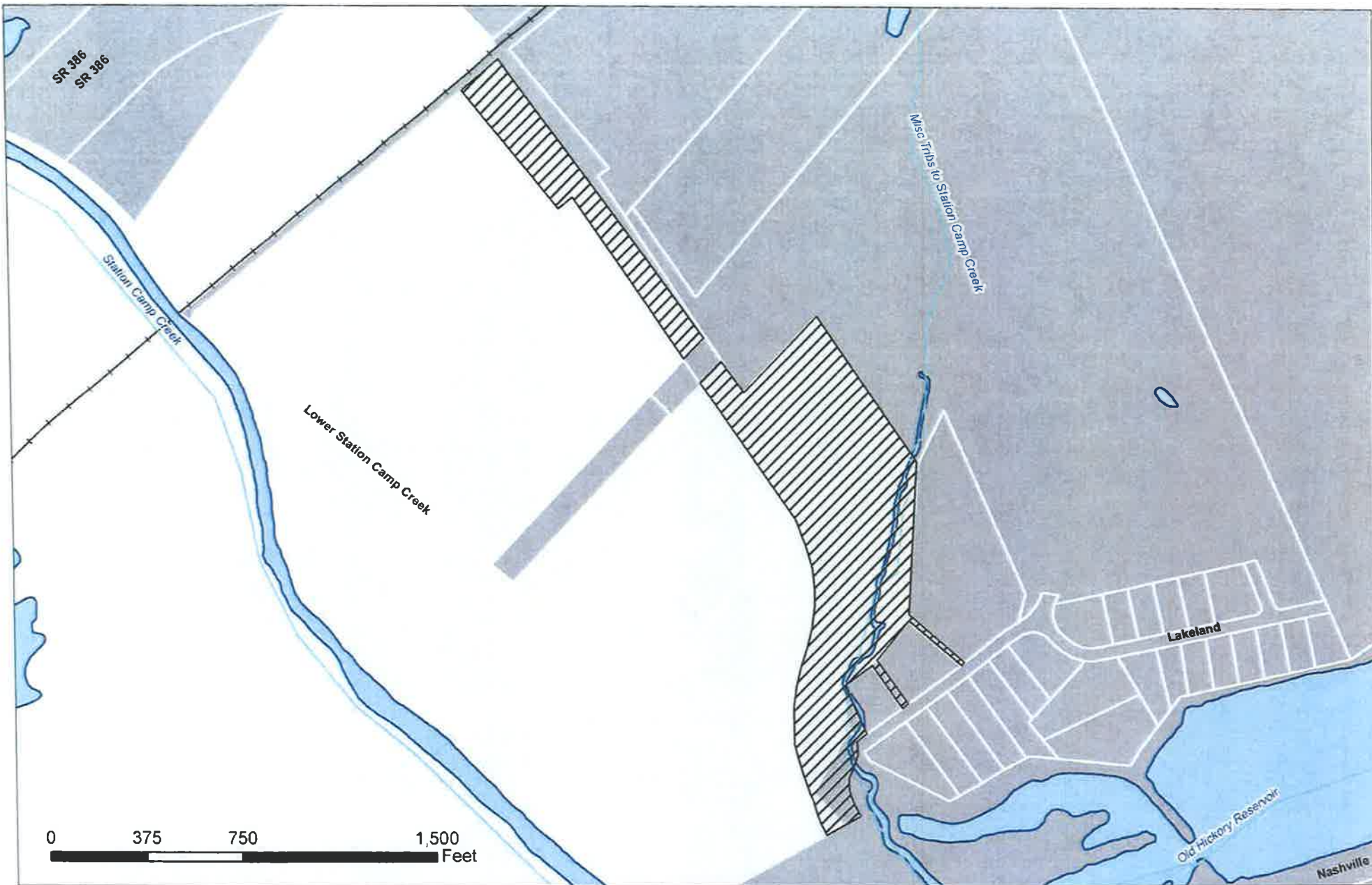
ATTEST:

\_\_\_\_\_  
CONNIE KITTRELL  
CITY RECORDER

APPROVED AS TO FORM:

\_\_\_\_\_  
SUSAN HIGH-MCAULEY  
CITY ATTORNEY

Exhibit 'A' – Map of Urban Growth Boundary Adjustments



# EXHIBIT A

**City of Gallatin, TN  
Sumner County**



Area to Add to the Gallatin UGB and Remove from the Hendersonville UGB



1 in = 500 feet

06/16/2020 City Council Meeting Agenda-Page 127 Date: 6/11/2020

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

June 9, 2020

**DEPARTMENT: PLANNING DEPARTMENT**

**AGENDA #**

**SUBJECT:**

A Resolution No. R2006-32 of the City of Gallatin, Sumner County, Tennessee, to adopt an amendment to the Urban Growth Boundary of the City of Gallatin affecting four properties and part of the Big Station Camp Creek Boulevard right-of-way located in the area south of the CSX Railroad and north of Nashville Pike.

**SUMMARY:**

This is a resolution of the City of Gallatin, Sumner County, Tennessee, adopting an amendment to the Urban Growth Boundary. This change will be considered with a similar change by the City of Hendersonville and only involves these two jurisdictions per Tennessee Code Annotated 6-58-118. The result of the Urban Growth Boundary amendment would be to remove 2.46 acres of property from the Gallatin Urban Growth Boundary area and to allow for the area to be included in the Hendersonville Urban Growth Boundary area and, likewise, to convey 20.12 acres of property and right-of-way, now in the Hendersonville Urban Growth Boundary, to be included in the Gallatin Urban Growth Boundary. Hendersonville is working on a similar resolution to do the same.

**RECOMMENDATION:**

The Gallatin Municipal-Regional Planning Commission will discuss the proposed Urban Growth Boundary change at the on June 8<sup>th</sup> work session and at the regular meeting on June 22<sup>nd</sup>.

**ATTACHMENT:**

☒ Resolution  
☐ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☐ Other

Approved  
Rejected  
Deferred

|                                     |
|-------------------------------------|
| <input checked="" type="checkbox"/> |
| <input type="checkbox"/>            |
| <input type="checkbox"/>            |

**Notes:**

**RESOLUTION NO. R2006-33**

**RESOLUTION AUTHORIZING MAYOR TO EXECUTE BIG STATION  
CAMP BOULEVARD CORRIDOR TRANSPORTATION IMPROVEMENTS  
PRO-RATA SHARE AGREEMENT WITH TNHOMESITES.COM AND TENN  
PROPERTIES NEWMANS CROSSING GP**

**WHEREAS**, The City Council for the City of Gallatin passed Resolution No. R1909-49 on October 1, 2019, supporting the establishment of the Big Station Camp Boulevard Transportation Improvement District; and

**WHEREAS**, The City Council for the City of Gallatin amended Gallatin's Municipal Code, Chapter 16, Traffic and Vehicles by adding Article VIII, establishing the Big Station Camp Boulevard Transportation Improvement District and approved a sample Pro-Rata Share Agreement by Ordinance No. O1909-46 on April 21, 2020; and

**WHEREAS**, TNHomesites.com and Tenn Properties Newmans Crossing GP (collectively "Developer") has received approval of its Final Master Development Plan and is prepared to commence construction of Newmans Crossing; and

**WHEREAS**, The City of Gallatin has assessed Developer's pro-rata contribution toward the required traffic and transportation improvements to the Big Station Camp Boulevard Corridor; required by Ordinance No. O1909-46; and

**WHEREAS**, the agreement between the City and Developer for Developer's contribution toward the Big Station Camp Boulevard Corridor traffic and transportation improvement have been memorialized in a formal agreement, attached hereto as Exhibit 1; and

**NOW THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE**, the Mayor is authorized to execute the attached Pro-Rata Share Agreement with Developer for the Big Station Camp Boulevard Corridor

**BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE**, that this Resolution shall take effect upon passage, the public welfare requiring such.

**IT IS SO ORDERED.**

PRESENT AND VOTING:

AYE:

NAY:

DATED:

---

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

---

CONNIE KITTRELL  
CITY RECORDER

---

SUSAN HIGH-MCAULEY  
CITY ATTORNEY

**Pro-Rata Share Agreement for the Big Station Camp Boulevard Transportation  
Facility Improvements**

**BIG STATION CAMP BOULEVARD CORRIDOR TRANSPORTATION  
IMPROVEMENTS PRO-RATA SHARE AGREEMENT**

This Big Station Camp Boulevard Corridor Transportation Improvements Pro-Rata Share Agreement (this “Agreement”) is made and entered this \_\_\_\_ day of \_\_\_\_\_, 2020, by and between the CITY OF GALLATIN, TENNESSEE, a chartered Tennessee municipality located in Sumner County, Tennessee, whose mailing address is 132 West Main Street, Gallatin, Tennessee 37066 (the “City”), and TNHOMESSITES.COM, with its principal office located at 190D Saundersville Road, Suite 1003, Hendersonville, TN 37075 (“Commercial Developer”) and TENN PROPERTIES NEWMANS CROSSING GP, a Tennessee general partnership (“Residential Developer” and together with the Commercial Developer, collectively, the “Developer” or the “Property Owner”). The City, the Commercial Developer and the Residential Developer shall hereinafter be collectively referred to as the “Parties.”.

**RECITALS:**

**WHEREAS**, The City Council of the City of Gallatin determines that the City and the citizens of the City receive a public benefit of improved transportation services from entering into this Agreement; and

**WHEREAS**, the City held a public hearing related to the proposed agreement and assessment and notified the property owners affected by the proposed assessment as described in Tennessee Code Annotated, Title 7, Chapter 32, Sections 101 and 104 – 106; and

**WHEREAS**, the owners of property subject to this Agreement received written notice of the levy of assessment as described in this Agreement by certified mail as required by Tennessee Code Annotated, Title 7, Chapter 32, Section 115 (b)(6); and

**WHEREAS**, attached to this Agreement are exhibits describing in greater detail the Parties hereto, real property, traffic impact study and transportation improvements list which are referenced throughout this Agreement. The Parties agree that all attached exhibits have been reviewed and previously approved by the Parties; and

**WHEREAS**, the Parties agree that all attached exhibits have been reviewed and previously approved by the Parties and their respective professional consultants, and all cumulative information set forth or otherwise referenced therein is incorporated herein by reference; and

**WHEREAS**, the Property Owner/Developer desires to permit, to site plan, to develop, and/or to plat the real property (the “Newmans Crossing”, the “Project” or the “Development”) consistent with the Development Data on the attached Exhibit ‘1-A’, ‘1-B’ and ‘1-C’; and, in addition to other requirements, is seeking to comply with the City's requirement to make certain transportation improvements as a condition of zoning and preliminary master plan on the Development approved by the Gallatin City Council and the and final master development plan/final plat/site plan approval by

the Gallatin Municipal-Regional Planning Commission on the Development, respectively, for Big Station Camp Boulevard Transportation Facility Improvements as authorized under Chapter 16, Article VIII , Gallatin Code of Ordinances; and

**WHEREAS**, the Property Owner/Developer is joined by the City who desires to preserve and create capacity to permit construction of the proposed “transportation corridor improvements” including to site plan/develop and to plat the Development consistent with the Development Data on the attached Exhibit 1-A, 1-B and 1-C and are seeking to comply with the City's zoning regulations; and

**WHEREAS**, Commercial Developer is the owner of the Phase 2B portion of the Project (“Commercial Project”) and Residential Developer is the owner of the Phase 1 and Phase 2A portion of the Project (“Residential Project”), all as described on Exhibit “A” attached hereto; and

**WHEREAS**, the transportation corridor improvement projects (the “Recommended Intersection and Roadway by Design Year for the Big Station Camp Boulevard Transportation Improvement District” “Development Pro-Rata Share Improvements” or “Transportation Corridor Improvements”) described in Exhibit ‘C’ of Ordinance No. O1909-46 include the estimated costs for the completed improvements (FY2019\$) and cumulative assessment value basis for a project impact on the public transportation facilities, required for the Property Owner/Developer to meet minimum requirements for transportation facilities operation in the Big Station Camp Boulevard Corridor to support the proposed Development are identified in Exhibit ‘3’ attached hereto; and

**WHEREAS**, the Parties acknowledge and agree that the proposed Development creates additional transportation impacts to the Big Station Camp Boulevard corridor that may be addressed by the development of improvements within and in proximity to the Development and as set forth in *the City of Gallatin on the Move 2020 Plan* and on the approved zoning with preliminary and final master development plans; and

**WHEREAS**, the Property Owner/Developer shall be eligible for credits for all off-site design and construction plans and permits and costs, and other items described in Tennessee Code Annotated §7-32-119, certified to the City (the “Offsite Improvements”) and collectively referred to hereinafter as the “Big Station Camp Boulevard Improvement Project”; and

**WHEREAS**, the City acknowledges that the Property Owner/Developer may construct the improvements in the Big Station Camp Boulevard Corridor in lieu of the immediate payment by the Property Owner/Developer for all cumulative impacts to Big Station Camp Boulevard and such improvements are eligible for pro-rata share credits; and

**WHEREAS**, the City Council determines that the Property Owner/Developer subject to this Agreement and the citizens of the City will receive a public benefit from entering into this Agreement; and

**WHEREAS**, the Property Owner/Developer acknowledges and agrees that payments and/or the Property Owner/Developer’s completion of the off-site improvements in the Big Station Camp Boulevard Corridor according to the “Timing and Allocation for Developer Payments” in Exhibit ‘4’,



and the City's acceptance of such, as outlined in the Timing and Allocation for Developer Payments on the attached Exhibit '4', shall be conditions precedent to the issuance of the first vertical building permit for the Commercial Project portion of the Development; and

**WHEREAS**, the City and the Property Owner/Developer agree that the new capacity created by the Big Station Camp Boulevard improvements may not be the actual excess capacity of the roadway necessary to serve project traffic, as a result of the need to account for vested trips, pursuant to the transportation study conducted for Big Station Camp Boulevard, from previously approved, but un-built, developments.

**NOW, THEREFORE**, in consideration of the mutual covenants contained herein and other valuable considerations, the receipt and sufficiency of which are hereby acknowledged, the City and Property Owner/Developer, hereby agree as follows:

1. **Incorporation of Recitals.** The facts stated above in the recitals are incorporated by reference herein and deemed by the Parties to be true, correct and constitute a material part of this Agreement.
2. **Offsite Construction.** The City agrees to permit the Property Owner/Developer to construct, or to have constructed, the "Transportation Corridor Improvements" subject to plan and permit approval by the City. Construction of the Transportation Corridor Improvements will commence and be complete to meet long-term transportation needs of the corridor as identified in Exhibit C of Ordinance No. O1909-46. The Property Owner/Developer, or its designee, may be responsible for the design of the Transportation Corridor Improvements, which design will be in accordance with the description of improvements referenced on the Exhibits and subject to approval by the City, since credits for the design cost will be applied. All planning, permitting, and construction will be subject to the review and approval, if applicable, by the Tennessee Department of Transportation and Sumner County, and will comply with the standards and requirements established by the appropriate governmental entities, where applicable. The Property Owner/Developer will have no responsibility for maintenance or upkeep of the Transportation Corridor Improvements except as may otherwise be lawfully enacted and after acceptance of the off-site improvements by the City.
3. **Payment of Pro-Rata Share Assessment Amount.** In connection with the Property Owner/Developer's construction of the Transportation Corridor Improvements and as a condition and requirement for receiving the first vertical building permit for the Commercial Project portion of the Development, the Property Owner/Developer shall pay to the City a pro-rata share obligation, hereinafter the "Pro-Rata Share Payment." The Pro-Rata Share Payment shall be an amount determined and calculated pursuant to the assessment identified in Ordinance No. O1909-46 for the Big Station Camp Boulevard Corridor Transportation Study consistent with Article 13, Section 13.06, Subsection 13.06.010 E. of the Gallatin Zoning Ordinance as amended from time to time, and a current Development Traffic Impact Study ("TIS") prepared for the Development attached hereto as Exhibit "2". The anticipated total payment is \$2,108 (FY2019\$) per P.M. peak hour trip generated by the project or **\$805,256 for 382 Trips** subject to adjustments as described in Section 4 below and indexed by NHCCCI - 2.0 (1.9511 for 2019) at the time of each final plan approval.

The Property Owner/Developer shall be entitled to receive transportation corridor improvement credits, as indexed by NHCCCI - 2.0 (1.9511 for 2019) at the time of contribution, against the amount of Pro-Rata Share Payments otherwise due for constructing any of the following listed Transportation Corridor Improvements in conjunction with the Development provided the credited improvements are completed or surety payment received, acceptable to the City, prior to obtaining the first vertical building permit for the first building in the Commercial Project portion of the Development. Upon confirmation that all of the Transportation Corridor Improvements have been constructed, the City shall release the Surety to the applicable Property Owner/Developer who deposited such Surety.

- CONSTRUCTION OF 300' NORTHBOUND LEFT TURN LANE ON BIG STATION CAMP BOULEVARD WITH INTERSECTION IMPROVMENTS: \$587,000
- EXTENSION OF NORTHBOUND LEFT TURN LANE ON BIG STATION CAMP BOULEVARD TO OVER 500' AND EXTENSION OF EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE NEAR 300': \$226,000

**TOTAL-        \$813,000**

Any Transportation Corridor Improvements listed above not constructed with the Development shall not be credited against the Pro-Rata Share Payment otherwise due and require payment by the Property Owner/Developer in cash or certified check or wire transfer of the remaining balance of the estimated cost of the Pro-Rata Share Payment.

Upon request from Property Owner/Developer, the City shall provide evidence and confirmation of payment of the Pro-Rata Share Payment in form reasonably requested by Property Owner/Developer, upon Property Owner/Developer's completion of the Transportation Corridor Improvements.

#### **4.      Property Owner's/Developer's Payment.**

- A.** To the extent applicable, to guarantee payment of its Pro-Rata Share Payment, the Property Owner/Developer agrees to procure a sufficient surety in favor of the City in an amount of \$805,256, as provided in this Agreement, prior to issuance of the permit by the City for the Transportation Corridor Improvements ("Surety") as outlined on the "Timing and Allocation for Payments" in attached Exhibit "4". Notwithstanding the foregoing, the foregoing obligation shall be subject to the terms and conditions set forth on Exhibit "4" attached hereto. Payment of the Surety is subject to cost adjustments consistent with the National Highway Construction Cost Index - 2.0 (NHCCI 2.0) maintained by the Federal Highway Administration, as amended, and as referenced in Ordinance No. O1909-46. The Property Owner/Developer shall pay the City by cash, Certified Check or wire transfer, the Surety as outlined on the "Timing and Allocation for Payments" in attached Exhibit '4'. The amount of the Surety may be reduced by the amount paid by the Property Owner/Developer with each building permit on a schedule as permitted by Chapter 3, Gallatin Subdivision Regulations, if applicable.

In no event shall any subdivision, building permit or certificate of occupancy on the Residential Project be conditioned, delayed or withheld prior to completion of the Transportation Corridor Improvements.

- B. The Surety shall be held in trust by the City and must be deposited with the City as outlined on the "Timing and Allocation for Payments" in attached Exhibit "4". No vertical building permit shall be issued for any building within the Commercial Project portion of the Development by the City until proper payment of the Surety as required herein.
  - C. Any Transportation Corridor Improvements for which a Property Owner/Developer requests credits against the Pro-Rata Share Payment must be substantially completed prior to receiving a certificate of occupancy for the first building on the Commercial Project of the Development, except as otherwise provided in this Agreement. Any Transportation Corridor Improvements listed above not constructed with the Development shall not be credited against the Pro-Rata Share Payment otherwise due and require payment by the Property Owner/Developer in cash or certified check or wire transfer of the remaining balance of the estimated cost of the Pro-Rata Share Payment.
  - D. If the Approved plan for Newmans Crossing is changed to add or reduce units which affect the number of p.m. peak hour trips assigned to Big Station Camp Boulevard, the amount of the Pro-Rata Share Payment identified in this Agreement to be paid by the Property Owner/Developer to the City shall be modified by amending this Agreement as part of the approval of the revised plan, and the Party requesting such change shall be responsible for 100% of any additional amounts required to be paid hereunder and for providing any additionally corresponding Surety. Said modifications, however, shall be within the confines of this Agreement as to the per P.M. peak hour trip cost and the ability of the Property Owner/Developer to provide Surety at the time of final development approval by the City and actual payment with the issuance of individual vertical building permits.
  - E. If any portion of the Development is sold or otherwise transferred to another entity for ownership, development, or construction, the transferee, as a condition to any future development or construction on the portion of the Development so transferred, such transferee shall deliver the "Joinder Agreement for Transferees of the Property Owner/Developer" attached hereto as Exhibit '5' and the appropriate Surety and/or payment of the Pro-Rata Share Payment as may be required for said portion of the Development if not already provided or paid hereunder.
5. **Vested Rights in Project Traffic.** The City agrees that by paying or providing the Surety for the Pro-Rata Share Payment, and by receiving a vertical building permit and constructing any qualified off-site improvements for the Development, the Property Owner/Developer will be deemed to have satisfied the City's transportation pro-rata share requirements for the Development and that the Development shall be fully vested for purposes of complying with Section 13.06.010 E. of the Gallatin Zoning Ordinance and with the zoning with preliminary master development plan and final master development plan/site plan/final plat for the Development.

6. **Application of Agreement Limited to the Development.** Nothing herein is intended to bind the City in allocating any additional trip capacity provided by the construction of the Transportation Corridor Improvements beyond that provided to the Development in connection with the Pro-Rata Share Payment or to require the City to declare any other project as a transportation corridor improvement. The City expressly reserves the right to determine and allocate available excess capacity for all future developments within its jurisdiction and other jurisdictions that impact the Transportation Corridor Improvement Projects.
7. **Breach of Pro-rata Share Agreement.** If the Property Owner/Developer, upon proper notice fails to make timely payment of the Pro-Rata Share Payment or to design and construct the improvements for which the Property Owner/Developer is requesting credits, then the applicable failing Property Owner/Developer shall be deemed to be "Not in Good Standing" and shall be in breach of this Agreement. Upon a breach, the City shall determine the number of trips paid for under the adjusted calculation. The City shall not issue any further vertical building permits or certificates of occupancy for the Commercial Project until the adjusted cost of the trips allocated to that portion of the Development have been paid by the Property Owner/Developer and received by the City.
8. **Miscellaneous.**
- A. **Venue and Choice of Law.** In the event of litigation regarding the terms of this Agreement or documents executed as a result of this Agreement, venue of the action shall be in Sumner County and Tennessee law shall apply. Trial shall be nonjury for any issues subject to trial.
- B. **Waiver.** The waiver by a party of any terms or conditions of this Agreement or any breach hereof shall not constitute a waiver of any other term or condition or any subsequent breach of this Agreement.
- C. **Successors.** This Agreement shall be binding on the Parties thereto, their heirs, administrators, executors, successors in interest and assigns.
- D. **Construction of Contract.** The Parties hereto agree that they have all participated in the drafting of this Agreement, including the calculations included in the Exhibits for the proposed Big Station Camp Boulevard Transportation Corridor Improvements. Therefore, the presumption that any ambiguity or vagueness in the construction of this Agreement shall be construed against the drafter shall not apply. The terms and provisions of the Agreement shall be applied equally to each party and the interpretation of the Agreement shall be guided by the express intent of the Parties and the City's Land Development Regulations as determined by the overall effect of the provisions herein.
- E. **Amendments.** Amendment to this Agreement shall not be effective unless in writing and signed by all record title property owners of the Project or that portion of the Project for which the amendment is to be applied (but excluding the record title property owners for land that is unaffected by the amendment), and the City.

- F. Conflicts.** The Property Owner/Developer agrees to be bound by all City codes and ordinances that are not in conflict with the provisions of this Agreement.
- G. Recording.** The Property Owner/Developer shall record a copy of this Agreement, at its sole cost and expense, with the Register's Office of Sumner County, Tennessee.
- H. Binding Nature and Covenants Running With the Land.** The provisions of this Agreement shall be binding upon the Parties hereto, and upon all successors in interest in the subject real property. And further, the provisions of this Agreement shall constitute covenants running with the land applicable to all of the subject real property comprising the referenced Development.
- I. Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed to be an original but all of which together shall constitute one and the same instrument. The delivery by facsimile or email "PDF" of an executed copy of this Agreement shall be deemed valid as if an original signature were delivered; provided original signatures must be provided to effect the recording of this Agreement as contemplated herein.
- J. Entire Agreement.** This Agreement represents the entire agreement between the Parties and there are no oral or collateral agreements or understandings. This Agreement may be amended only by an instrument in writing signed by the parties. If any other provision of this Agreement is held invalid or unenforceable, no other provision shall be affected by such holding, and all of the remaining provisions of this Agreement shall continue in full force and effect.

**[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]**

**IN WITNESS WHEREOF**, the Parties have agreed as set forth above.

**CITY:**  
**CITY OF GALLATIN, TENNESSEE**

**BY:** \_\_\_\_\_  
PAIGE BROWN, MAYOR

**ATTEST:**

\_\_\_\_\_  
CONNIE KITRELL  
CITY RECORDER

**COMMERCIAL DEVELOPER:**

**TNHOMESITES.COM**, a Tennessee general partnership

**By:** \_\_\_\_\_

**Name:** \_\_\_\_\_

**Its:** \_\_\_\_\_

**RESIDENTIAL DEVELOPER:**

**TENN PROPERTIES NEWMANS CROSSING GP**, a Tennessee general partnership

**By:** \_\_\_\_\_

**Name:** \_\_\_\_\_

**Its:** \_\_\_\_\_

Exhibit "A" – Legal Description of the Development  
Exhibit '1A' – Approved Preliminary Master Development Plan  
Exhibit '1B' – Approved Final Plat Phase 2B  
Exhibit '2' – Traffic Impact Study for Newmans Crossing  
Exhibit '3' – List and Cost Sheet of Off-site improvements to be constructed by the Property Owner/Developer  
Exhibit '4' – Timing and Allocation for Developer Payments  
Exhibit '5' – Joinder Agreement for Transferees of the Property Owner/Developer

## **Exhibit "A" – Legal Description of the Development**

### **COMMERCIAL PROJECT:**

#### **Lot 1**

BEGINNING at an iron rod (new) on the southerly right-of-way of Long Hollow Pike (width varies) at its intersection with the easterly boundary line of the Stuart Hendrix and Rachel Hendrix property recorded in Record Book 3962, Page 583, being the northwest corner of the herein described tract;

Thence, with said southerly right-of-way, as follows:

North 83 degrees 49 minutes 59 seconds East 210.00 feet to an iron rod (old),

North 84 degrees 24 minutes 45 seconds East 153.97 feet to and iron rod (old),

South 88 degrees 47 minutes 00 seconds East 69.30 feet to a concrete monument (old),

Northeasterly an arc length of 163.72 feet along a non-tangent curve in said right-of-way concave to the south and having a radius of 5729.58 feet, a central angle of 1 degrees 38 minutes 14 seconds and a chord bearing of North 85 degrees 09 minutes 10 seconds East for a distance of 163.71 feet to an iron rod (new),

Thence, leaving said right-of-way and severing TNHOMESITES property recorded in Record Book 4861, Page 651 and Record Book 3596, Page 445 in said Register's Office, as follows:

South 6 degrees 39 minutes 50 seconds East 3.04 feet to an iron rod (new),

Southeasterly an arc length of 29.95 feet along a curve concave to the northeast and having a radius of 77.00 feet, a central angle of 22 degrees 17 minutes 09 seconds and a chord bearing of South 17 degrees 48 minutes 24 seconds East for a distance of 29.76 feet to an iron rod (new), Southeasterly an arc length of 49.48 feet along a reverse curve concave to the southwest and having a radius of 103.44 feet, a central angle of 27 degrees 24 minutes 27 seconds and a chord bearing of South 15 degrees 14 minutes 45 seconds East for a distance of 49.01 feet to an iron rod (new); South 3 degrees 28 minutes 01 seconds East 158.46 feet to an iron rod (new),

South 48 degrees 27 minutes 44 seconds East 20.51 feet to an iron rod (new), and North 86 degrees 32 minutes 16 seconds East 261.87 feet to an iron rod (new) on the westerly right-of-way (100 feet wide) of Big Station Camp Boulevard;

Thence, with said westerly right-of-way, South 6 degrees 57 minutes 21 seconds West 84.47 feet to an iron rod (new);

Thence, leaving said right-of-way and severing said TNHOMESITES property (Sumner County Maps 124 Parcels 35.08 and 35.01) as follows:

North 79 degrees 59 minutes 28 seconds West 28.89 feet to an iron rod (new),

North 10 degrees 00 minutes 32 seconds East 11.14 feet to an iron rod (new),

North 84 degrees 00 minutes 00 seconds West 118.70 feet to an iron rod (new),

South 86 degrees 32 minutes 16 seconds West 89.02 feet to an iron rod (new),

South 41 degrees 32 minutes 14 seconds West 41.72 feet to an iron rod (new),

South 03 degrees 27 minutes 44 seconds East 183.58 feet to an iron rod (new);

South 86 degrees 32 minutes 16 seconds West 711.06 feet to an iron rod (new) in said Hendrix's easterly boundary line;

Thence, with said easterly boundary line, North 7 degrees 34 minutes 30 Seconds East 507.35 feet to the BEGINNING containing 8.05± acres or 350,639± square feet.



**Lot 3 (Outparcel 1)**

8th/ Civil District, Sumner County, Tennessee  
Sumner County Tax Map 124 Part of Parcel 35.08

BEGINNING at an iron rod (new) on the westerly right-of-way (100 feet wide) Big Station Camp Boulevard, being North 6 degrees 57 minutes 21 seconds East 559.17 feet along said right-of-way from an iron rod (new) at the northeast corner of Lot 32 on the plan of Newman Downs Phase 3 recorded in Plat Book 26, Page 36 in the Register's Office of Sumner County, Tennessee, and being southeast corner of the herein described tract;

Thence, leaving said right-of-way and severing the TNHOMESITES property recorded in Record Book 3596, Page 445 in said Register's Office, as follows:

South 86 degrees 32 minutes 16 seconds West 228.74 feet to an iron rod (new),  
North 03 degrees 27 minutes 44 seconds West 183.58 feet to an iron rod (new),  
North 41 degrees 32 minutes 14 seconds East 41.72 feet to an iron rod (new),  
North 86 degrees 32 minutes 16 seconds East 89.02 feet to an iron rod (new),  
South 84 degrees 00 minutes 00 seconds East 118.70 feet to an iron rod (new),  
South 10 degrees 00 minutes 32 seconds West 11.14 feet to an iron rod (new),  
South 79 degrees 59 minutes 28 seconds East 28.89 feet to an iron rod (new);

Thence, with said westerly right-of-way South 6 degrees 57 minutes 21 seconds East 178.95 feet to the BEGINNING containing 1.16± acres or 50,328± square feet.

**Lot 2 (Outparcel 2)**

8<sup>TH</sup> Civil District, Sumner County, Tennessee  
Sumner County Tax Map 124 Part of Parcel 35.08

To find the POINT OF BEGINNING, commence at an iron rod (new) on the southerly right-of-way of Long Hollow Pike (width varies) at its intersection with the easterly boundary line of the Stuart Hendrix and Rachel Hendrix property recorded in Record Book 3962, Page 583 in the Register's Office for Sumner County, Tennessee;

Thence, with said southerly right-of-way, as follows:

North 83 degrees 49 minutes 59 seconds East 210.00 feet to an iron rod (old),  
North 84 degrees 24 minutes 45 seconds East 153.97 feet to an iron rod (old),  
South 88 degrees 47 minutes 00 seconds East 69.30 feet to a concrete monument (old),  
Northeasterly an arc length of 163.72 feet along a non-tangent curve in said right-of-way concave to the south and having a radius of 5729.58 feet, a central angle of 1 degree 38 minutes 14 seconds and a chord bearing of North 85 degrees 09 minutes 10 seconds East for a distance of 163.71 feet to an iron rod (new), the POINT OF BEGINNING, being the northwest corner of the herein described tract;

Thence, continuing with said curve and right-of-way, an arc distance of 270.00 feet through a central angle of 2 degrees 42 minutes 00 seconds and a chord bearing of North 87 degrees 19 minutes 17 seconds East for a distance of 269.97 feet to an iron rod (new);

Thence with said right-of-way, a curve with an arc distance of 102.92 feet and having a radius of 60.00 feet, a central angle of 98 degrees 17 minutes and 4 seconds and a chord bearing of South 42 degrees 11 minutes and 11 seconds East for a distance of 90.76 feet to an iron rod (new) at the point of tangency;

Thence, with said westerly right-of-way, South 06 degrees 57 minutes 21 seconds West 181.30 feet to an iron rod (new);

Thence, severing the TNHOMESITES property recorded in Record Book 3596, page 583 in said Register's Office as follows:

South 86 degrees 32 minutes 16 seconds West 261.87 feet to an iron rod (new),

North 48 degrees 27 minutes 44 seconds West 20.51 feet to an iron rod (new),

North 03 degrees 28 minutes 01 seconds West 158.46 feet to the beginning of a curve concave to the southwest and having a radius of 103.44 feet;

Thence, with said curve an arc distance of 49.48 feet through a central angle of 27 degrees 24 minutes 27 seconds and a chord bearing of North 15 degrees 14 minutes 45 seconds West for a distance of 49.01 feet to an iron rod at the beginning of a reverse curve concave to the northeast and having a radius of 77.00 feet;

Thence, with said reverse curve, an arc distance of 29.95 feet through a central angle of 22 degrees 17 minutes 09 seconds and a chord bearing of North 17 degrees 48 minutes 24 seconds West for a distance of 29.76 feet to an iron rod (new) at the point of tangency;

Thence, North 06 degrees 39 minutes 50 seconds West 3.04 feet to the BEGINNING containing containing 1.71 acres or 74,628 square feet.

## **RESIDENTIAL PROJECT**

8<sup>TH</sup> Civil District, Sumner County, Tennessee

Sumner County Tax Map 124 Parcel 35 and parts of Parcels 35.01 and 35.08

BEGINNING at an iron rod (new) on the westerly right-of-way (100 feet wide) of Big Station Camp Boulevard at its intersection with the northerly boundary of Newman Downs Phase 3 recorded in Plat Book 26, Page 36 in the Register's Office for Sumner County, Tennessee, being the southeast corner of the herein described tract;

Thence, with said northerly boundary line as follows:

North 79 degrees 50 minutes 34 seconds West 139.24 feet to an iron rod (new),

South 75 degrees 43 minutes 36 seconds West 56.31 feet to an iron rod (old),

North 73 degrees 57 minutes 46 seconds West 91.25 feet to an iron rod (old),

South 51 degrees 10 minutes 19 seconds West 105.06 feet to an iron rod (old),

North 38 degrees 45 minutes 10 seconds West 27.67 feet to an iron rod (old),

South 51 degrees 08 minutes 49 seconds West 50.00 feet to an iron rod (new),

South 51 degrees 03 minutes 15 seconds West 150.16 feet to an iron rod (old), in the boundary line of the Jeffrey L. Hollins property recorded in Record Book 4641, Page 110 in said Register's Office;

Thence, with said boundary line as follows:

North 38 degrees 08 minutes 38 seconds West 107.84 feet to an iron rod (old),

South 82 degrees 01 minutes 36 seconds West 135.87 feet to an iron rod (old),

South 80 degrees 54 minutes 05 seconds West 217.64 feet to an iron rod (old) in the boundary line of the Stuart Hendrix and Rachel Hendrix property recorded in Record Book 3962, Page 583 in said Register's Office;

Thence, with said boundary line, North 07 degrees 34 minutes 30 seconds East 606.21 feet to an iron rod (new),

Thence, severing the TNHOMESITES.COM property recorded in Record Book 4861, Page 651 and Record Book 3596, Page 445 in said Register's Office, North 86 degrees 32 minutes 16 seconds East 939.80 feet to an iron rod (new) on said westerly right-of-way of Big Station Camp Boulevard;

Thence, with said right-of-way, South 06 degrees 57 minutes 21 seconds West 559.17 feet to the BEGINNING containing 12.17 acres or 529,966 square feet.

**Exhibit '1A' – Approved Preliminary Master Development Plan**

# AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN NEWMANS CROSSING

BIG STATION CAMP BLVD  
GALLATIN, SUMNER COUNTY, TENNESSEE

## SHEET INDEX

|       |                                        |
|-------|----------------------------------------|
| C1.00 | COVER                                  |
| C1.01 | SITE DATA & PHASING PLAN               |
| C1.02 | SITE LAYOUT PLAN                       |
| C1.03 | SITE, UTILITY, GRADING & DRAINAGE PLAN |
|       | LOT DATA & OPEN SPACE PLAN             |
| A1.01 | ARCHITECTURAL RENDERINGS               |
| A1.02 | ARCHITECTURAL RENDERINGS               |
| A1.03 | ARCHITECTURAL RENDERINGS               |
| A1.04 | PROPOSED SIGHT LINES                   |



## OWNER

TNHOMESITES.COM  
147 MAPLE ROW BLVD  
HENDERSONVILLE, TN 37075

## DEVELOPERS

TNHOMESITES.COM  
147 MAPLE ROW BLVD, SUITE 200  
HENDERSONVILLE, TN 37075  
CONTACT: MIKE STANTON  
EMAIL: mstanton@tennprop.com

BLACKWATER DEVELOPMENT COMPANY, LLC  
700 MONTGOMERY HIGHWAY, SUITE 186  
BIRMINGHAM, AL 35216  
CONTACT: JOHN ABERNATHY  
EMAIL: john@blackwaterresources.com

## ENGINEER

CIVIL SITE DESIGN GROUP  
2305 KLINE AVE, SUITE 300  
NASHVILLE, TENNESSEE, 37211  
CONTACT: JIM HARRISON  
PH: (615) 248-9999  
EMAIL: jimh@civil-site.com

**CIVIL·SITE**  
DESIGN GROUP

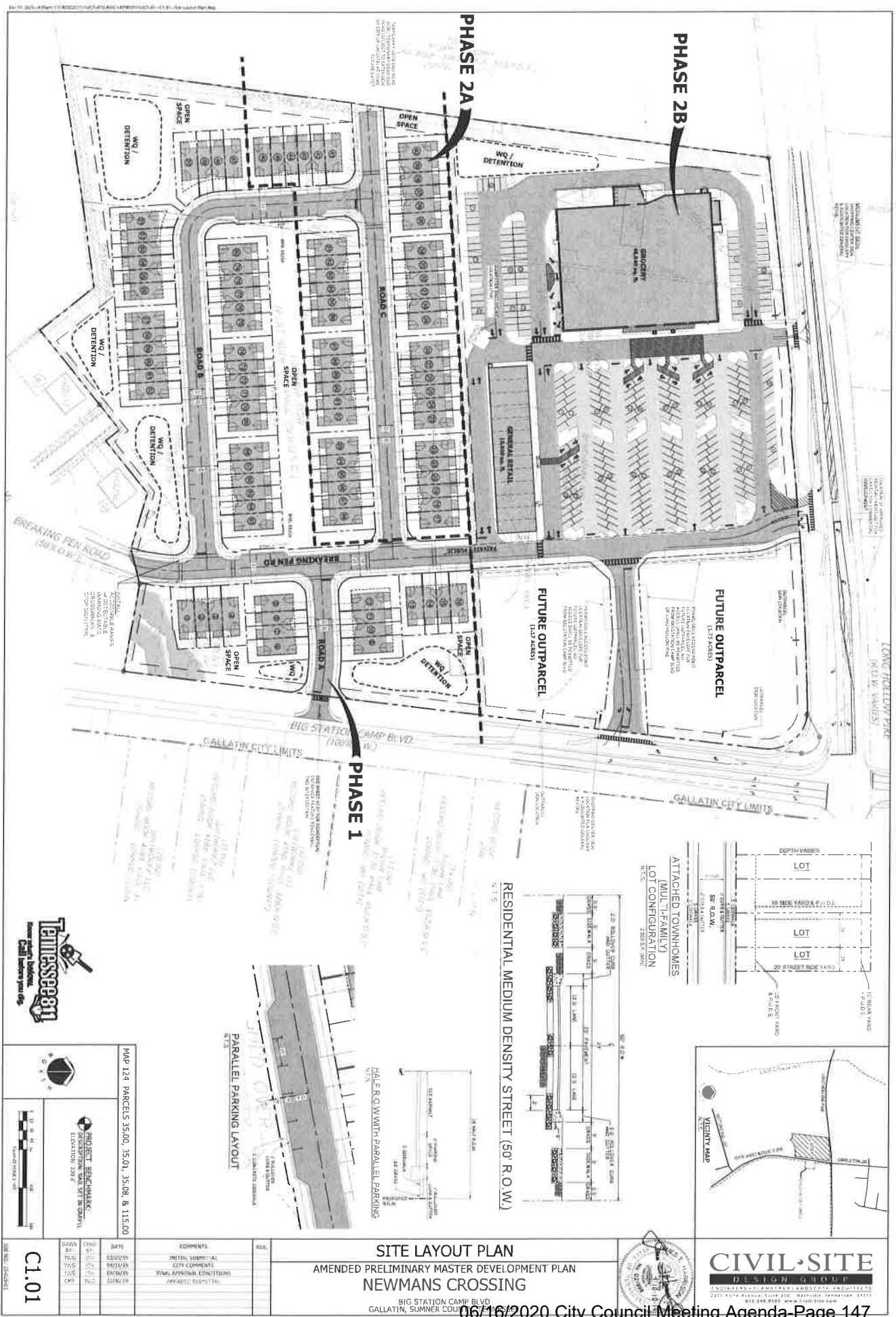
2305 KLINE AVE, SUITE 300 NASHVILLE, TN 37211  
TEL: (615) 248-9999 FAX: (615) 248-9999  
WWW.CIVIL-SITE.COM



| DATE     | BY | DATE     | BY | DATE     | BY | DATE     | BY | DATE     | BY |
|----------|----|----------|----|----------|----|----------|----|----------|----|
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |
| 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH | 01/11/19 | JH |

JOB NO.: 15-025-01  
GALLATIN PROJ NO.:













**4-UNIT BRICK - FRONT**



**6-UNIT BRICK AND HARDIE - FRONT**



**4-UNIT BRICK - SIDE**



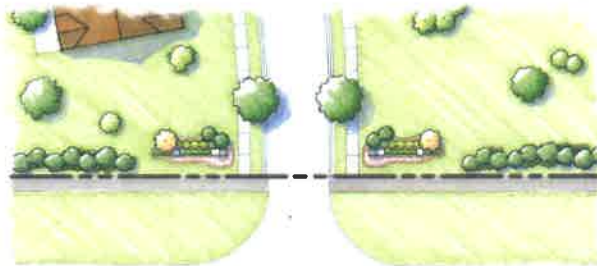
**4-UNIT BRICK - REAR AND SIDE**



**6-UNIT BRICK AND HARDIE - REAR AND SIDE**



**6-UNIT BRICK AND HARDIE - SIDE**



**TOWNHOME ENTRANCE FEATURE - BIG STATION CAMP INTERSECTION**



**SAMPLE ARCHITECTURE ELEMENTS TO BE USED  
AS GUIDELINE FOR FUTURE OUTPARCEL DESIGN**

(THE COMMERCIAL PHASES OF THIS DEVELOPMENT SHALL ADHERE TO BRICK REQUIREMENTS)

**EXTERIOR MATERIAL PERCENTAGES**

6-UNIT BRICK AND HARDIE  
75% BRICK  
25% HARDIEPLANK

4-UNIT BRICK  
90% BRICK  
10% HARDIEPLANK

**CIVIL SITE**  
JAMES S. GIBSON, P.E.  
REGISTERED PROFESSIONAL ENGINEER  
1300 KING AVENUE, SUITE 200 - BIRMINGHAM, ALABAMA 35203  
205.944.1994 - 205.944.1995

**ARCHITECTURAL RENDERINGS**  
AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN  
**NEWMANS CROSSING**  
BIG STATION CAMP BLVD.  
GALLATIN, SUMNER COUNTY, TENNESSEE

| DATE      | REVISION | COMMENTS                   |
|-----------|----------|----------------------------|
| 10/1/2019 | 1        | INITIAL SUBMITTAL          |
| 10/1/2019 | 2        | CITY COMMENTS              |
| 10/1/2019 | 3        | FINAL APPROVAL CORRECTIONS |
| 10/1/2019 | 4        | APPROVED SUBMITTAL         |

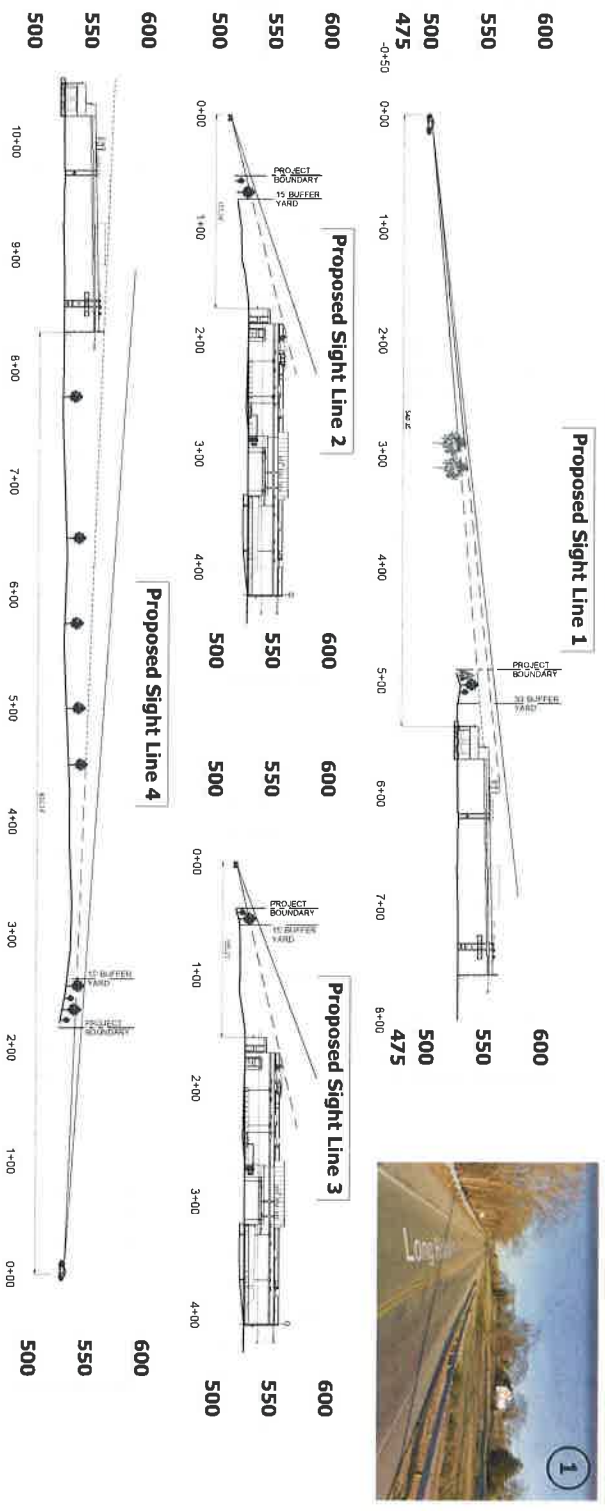
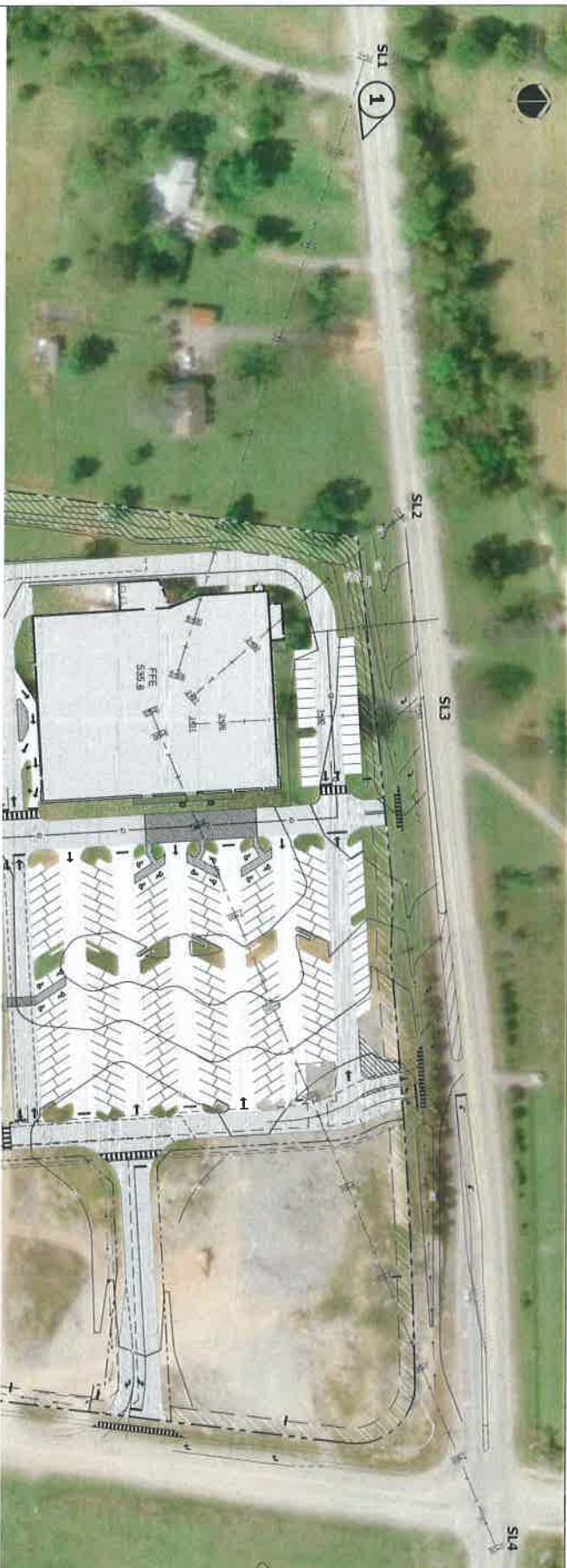
**A1.01**

JOB NO. 15-025-CL









**PROPOSED SIGHT LINE EXHIBIT**  
**AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN**  
**NEWMANS CROSSING**

BIG STATION CAMP BLVD  
 GALLATIN, SUMNER COUNTY, TN 37068



**CIVIL·SITE**  
 DESIGN GROUP  
 ENGINEERS · PLANNERS · LANDSCAPE ARCHITECTS  
 2803 KIRK AVENUE, SUITE 300, NASHVILLE, TENNESSEE 37211  
 615.255.0055 WWW.CIVILSITEGROUP.COM

**A1.04**

| REV | DATE     | DESCRIPTION                 |
|-----|----------|-----------------------------|
| 01  | 02/07/20 | INITIAL SUBMITTAL           |
| 02  | 04/15/20 | CITY COMMENTS               |
| 03  | 05/14/20 | FINAL APPROVAL, CORRECTIONS |
| 04  | 11/02/20 | AMENDED SUBMITTAL           |

**Exhibit '1B' – Approved Final Plat Phase 2B**



# **SITE DATA TABLE**

TITLE OF SUBDIVISION: NEWMANS CROSSING, PHASE 2B  
DEVELOPER/OWNER: TNHOMESITES.COM  
147 MARLE ROW BLVD #100  
HENDERSONVILLE, TN 37075

PROPERTY LOCATION: WEST OF BIG STATION CAMP BLVD.  
NORTH OF BREAKING PIN ROAD

TAX MAP INFO: MAP 124, PARCELS 35.00, 35.01, 35.08  
& 115.00

PREPARED BY: CRAWFORD & CUMMINGS  
C/O ALAN CUMMINGS, RLS  
8181 HWY 100, STE 163  
NASHVILLE, TN 37221  
615-292-2681  
alan@crcsurveyors.net

EXISTING USE: VACANT

PROPOSED USE: COMMERCIAL

| CURV. RADIUS | ARC LENGTH | CHORD LENGTH | CHORD BEARING | DELTA ANGLE |
|--------------|------------|--------------|---------------|-------------|
| C1           | 57.29.58   | 433.72       | 186.30.10"E   | 42°0'14"    |
| C2           | 86.63      | 109.42       | 54.27.11.11"E | 98°17'04"   |
| C3           | 133.44     | 49.48        | 48.61         | 27°12'23"   |
| C4           | 77.00      | 29.55        | 29.75         | 51°48'24"   |
|              |            |              |               | 22°17'59"   |

**UTILITY NOTE:**  
THIS SURVEYOR HAS NOT PHYSICALLY LOCATED THE UNDERGROUND UTILITIES. ABOVE GRADE AND UNDERGROUND UTILITIES SHOWN WERE TAKEN FROM VISIBLE APPURTENANCES AT THE SITE, PUBLIC RECORDS AND/OR MAPS PREPARED BY OTHERS. THE SURVEYOR MAKES NO GUARANTEE THAT THE UNDERGROUND UTILITIES SHOWN COMPRISE ALL SUCH UTILITIES IN THE AREA, EITHER IN SERVICE OR ABANDONED. THE SURVEYOR FURTHER DOES NOT WARRANT THAT THE UNDERGROUND UTILITIES SHOWN ARE IN THE EXACT LOCATION INDICATED. THEREFORE, RELIANCE UPON THE TYPE, SIZE AND LOCATION OF UTILITIES SHOWN SHOULD BE DONE SO WITH THIS CIRCUMSTANCE CONSIDERED. DETAILED VERIFICATION OF EXISTENCE, LOCATION AND DEPTH SHOULD ALSO BE MADE PRIOR TO ANY DECISION RELATIVE THERETO IS MADE. AVAILABILITY AND COST OF SERVICE SHOULD BE CONFIRMED WITH THE APPROPRIATE UTILITY COMPANY. IN TENNESSEE IT IS A REQUIREMENT, PER THE UNDERGROUND UTILITY DAMAGE PREVENTION ACT, THAT ANYONE WHO ENGAGES IN EXCAVATION MUST NOTIFY ALL KNOWN UNDERGROUND UTILITY OWNERS, NO LESS THAN (3) THREE OR MORE THAN (10) WORKING DAYS PRIOR TO THE DATE OF THEIR INTENT TO EXCAVATE AND ALSO TO AVOID ANY POSSIBLE HAZARD OR CONFLICT, TENNESSEE ONE CALL 1-815-355-1987 OR 1-800-351-1111.

- NOTES:**
- THE PURPOSE OF THIS PLAT IS TO CREATE A 3 LOTS OF RECORD.
  - FOR BOUNDARY ASPECTS OF THIS SURVEY, RTK GPS POSITIONAL DATA WAS OBSERVED ON/BETWEEN THE DATE(S) OF 8/16/18, UTILIZING A TOPCON DUAL FREQUENCY RECEIVER. THE BEARINGS SHOWN WERE DERIVED USING THE TDOF GNSS REFERENCE NETWORK AND REFERENCED TO NAD 83 (2011). TENNESSEE ZONE 4100.
  - BY GRAPHIC PLOTTING ONLY, SUBJECT SITE IS NOT WITHIN THE SPECIAL FLOOD HAZARD AREA, PER F.E.M.A./F.I.R.M., MAP 47165C0293 G, EFFECTIVE DATE 4-17-2012.
  - SUBJECT PROPERTY IS ZONED MU (MIXED USE).
  - THE PARCEL LINES ARE TO BE REMOVED BY THE RECORDING OF THIS PLAT.
  - THE RECORDING OF THIS PLAT WILL VOID, VACATE AND SUPERCEDE PART OF THE RECORD OF PLAT BOOK 21, PAGE 28, R.O.S.C.
  - LOT 1 IS SUBJECT TO THE TERM AND CONDITIONS OF THE RECORDED STORMWATER INSPECTION AND MAINTENANCE AGREEMENT FOR THESE FACILITIES AS RECORDED IN RECORD BOOK PAGE 1, R.O.S.C., TN, LOT 2 AND 3 WILL BE HANDLED AS DEVELOPED.
  - LOT 2 AND 3 SHALL NOT HAVE DIRECT ACCESS TO BIG STATION CAMP BOULEVARD OR LONG HOLLOW PIKE.
  - THIS DEVELOPMENT IS SUBJECT TO THE FINDINGS AND RECOMMENDATIONS OF THE BIG STATION CAMP BOULEVARD CORRIDOR TRAFFIC STUDY. PRO-RATA CONTRIBUTIONS FOR TRAFFIC INFRASTRUCTURE IMPROVEMENTS, AS RECOMMENDED IN THE STUDY OR SUBSEQUENT TRAFFIC STUDIES SUBMITTED FOR DEVELOPMENT REVIEW AND APPROVAL, SHALL BE REQUIRED BASED ON THE IMPACT OF SELECT NEEDED INFRASTRUCTURE IMPROVEMENTS. PRIOR TO RECORDING OF THE FINAL PLAT, THE DEVELOPER SHALL ENTER INTO A PRO-RATA AGREEMENT WITH THE CITY.
  - PROPOSED PUBLIC UTILITY EASEMENTS SHOWN HEREON ARE PRELIMINARY. FINAL UTILITY EASEMENT LOCATIONS SHALL BE DEDICATED BY A SEPARATE INSTRUMENT UPON COMPLETION OF UTILITY CONSTRUCTION.
  - DEDICATION FOR LOTS 1, 2 & 3 SHALL BE PROVIDED BY PROPOSED NEWMANS CROSSING PHASE 1 & 2A.
  - LAND DESIGNATED AS PARCEL 35.00 ON MAP 124, SHOWN GRAPHICALLY HEREON, WAS IDENTIFIED AS A POSSIBLE CEMETERY ON A PREVIOUSLY RECORDED PLAT AND DEPICTED AS SUCH BY SUMNER COUNTY GIS. IN ACCORDANCE WITH BURIAL LAW REQUIREMENTS, THE AREA WAS EXCAVATED FOR EXHUMATION AND NO BURIAL MARKERS OR REMAINS WERE PRESENT. THIS PARCEL IS PART OF THE PROPERTY CONVEYED TO TNHOMESITES.COM IN RECORD BOOK 4861, PAGE 651 AS RECORDED IN THE SUMNER COUNTY REGISTER OF DEEDS OFFICE.

## **LEGEND**

PROPERTY BOUNDARY  
LOT LINE  
BUILDING SETBACK LINE  
EASEMENT  
CONC. MON. (O)  
IRON ROD (O)  
IRON ROD (N)  
SANITARY SEWER  
WATER LINE  
STREET ADDRESS  
FIRE HYDRANT  
LOT NUMBER  
PROPERTY MAP  
OVER HEAD ELECTRIC

## **CERTIFICATE OF THE APPROVAL OR BONDING OF ROADS**

I HEREBY CERTIFY (1) THAT ALL DESIGNATED ROADS ON THIS FINAL SUBDIVISION PLAT HAVE BEEN INSTALLED BY AN ACCEPTABLE MANAGER AND ACCORDING TO THE SPECIFICATIONS OF THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS OR (2) THAT A PERFORMANCE BOND HAS BEEN POSTED WITH THE PLANNING COMMISSION TO ASSURE COMPLETION OF ALL REQUIRED IMPROVEMENTS IN CASE OF DEFAULT.

DATE

CITY ENGINEER

## **AREA SUMMARY**

| Area  | Acres  | Sq. Feet |
|-------|--------|----------|
| LOT 1 | 8.05±  | 350639±  |
| LOT 2 | 1.71±  | 74628±   |
| LOT 3 | 1.16±  | 50328±   |
| Total | 10.92± | 475595±  |

KNOW WHAT'S BELOW  
CALL BEFORE YOU DIG



**DEED REFERENCE**  
TO: TNHOMESITES.COM  
FROM: JOHN F. NEWMAN  
RECORD BOOK 4861, PAGE 651, R.O.S.C.  
TO: TNHOMESITES.COM  
FROM: TNHOMESITES.COM  
RECORD BOOK 3596, PAGE 445, R.O.S.C.

**PROPERTY MAP REFERENCE**  
SUBJECT SITE MAY BE IDENTIFIED AS PART OF PARCELS 35.01, 35.08 AND ALL OF 115.00 AND 35.00 ON SUMNER COUNTY TAX MAP 124.

**CERTIFICATE OF ACCURACY**  
I HEREBY CERTIFY THAT THE PLAN SHOWN AND DESCRIBED HEREON IS A TRUE AND CORRECT SURVEY TO THE ACCURACY REQUIRED BY GALLATIN MUNICIPAL-REGIONAL PLANNING COMMISSION AND THE REGULATIONS IN THESE REGULATIONS AND THIS PLAT CONFORMS TO ALL REQUIREMENTS IN THESE REGULATIONS AND THIS PLAT CONFORMS TO ALL REQUIREMENTS IN THESE REGULATIONS AND THIS PLAT CONFORMS TO ALL REQUIREMENTS IN THESE REGULATIONS.

## **CERTIFICATE OF OWNERSHIP AND DEDICATION**

I (WE) HEREBY CERTIFY THAT I AM (WE ARE) THE OWNER(S) OF THE PROPERTY SHOWN AND DESCRIBED HEREON AS SUGGESTED IN BOOK 3512, PAGE 1, AND BOOK 4861, PAGE 130, R.O.S.C. AND THAT I (WE) HEREBY ADOPT THIS PLAN OF SUBDIVISION WITH MY (OUR) FREE CONSENT, ESTABLISH THE ANNUAL BUILDING SETBACK DISTANCE LIMITS, AND THAT OFFERS OF IRREVOCABLE DEDICATION FOR ALL PUBLIC ROADS, UTILITIES, AND OTHER FACILITIES HAVE BEEN FILED AS REQUIRED BY THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS.

## **CERTIFICATE OF APPROVAL OF UTILITY SYSTEMS**

I HEREBY CERTIFY (1) THAT THE FOLLOWING UTILITY SYSTEMS OUTLINED OR INDICATED ON THE FINAL SUBDIVISION PLAT ENTITLED NEWMANS CROSSING, PHASE 2B HAS/ HAVE BEEN INSTALLED IN ACCORDANCE WITH CURRENT LOCAL AND STATE GOVERNMENT REQUIREMENTS OR A SUFFICIENT BOND OR CASH HAS BEEN FILED WHICH WILL GUARANTEE SAID INSTALLATION.

WATER SYSTEM

DATE

WHITE HOUSE UTILITY DISTRICT

SEWER SYSTEM

DATE

WHITE HOUSE UTILITY DISTRICT

## **CERTIFICATE OF APPROVAL FOR RECORDING**

I HEREBY CERTIFY THAT THE SUBDIVISION PLAT SHOWN HEREON HAS BEEN FOUND TO CONFORM WITH THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS FOR WITH THE EXCEPTION OF SUCH VARIANCES, IF ANY, AS HAVE BEEN APPROVED FOR RECORDING IN THE OFFICE OF THE COUNTY REGISTRAR.

DATE

SECRETARY, PLANNING COMMISSION

DATE

DEVELOPER'S INITIALS

## **FINAL PLAT NEWMANS CROSSING PHASE 2B**

GALLATIN, SUMNER CO. PLANNING COMMISSION

|                                    |                      |
|------------------------------------|----------------------|
| TOTAL ACRES = 10.92±               | TOTAL LOTS = 3       |
| ACRES OF NEW ROAD = 0              | FEET OF NEW ROAD = 0 |
| OWNER: TNHOMESITES.COM             | CIVIL DISTRICT: 4th  |
| SCALE: 1"=100'                     | CLOSURE: ≥ 1: 10,000 |
| SURVEYOR: CRAWFORD & CUMMINGS P.C. | TOTAL OPEN SPACE = 0 |
| SUMNER COUNTY                      | STATE OF TENNESSEE   |

REVISED: 9-22-20

SHEET NO. 1 OF 1

**Exhibit '2' –Traffic Impact Study for Newmans Crossing**



APRIL 2019

# TRAFFIC IMPACT STUDY

**NEWMAN'S CROSSING  
GALLATIN, TENNESSEE**

PREPARED FOR:  
CIVIL SITE DESIGN GROUP



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## EXECUTIVE SUMMARY

### Project Description

The Newman's Crossing development is located on the southwest corner of the intersection of Big Station Camp Boulevard and Long Hollow Pike in Gallatin, Tennessee. According to the developer, the proposed development is planned to consist of approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions. The purpose of this study is to analyze the access plan and the traffic impacts associated with the proposed development.

### Data Collection

In order to provide data for the traffic impact analysis, traffic counts were conducted at the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive by KCI Technologies, Inc. Specifically, the counts were conducted from 7:00 – 9:00 AM and 4:00 – 6:00 PM on a typical weekday in August 2018 while local schools were in session. From the counts, it was determined that the peak hours of traffic flow occurred from 7:00 – 8:00 AM and 4:00 – 5:00 PM.

### Projection of Future Traffic Volumes

In order to account for the traffic growth prior to the completion of the proposed project, background traffic volumes were established, which include a background growth rate to account for general traffic growth within the study area based on TDOT count station data and the traffic generated by developments being built in the vicinity of the project site. Then the estimated project-generated traffic volumes were added to the background peak hour traffic volumes in order to obtain the total projected peak hour traffic volumes for the study area intersections.

### Conclusions and Recommendations

The analyses presented in this study indicate that the impacts of the proposed project on the existing street network will be manageable by providing the recommendations below. These specific recommendations will provide safe and efficient traffic operations within the study area following the completion of the proposed project. The recommendations are as follows:

The following improvements for the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive were adopted from the Big Station Camp Boulevard corridor study prepared for the City of Gallatin:

- Install an exclusive left-turn lane with approximately 300 feet of storage on the northbound approach of Big Station Camp Boulevard.
- Extend the eastbound right-turn lane on Long Hollow Pike to provide a total of 280 feet of storage. The Big Station Camp Boulevard corridor study prepared for the City of Gallatin recommended that the eastbound right-turn lane on Long Hollow Pike be extended to provide a total of 300 feet of storage. However, a 300-foot long storage length would require the relocation of proposed Site Access 2 farther to the west, which would lead to sight distance limitations for vehicles turning left out of this proposed site access. In order to ensure adequate sight distance for Site Access 2 as designated in the current site plan, the storage for the eastbound right-turn lane of Long Hollow Pike at Big Station Camp Boulevard should be increased from 145 feet to 280 feet as opposed to 300 feet. According to the evaluation of the 95<sup>th</sup> percentile queue lengths for the intersection of Long Hollow Pike and Big Station Camp Boulevard under projected conditions with improvements, providing 280 feet of storage for the eastbound right-turn lane of Long Hollow Pike will be more than sufficient to accommodate traffic demand during both the AM and PM peak hours.
- Restripe the southbound approach of Carellton Drive to include one left-turn lane and one shared through/right-turn lane.
- Modify the traffic signal to provide protected-permissive left-turn signal phasing for all approaches. Also, provide a right-turn overlap phase for the eastbound approach of Long Hollow Pike.

The following improvements should be provided in conjunction with the development of this project:

Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive

- Due to the potential for pedestrian activity between the retail portion of the proposed development and the Carellton development to the north, it is recommended to provide a pedestrian crosswalk and pedestrian signals with countdown timers for movements across the west leg of Long Hollow Pike.

Long Hollow Pike and Site Access 1 (Western Access)

- The proposed connection to Long Hollow Pike should be designed as a right-in, right-out access with one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A channelized right-turn lane with approximately 120 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 1.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, adequate intersection sight distance is available for turning right out of the proposed site access.

Long Hollow Pike and Site Access 2 (Eastern Access)

- Based on the results of a left-turn lane analysis, a westbound left-turn lane on Long Hollow Pike is warranted under projected conditions.
  - It should be noted that the speed limit on Long Hollow Pike is under consideration to be lowered to 40 mph. The results of the analysis indicate that a left-turn lane is warranted at the site access even with the reduced speed limit.
- A right-turn lane with approximately 100 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 2 and a left-turn lane with approximately 190 feet of storage is planned to be installed on the westbound approach of Long Hollow Pike at Site Access 2.
- The proposed connection to Long Hollow Pike should be designed to include one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Big Station Camp Boulevard and Site Access 3 (Northern Access)

- The proposed connection of Site Access 3 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A right-turn lane with approximately 120 feet of storage is planned to be installed on the southbound approach of Big Station Camp Boulevard at Site Access 3.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, while adequate stopping sight distance is available, adequate intersection sight distance is only available for turning right out of the proposed site access. The available sight distance for turning left out of the proposed site access falls 35 feet below the design value. In order to enhance the sight distance for vehicles turning left out of Site Access 3, its location should either be shifted or its grade should be raised until sight distance requirements are met.

Big Station Camp Boulevard and Site Access 4 (Southern Access Serving the Residential Portion of the Site)

- The proposed connection of Site Access 4 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Trip Generation and Big Station Camp Corridor Roadway Fees

- The Big Station Camp Corridor Roadway Fee program is based on the number of peak hour trips generated by a development. Since the analyses presented in this study are based on trip generation rates from a national dataset, additional analysis may be performed after the completion and occupation of



each development phase to determine the actual peak hour trips generated, as they may be less than those estimated in this study.

- Additionally, the construction of the recommendations presented above should be considered against the City of Gallatin's impact fee program for this corridor. In some instances, constructed improvements that would need to be rebuilt in the future may not best serve the adjacent roadway network.

In summary, based on the analyses conducted, no further recommendations are presented for the proposed development.

## 1. INTRODUCTION AND PROJECT DESCRIPTION

The purpose of this study is to analyze the traffic impacts and access plan associated with the proposed Newman's Crossing mixed-use development located on the southwest corner of the intersection of Big Station Camp Boulevard and Long Hollow Pike in Gallatin, Tennessee. According to information provided by the development team, the site is planned to include approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions.

As shown by Figure 1, the property is located on the southwest corner of Big Station Camp Boulevard and Long Hollow Pike. The property is bounded on the north by Long Hollow Pike, on the east by Big Station Camp Boulevard, and on the south and west by existing residential properties. The proposed development is located within an area that is characterized primarily by a mix of low and medium-density residential land uses. Five vehicular access points to the development are planned to be provided – two to the north on Long Hollow Pike, two to the east on Big Station Camp Boulevard, and one cross-parcel accesses to the south by way of Breaking Pen Road. The westernmost site access on Long Hollow Pike is planned to be right-in, right-out. The current site plan for the development is shown in Appendix A.

In this study, the current operating characteristics of the adjacent roadways and intersections near the project site are evaluated. The expected trips generated by the proposed development are determined and distributed to the roadway network. The adjacent roadways and intersections are then re-evaluated to determine the anticipated traffic impacts of the project. Finally, recommendations are presented, including roadway improvements and/or traffic control improvements that are needed to accommodate the expected traffic.



Location of the Project Site  
(Not to Scale)

Figure 1.

## 2. EXISTING CONDITIONS

### 2.1 Existing Roadway Network

Local access to the site will be provided by Long Hollow Pike, Big Station Camp Boulevard, and Starting Gate Drive. A description of these roadways within the project vicinity is as follows:

**Long Hollow Road (State Route 174)** is a two-way roadway that generally travels in an east-west direction with one travel lane in each direction near the project site. Long Hollow Pike provides connection to New Hope Road and Interstate 65 to the west and Vietnam Veterans Boulevard to the east. According to the *TDOT Functional Classification Map*, Long Hollow Pike is categorized as a minor arterial. The posted speed limit on Long Hollow Pike is 50 mph near the project site. No sidewalk, on-street parking, or bicycle facilities are provided on Long Hollow near the project site.

**Big Station Camp Boulevard** is a two-way roadway that generally travels in a north-south direction with one travel lane in each direction. Big Station Camp Boulevard provides connection between Long Hollow Pike to the north and Vietnam Veterans Boulevard to the south. According to the *TDOT Functional Classification Map*, Big Station Camp Boulevard is categorized as a major collector. The posted speed limit on Big Station Camp Boulevard is 45 mph near the project site. No sidewalk, on-street parking, or bicycle facilities are provided on Big Station Camp Boulevard near the project site.

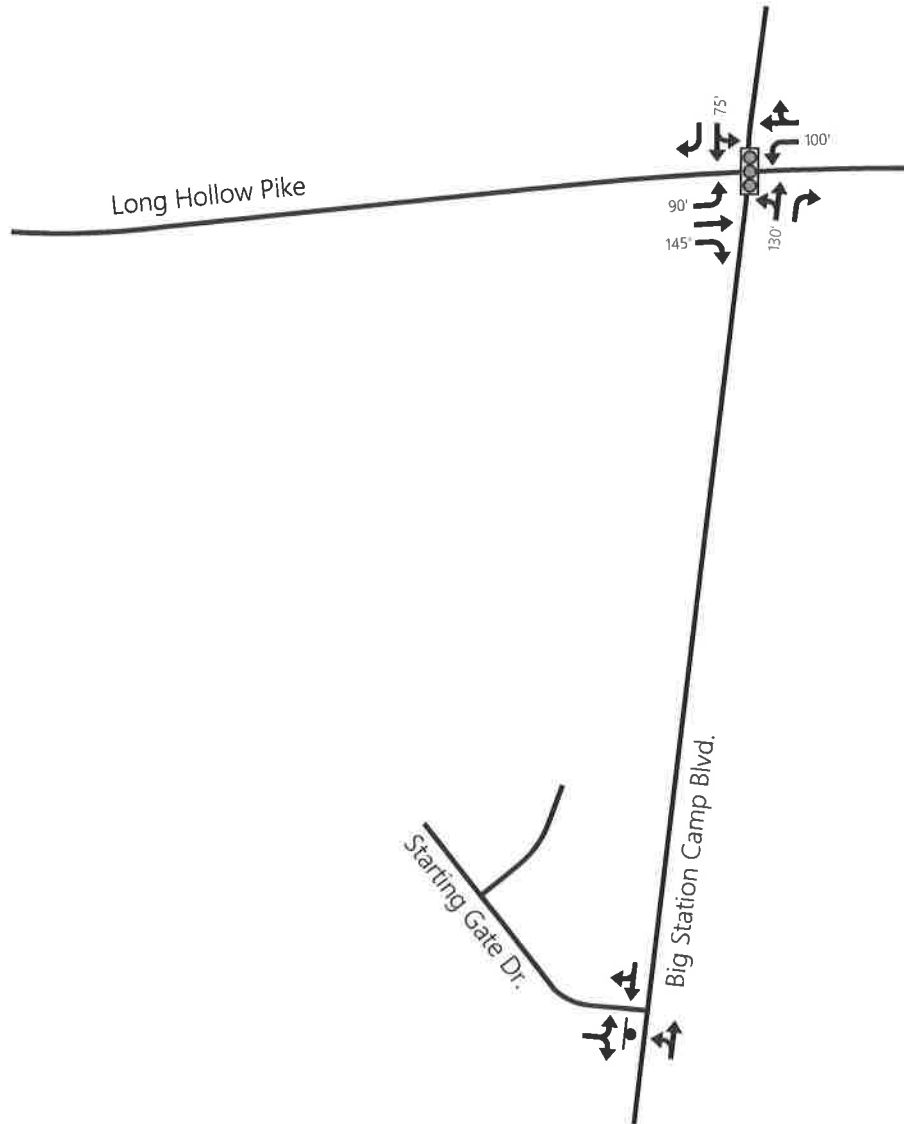
**Starting Gate Drive** is a two-way roadway that generally travels in an east-west direction with one travel lane in each direction. Starting Gate Drive provides connection between Big Station Camp Boulevard to the east and single-family homes to the west. According to the *TDOT Functional Classification Map*, Starting Gate Drive is categorized as a local street. The speed limit on the roadway was assumed to be 30 mph. Sidewalk is provided on both sides of the roadway.

The study area includes two study intersections described as follows:

**Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive** is a signalized intersection with four approaches. The eastbound approach of Long Hollow Pike includes one through lane, one left-turn lane with approximately 90 feet of storage, and one right-turn lane with approximately 145 feet of storage. The westbound approach of Long Hollow Pike includes one shared through/right-turn lane and one left-turn lane with approximately 100 feet of storage that extends into a center two-way left-turn lane. The northbound approach of Big Station Camp Boulevard includes one right-turn lane and one shared through/left-turn lane with approximately 130 feet of storage. The southbound approach of Carellton Drive includes one right-turn lane and one shared through/left-turn lane with approximately 75 feet of storage. Protected-permissive left-turn phasing is provided for the eastbound and westbound approaches of Long Hollow Pike. Right-turn overlap phases are provided for the northbound approach of Big Station Camp Boulevard and the southbound approach of Carellton Drive. Split-phased signal operations are also provided on the northbound and southbound approaches.

**Big Station Camp Boulevard and Starting Gate Drive** is an unsignalized intersection with three approaches. The northbound approach of Big Station Camp Boulevard includes one shared through/left-turn lane. The southbound approach of Big Station Camp Boulevard includes one shared through/right-turn lane. The eastbound approach of Starting Gate Drive is stop-controlled and includes one shared left-turn/right-turn lane.

The existing laneage at the study intersections is illustrated in Figure 2.



Existing Laneage  
(Not to Scale)

Figure 2.

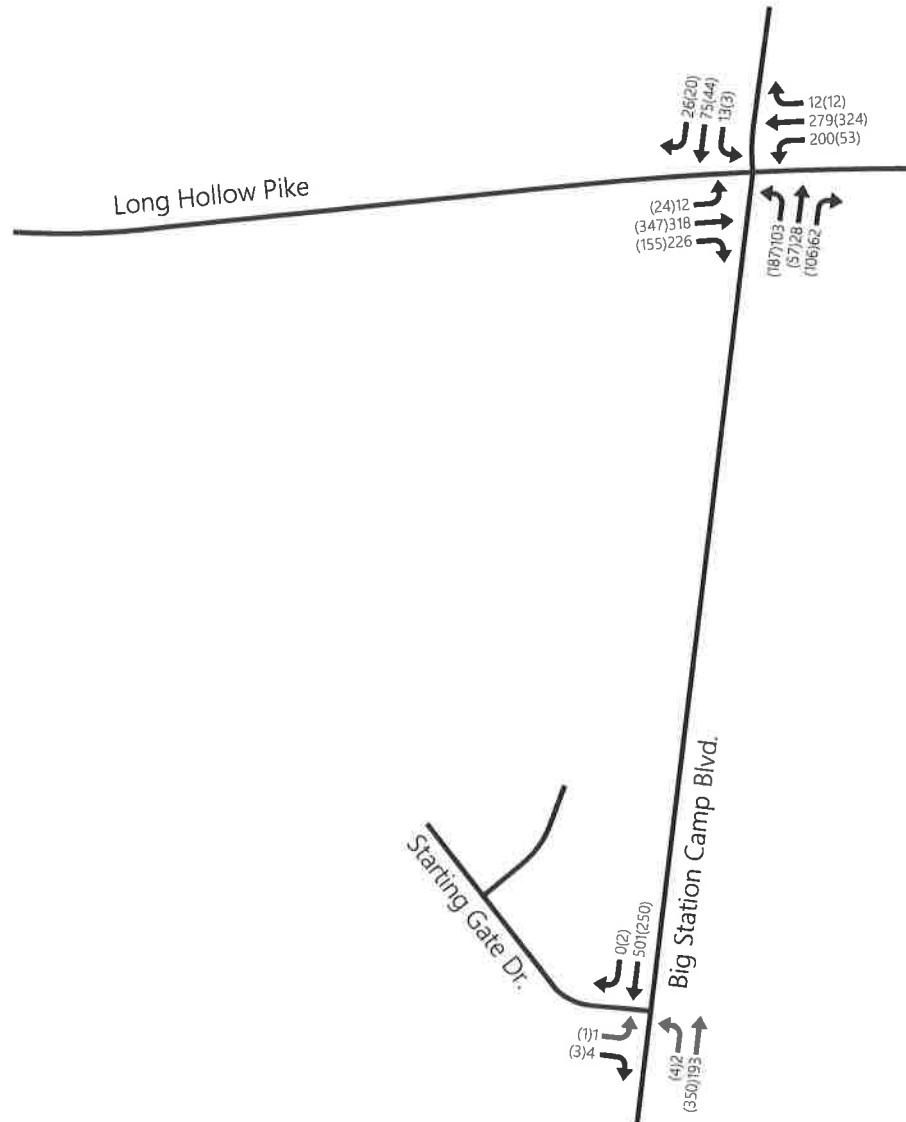
## 2.2 Existing Traffic Volumes

In order to provide data for the traffic impact analysis, traffic counts were conducted at the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive by KCI Technologies, Inc. Specifically, the counts were conducted from 7:00 – 9:00 AM and 4:00 – 6:00 PM on a typical weekday in August 2018 while local schools were in session. From the counts, it was determined that the peak hours of traffic flow occurred from 7:00 – 8:00 AM and 4:00 – 5:00 PM. Traffic volumes associated with Starting Gate Drive were estimated based on the number of homes. Existing traffic peak hour traffic volumes are shown in Figure 3. A detailed summary of the turning movement counts is included in Appendix B.

Average daily traffic volumes were also obtained from the Tennessee Department of Transportation (TDOT). There are two TDOT count stations located near the project site. The count station locations and annual average daily traffic (AADT) in 2017 are shown in Table 1. TDOT Count Station data is included in Appendix C.

**TABLE 1: TDOT COUNT STATION DATA**

| ROADWAY                    | LOCATION                           | 2017 AADT<br>(vpd) |
|----------------------------|------------------------------------|--------------------|
| Long Hollow Pike           | West of Big Station Camp Boulevard | 8,715              |
| Big Station Camp Boulevard | South of Long Hollow Pike          | 3,300              |



XXX - AM Peak Hour  
Traffic Volumes  
(XXX) - PM Peak Hour  
Traffic Volumes



Existing Peak Hour Traffic Volumes  
(Not to Scale)

Figure 3.



## 2.3 Existing Traffic Operations

To determine the current operation of the study intersections, capacity analyses were performed for the AM and PM peak hours. The capacity calculations were performed according to the methods outlined in the *Highway Capacity Manual*, TRB 2010. The capacity analyses result in the determination of a Level of Service (LOS) for an intersection. The LOS is a concept used to describe how well an intersection or roadway operates. LOS A is the best, while LOS F is the worst. Table 2 presents the descriptions of LOS for unsignalized intersections. Table 3 presents the descriptions of LOS for signalized intersections.

**TABLE 2: DESCRIPTIONS OF LEVEL OF SERVICE FOR UNSIGNALIZED INTERSECTIONS**

| LEVEL OF SERVICE | DESCRIPTION             | CONTROL DELAY (sec/veh) |
|------------------|-------------------------|-------------------------|
| <b>A</b>         | Little or no delay      | $\leq 10.0$             |
| <b>B</b>         | Short traffic delay     | $>10$ and $\leq 15$     |
| <b>C</b>         | Average traffic delay   | $>15$ and $\leq 25$     |
| <b>D</b>         | Long traffic delay      | $>25$ and $\leq 35$     |
| <b>E</b>         | Very long traffic delay | $>35$ and $\leq 50$     |
| <b>F</b>         | Extreme traffic delay   | $> 50.0$                |

Source: *Highway Capacity Manual*, TRB 2010

TABLE 3: DESCRIPTIONS OF LEVEL OF SERVICE FOR SIGNALIZED INTERSECTIONS

| LEVEL OF SERVICE | DESCRIPTION                                                                                                                                                                                                            | CONTROL DELAY (sec/veh) |
|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------|
| <b>A</b>         | Operations with very low delay. This occurs when progression is extremely favorable. Most vehicles do not stop at all.                                                                                                 | $\leq 10$               |
| <b>B</b>         | Operations with stable flows. This generally occurs with good progression and/or short cycle lengths. More vehicles stop than for LOS A, causing higher levels of average delay.                                       | $>10$ and $\leq 20$     |
| <b>C</b>         | Operations with stable flow. Occurs with fair progression and/or longer cycle lengths. The number of vehicles stopping is significant, although many still pass through the intersection without stopping.             | $>20$ and $\leq 35$     |
| <b>D</b>         | Approaching unstable flow. The influence of congestion becomes more noticeable. Longer delays may result from some combination of unfavorable progression, long cycle lengths, or high V/C ratios. Many vehicles stop. | $>35$ and $\leq 55$     |
| <b>E</b>         | Unstable flow. This is considered to be the limit for acceptable delay. These high delays generally indicate poor progression, long cycle lengths, and high V/C ratios.                                                | $>55$ and $\leq 80$     |
| <b>F</b>         | Unacceptable delay. This condition often occurs with over saturation or with high V/C ratios. Poor progression and long cycle lengths may also cause such delay levels.                                                | $>80.0$                 |

Source: *Highway Capacity Manual*, TRB 2010

The signal timing and phasing plan for the signalized intersection of Long Hollow Pike and Big Station Camp Boulevard was obtained from the City of Gallatin and utilized for the capacity analyses. The signal timing data is included in Appendix D.

The results of the capacity analyses for the existing conditions at the study intersections are presented in Table 4. As shown, all intersections and critical movements operate at LOS C or better in both the AM and PM peak hours. Capacity analyses worksheets are included in Appendix E.

TABLE 4: EXISTING PEAK HOUR LEVELS OF SERVICE

| INTERSECTION                                                                                                                                                       | TURNING MOVEMENT        | LEVEL OF SERVICE<br>(Average Approach Delay in sec/veh) |              |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------|---------------------------------------------------------|--------------|
|                                                                                                                                                                    |                         | AM Peak Hour                                            | PM Peak Hour |
| Long Hollow Pike and<br>Big Station Camp Boulevard/<br>Carellton Drive                                                                                             | Overall<br>Intersection | C (25.8)                                                | C (28.3)     |
| Big Station Camp Boulevard<br>and Starting Gate Drive                                                                                                              | Northbound<br>Left-Turn | A (8.5)                                                 | A (7.8)      |
|                                                                                                                                                                    | Eastbound<br>Approach   | B (12.4)                                                | B (10.7)     |
| <i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i> |                         |                                                         |              |

### 3. BACKGROUND TRAFFIC VOLUMES

#### 3.1 Establishing Background Volumes

In order to account for the traffic growth prior to the completion of the proposed project, background traffic volumes were established. For the purposes of this traffic study, the development was assumed to be completed by the year 2022, which is a four-year horizon from 2018 existing traffic counts. The background traffic included general traffic growth in the study area as well as site-specific traffic expected to be generated by a future development in the surrounding area. Historical daily traffic volumes were obtained from the TDOT count stations located near the project site. Since 2011, the traffic at the TDOT count stations has increased by an average of 3.86% per year. The TDOT count station data is included in Appendix C.

A growth factor was applied to the existing peak hour traffic volumes to account for background growth for the future conditions. The existing peak hour traffic volumes at the study intersections were increased by 1.5% per year to account for the background traffic growth within the study area. The chosen growth factor is lower than the average growth factor recorded by TDOT count stations because the trips generated by two developments near the study area were accounted for separately, as explained below.

The Carellton development is under construction north of the intersection of Long Hollow Pike and Big Station Camp Boulevard. The development is anticipated to include approximately 480 single-family homes, 239 townhome units, and 7,000 square feet of retail space. Based on information from the City of Gallatin, it is estimated that the residential portion of the development is approximately 40% complete. A traffic generation process was used to estimate the amount of traffic expected to be generated by the completed Carellton development. Factors for the trip generation were taken from ITE's *Trip Generation*, 10<sup>th</sup> Edition. The calculations for trip generation are included in Appendix F. Table 5 presents the daily, AM, and PM peak hour trip generation for the Carellton development. As shown, the pending development can be expected to generate approximately 3,965 new trips per day. The AM and PM peak hour trips generated will equal approximately 280 and 428 new trips, respectively.

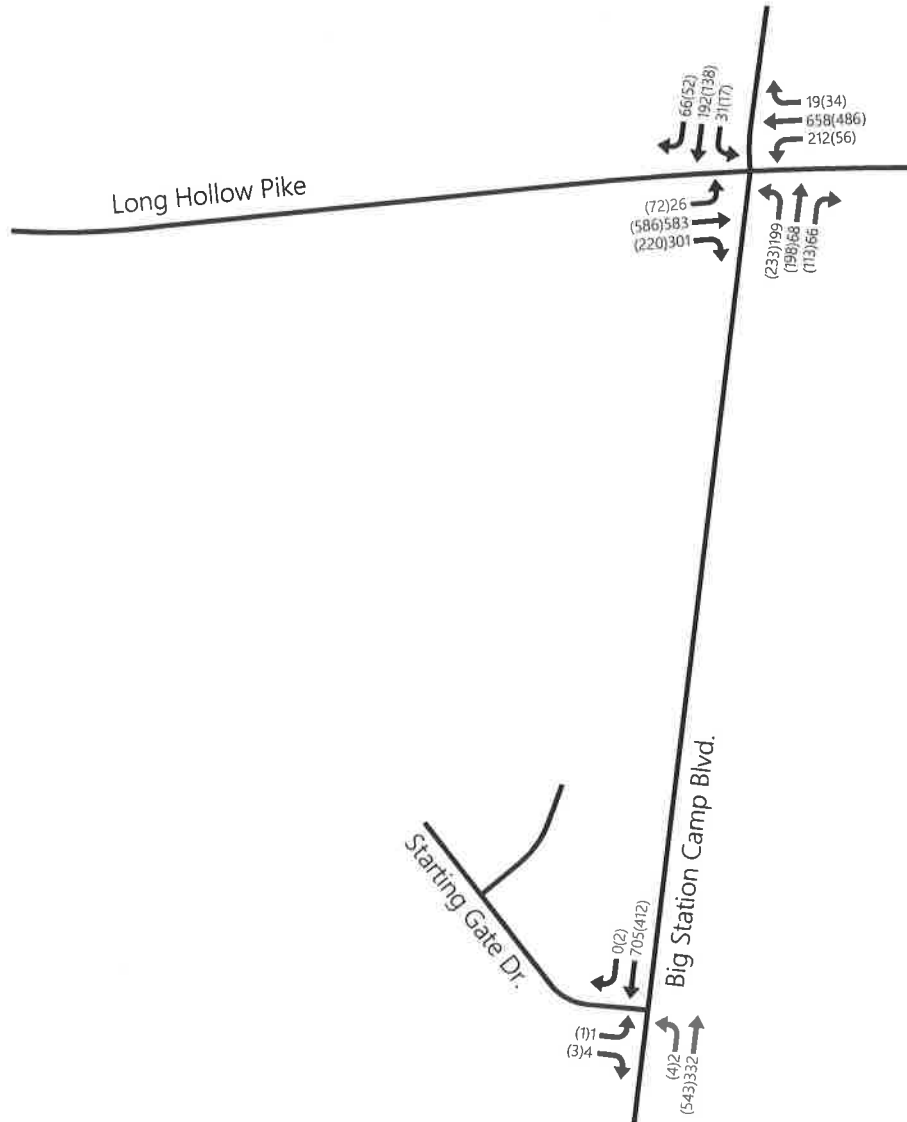
TABLE 5: CARELLTON DEVELOPMENT TRIP GENERATION

| LAND USE                                 | SIZE      | DAILY TRAFFIC | GENERATED TRAFFIC |             |             |            |
|------------------------------------------|-----------|---------------|-------------------|-------------|-------------|------------|
|                                          |           |               | AM PEAK           |             | PM PEAK     |            |
|                                          |           |               | Enter             | Exit        | Enter       | Exit       |
| Single-Family Homes (LUC 210)            | 480 units | 4,402         | 86                | 260         | 289         | 169        |
| Multifamily Housing (Low-Rise) (LUC 220) | 239 units | 1,766         | 25                | 84          | 81          | 47         |
| Retail (LUC 820)                         | 7,000 sf  | 264           | 4                 | 3           | 36          | 40         |
| <b>Subtotal</b>                          |           | <b>6,432</b>  | <b>115</b>        | <b>347</b>  | <b>406</b>  | <b>256</b> |
| <i>40% of Residential Complete</i>       |           | <i>-2,467</i> | <i>-44</i>        | <i>-138</i> | <i>-148</i> | <i>-86</i> |
| <b>TOTAL</b>                             |           | <b>3,965</b>  | <b>71</b>         | <b>209</b>  | <b>258</b>  | <b>170</b> |
|                                          |           |               | <b>280</b>        |             | <b>428</b>  |            |

Source: *Trip Generation*, Tenth Edition

A new school campus is also proposed to be developed on Upper Station Camp Creek Road. The campus is expected to include an elementary school with a capacity of 800 children, a middle school with a capacity of 1,200 children, and a high school with a capacity of 1,800 children. At full capacity, the school campus is expected to generate approximately 7,722 new trips per day. The AM and PM peak hour trips generated will equal approximately 2,168 and 1,286 new trips, respectively. The traffic assignment for both background developments is included in Appendix F.

The combined background peak hour traffic volumes for the year 2022 are presented in Figure 4. These volumes represent the peak hour traffic that is expected to be on the roadway even if the proposed development is not completed.



XXX - AM Peak Hour  
Traffic Volumes  
(XXX) - PM Peak Hour  
Traffic Volumes



Background Peak Hour Traffic Volumes  
(Not to Scale)

Figure 4.

### 3.2 Background Traffic Operations

To determine the operation of the study area intersections under background conditions, capacity analyses were performed for the AM and PM peak hours. The analyses for the background conditions were based on the same lane configurations as the existing conditions.

As shown in Tables 6A and 6B, under background conditions the capacity analyses indicate that the operations at the study intersections will operate at LOS D or better in the AM and PM peak hours with one exception. The intersection of Long Hollow Pike and Big Station Camp Boulevard drops from LOS C to LOS E in both the AM and PM peak hours. Capacity analyses worksheets are included in Appendix E.

**TABLE 6A: BACKGROUND AM PEAK HOUR LEVELS OF SERVICE**

| INTERSECTION                                                                                                                                                       | TURNING MOVEMENT     | LEVEL OF SERVICE<br>(Average Approach Delay in sec/veh) |                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|---------------------------------------------------------|------------------|
|                                                                                                                                                                    |                      | EXISTING<br>AM                                          | BACKGROUND<br>AM |
| Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive                                                                                                   | Overall Intersection | C (25.8)                                                | E (63.3)         |
| Big Station Camp Boulevard and Starting Gate Drive                                                                                                                 | Northbound Left-Turn | A (8.5)                                                 | A (9.3)          |
|                                                                                                                                                                    | Eastbound Approach   | B (12.4)                                                | C (15.5)         |
| <i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i> |                      |                                                         |                  |

**TABLE 6B: BACKGROUND PM PEAK HOUR LEVELS OF SERVICE**

| INTERSECTION                                                                                                                                                       | TURNING MOVEMENT     | LEVEL OF SERVICE<br>(Average Approach Delay in sec/veh) |                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|---------------------------------------------------------|------------------|
|                                                                                                                                                                    |                      | EXISTING<br>PM                                          | BACKGROUND<br>PM |
| Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive                                                                                                   | Overall Intersection | C (28.3)                                                | E (55.2)         |
| Big Station Camp Boulevard and Starting Gate Drive                                                                                                                 | Northbound Left-Turn | A (7.8)                                                 | A (8.3)          |
|                                                                                                                                                                    | Eastbound Approach   | B (10.7)                                                | B (13.1)         |
| <i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i> |                      |                                                         |                  |

## 4. IMPACTS

### 4.1 Trip Generation

A traffic generation process was used to estimate the amount of traffic expected to be generated by the proposed Newman's Crossing mixed-use development. As previously discussed, the site is planned to include approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions. Factors for the trip generation were taken from ITE's *Trip Generation*, 10<sup>th</sup> Edition.

Data presented in the ITE publication, *Trip Generation Handbook*, show that developments containing multiple land uses will commonly have internal trips. A process was used to estimate the amount of internal trips that can be expected between land uses based on methodology presented in NCHRP Report 684, "Enhancing Internal Trip Capture Estimation for Mixed-Use Developments." The methodology contained in the NCHRP Report expands on ITE's methodology, including additional land uses and supporting data. The internal trip reduction process resulted in an estimated 10% internal capture rate for the AM peak hour, and a 31% internal capture rate for the PM peak hour. For the daily trip generation, a 20% internal capture rate was applied. Internal capture reductions were applied to all land uses. The calculations for trip generation are included in Appendix G.

In addition to internal trips, pass-by trips were also taken into account. Pass-by trips represent vehicles already on the existing network that stop at the development and later continue on to their primary destination with no route diversions. Pass-by trip percentages were taken from ITE's *Trip Generation Handbook*, Second Edition. For the AM peak hour, a 55% pass-by rate was applied to trips generated by land uses within the *Services* category. For the PM peak hour, a 45% pass-by rate was applied to trips generated by land uses within the *Services* and *Retail* categories. For the daily traffic, a pass-by trip percentage of 50% was used for trips generated by all non-residential land uses. The directional distribution and assignment of pass-by trips is shown in Appendix H.

Table 7 presents the daily, AM, and PM peak hour trip generation for the proposed land uses. As shown, the development can be expected to generate approximately 4,737 new trips per day. The AM and PM peak hour trips generated will equal approximately 350 and 372 new trips, respectively. These trips represent the new traffic that will be generated by the proposed development.



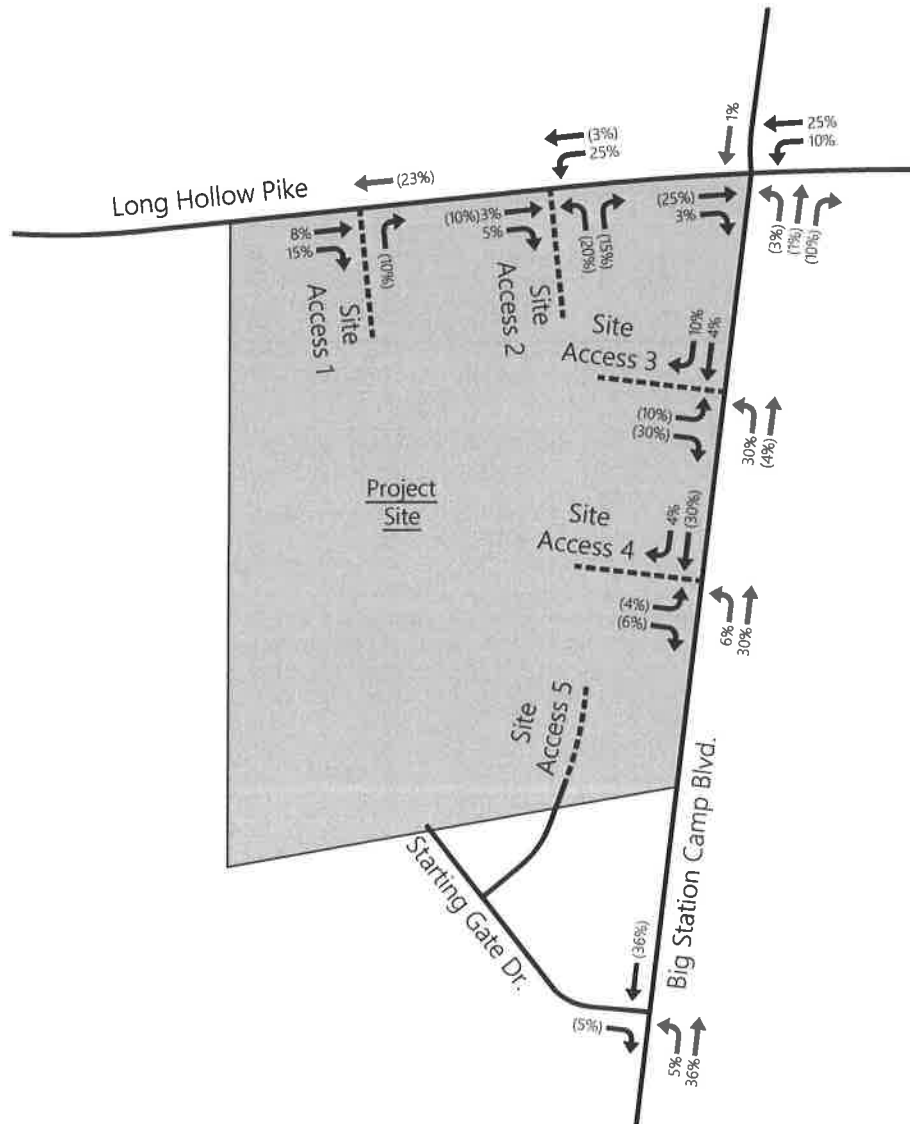
TABLE 7: DEVELOPMENT TRIP GENERATION

| CATEGORY                                                      | LAND USE                                                   | SIZE                 | DAILY TRAFFIC | GENERATED TRAFFIC |      |         |      |
|---------------------------------------------------------------|------------------------------------------------------------|----------------------|---------------|-------------------|------|---------|------|
|                                                               |                                                            |                      |               | AM PEAK           |      | PM PEAK |      |
|                                                               |                                                            |                      |               | Enter             | Exit | Enter   | Exit |
| Residential                                                   | Multifamily Housing (Low-Rise) (LUC 220)                   | 100 du               | 572           | 10                | 30   | 14      | 8    |
| Retail                                                        | Retail (LUC 820)                                           | 14,400 sf            | 4,570         | 110               | 69   | 217     | 222  |
|                                                               | Supermarket (LUC 850)                                      | 800 sf               |               |                   |      |         |      |
| Services                                                      | Fast-Food Restaurant with Drive-Through (LUC 934)          | 3,000 sf             | 3,759         | 147               | 146  | 112     | 87   |
|                                                               | Gasoline/Service Station with Convenience Market (LUC 945) | 16 fueling positions |               |                   |      |         |      |
| Subtotal                                                      |                                                            |                      | 8,901         | 267               | 245  | 343     | 317  |
| Pass-by Trips                                                 |                                                            |                      | - 4,164       | - 81              | -81  | -144    | -144 |
| NEW TRIPS                                                     |                                                            |                      | 4,737         | 186               | 164  | 199     | 173  |
|                                                               |                                                            |                      |               | 350               |      | 372     |      |
| Note: Subtotal numbers do not include internal capture trips. |                                                            |                      |               |                   |      |         |      |

## 4.2 Trip Distribution and Traffic Assignment

A directional distribution of traffic generated by the proposed project was established based on the proposed accesses, existing roadway network, and the existing travel patterns developed from the existing peak hour traffic counts. As previously discussed, five vehicular access points to the development are planned to be provided – two to the north on Long Hollow Pike, two to the east on Big Station Camp Boulevard, and one cross-parcel accesses to the south by way of Breaking Pen Road. The westernmost site access on Long Hollow Pike is planned to be right-in, right-out. Additionally, as new developments are built to the west of the project site, one future cross-parcel access to the west is planned to be provided.

The directional distribution for the proposed development is shown in Figure 5. As shown in the figure, approximately 41% of the traffic generated by the development will be oriented to the south on Big Station Camp Boulevard, 35% to the east on Long Hollow Pike, 1% to the north on Carellton Drive, and 23% to the west on Long Hollow Pike. Based on this directional distribution, the project-generated traffic was assigned to the roadway network. The traffic assignment for the proposed development is shown in Figure 6.

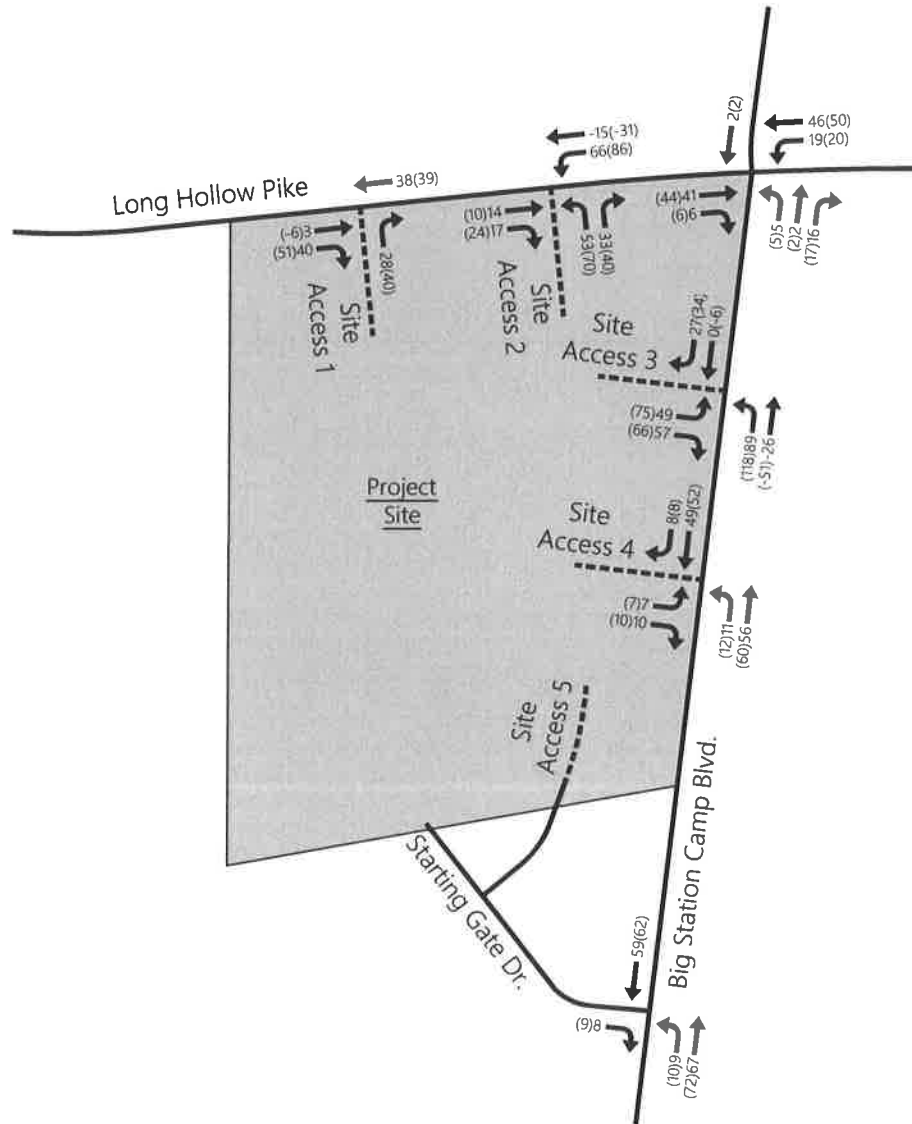


XX% - Enter  
(XX%) - Exit



Distribution of Peak Hour Traffic Volumes  
Generated by the Project Site  
(Not to Scale)

Figure 5.



XXX - AM Peak Hour  
Traffic Volumes  
(XXX) - PM Peak Hour  
Traffic Volumes



Total Assignment of Peak Hour Traffic Volumes  
Generated by the Project Site (Includes Pass-By)  
(Not to Scale)

Figure 6.

### 4.3 Capacity / Level of Service Analyses

The total site-generated traffic volumes were added to the background peak hour traffic volumes for the proposed development in order to obtain the total projected traffic volumes for the study intersections. Figure 7 presents the total projected AM and PM peak hour traffic volumes expected at the completion of the proposed development.

Capacity analyses were performed in order to determine the impact of the project on the study intersections. These capacity analyses were also used to evaluate the need for roadway and traffic control improvements at the intersections studied. The capacity calculations were performed according to the methods outlined in the *Highway Capacity Manual*, TRB 2010. The results of the capacity analyses for the projected conditions at the study area intersections are presented in Tables 8A and 8B. For the analyses, the intersection configurations were the same as the background conditions, with the following exceptions, as per the provided site plan:

- A channelized right-turn lane with approximately 120 feet of storage was assumed to be provided for the eastbound approach of Long Hollow Pike at Site Access 1.
- A right-turn lane with approximately 100 feet of storage was assumed to be provided for the eastbound approach of Long Hollow Pike at Site Access 2.
- A left-turn lane with approximately 190 feet of storage was assumed to be provided for the westbound approach of Long Hollow Pike at Site Access 2.
- A right-turn lane with approximately 120 feet of storage was assumed to be provided for the southbound approach of Big Station Camp Boulevard at Site Access 3.

All site access drives were treated as stop-controlled. Site Access 1, Site Access 2, and Site Access 3 were modeled to include one entering lane and two exiting lanes; one right-turn lane and one left-turn lane. Site Access 4 and Site Access 5 were modeled to include one entering lane and one shared left-turn/right-turn exiting lane.

As shown in Tables 8A and 8B, under the projected conditions the capacity analyses indicate that the study intersections are expected to generally operate at the same levels of service as under the background conditions, with one exception; the intersection of Long Hollow Pike and Big Station Camp Boulevard is expected to drop from LOS E to LOS F in the AM peak hour. Additionally, all critical turning movements at the proposed site accesses are expected to operate at LOS C or better with the following exceptions:

- The northbound left-turn approach of Site Access 2 at Long Hollow Pike is expected to operate at LOS F in the AM and PM peak hours.
- The eastbound left-turn approach of Site Access 3 at Big Station Camp Boulevard is expected to operate at LOS E in the AM and PM peak hours.

It should be noted that these performances are common for stop-controlled approaches to high volume roadways such as Long Hollow Pike and Big Station Camp Boulevard.

Based on the capacity analyses results for the intersection of Long Hollow Pike and Big Station Camp Boulevard, additional analyses were conducted to evaluate potential improvement options. It should be noted that these improvements are warranted primarily by the traffic volumes generated by the previously discussed background developments. The improvements described in detail below were adopted from the Big Station Camp Boulevard corridor study prepared for the City of Gallatin.

- Install an exclusive left-turn lane with approximately 300 feet of storage on the northbound approach of Big Station Camp Boulevard.
- Extend the eastbound right-turn lane on Long Hollow Pike to provide a total of 280 feet of storage. The Big Station Camp Boulevard corridor study prepared for the City of Gallatin recommended that the eastbound right-turn lane on Long Hollow Pike be extended to provide a total of 300 feet of storage. However, a 300-foot long storage length would require the relocation of proposed Site Access 2 farther to the west, which would lead to sight distance limitations for vehicles turning left out of this proposed site access. In order to ensure adequate sight distance for Site Access 2 as designated in the current site plan, the storage for the eastbound right-turn lane of Long Hollow Pike at Big Station Camp Boulevard should be increased from 145 feet to 280 feet as opposed to 300 feet.
- Restripe the southbound approach of Carellton Drive to include one left-turn lane and one shared through/right-turn lane.
- Modify the traffic signal to provide protected-permissive left-turn signal phasing for all approaches. Also provided a right-turn overlap phase for the eastbound approach of Long Hollow Pike.

The results of the capacity analyses for the improved intersections are presented in Tables 8A and 8B in **bold**. As shown, the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive improves to LOS D in both the AM and PM peak hours. Capacity analyses worksheets are included in Appendix E.

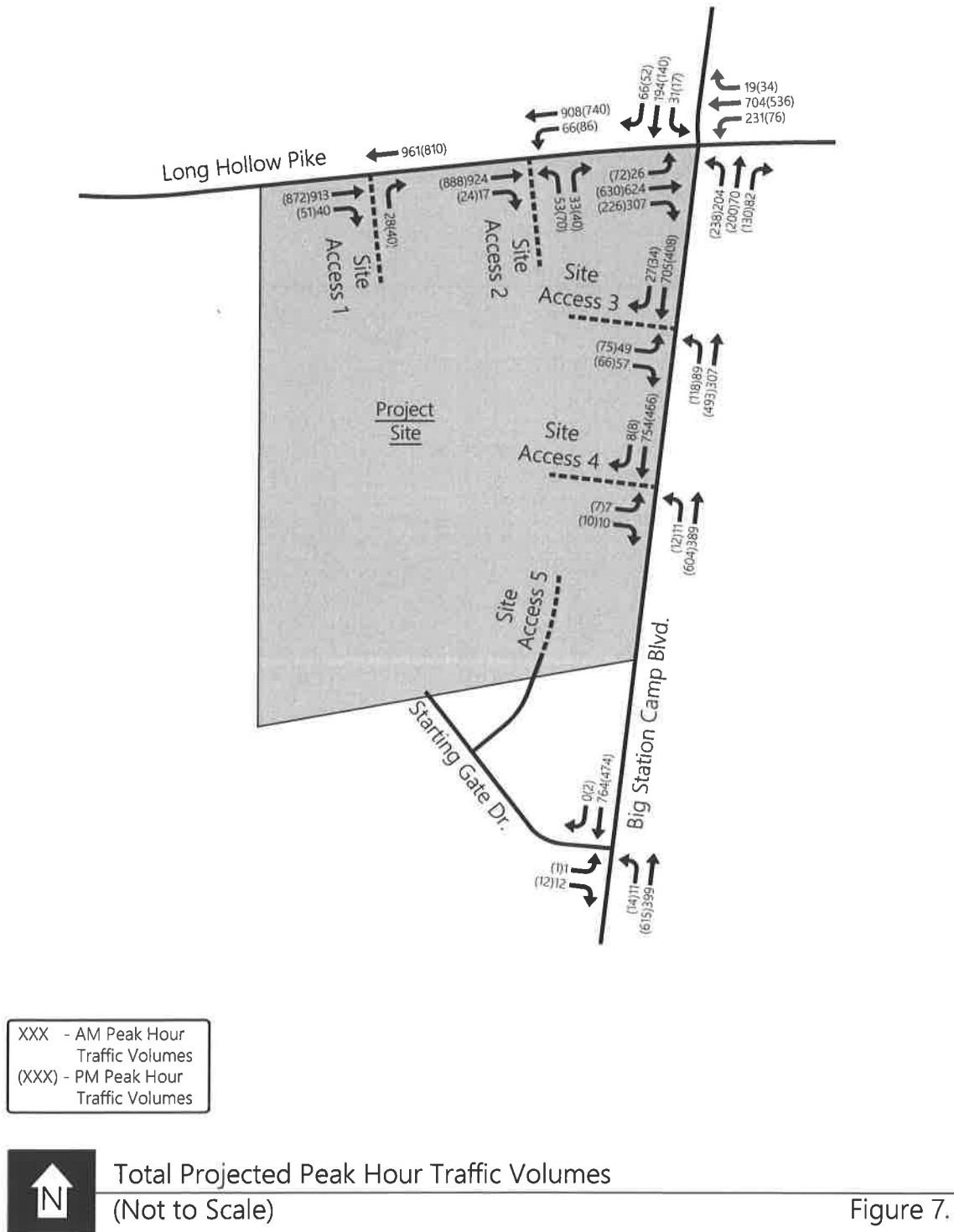


Figure 7.

TABLE 8A: PROJECTED AM PEAK HOUR LEVELS OF SERVICE

| INTERSECTION                                                           | TURNING MOVEMENT                | LEVEL OF SERVICE<br>(Average Approach Delay in sec/veh) |                  |                 |
|------------------------------------------------------------------------|---------------------------------|---------------------------------------------------------|------------------|-----------------|
|                                                                        |                                 | EXISTING<br>AM                                          | BACKGROUND<br>AM | PROJECTED<br>AM |
| Long Hollow Pike and<br>Big Station Camp Boulevard/<br>Carellton Drive | Overall<br>Intersection         | C (25.8)                                                | E (63.3)         | F (79.5)        |
|                                                                        | <b>Overall<br/>Intersection</b> | --                                                      | --               | <b>D (42.6)</b> |
| Big Station Camp Boulevard<br>and Starting Gate Drive                  | Northbound<br>Left-Turn         | A (8.5)                                                 | A (9.3)          | A (9.6)         |
|                                                                        | Eastbound<br>Approach           | B (12.4)                                                | C (15.5)         | C (16.0)        |
| Long Hollow Pike and<br>Site Access 1                                  | Northbound<br>Right-Turn        | --                                                      | --               | C (18.5)        |
| Long Hollow Pike and Site<br>Access 2                                  | Northbound<br>Left-Turn         | --                                                      | --               | F (>300)        |
|                                                                        | Northbound<br>Right-Turn        | --                                                      | --               | C (18.9)        |
|                                                                        | Westbound<br>Left-Turn          | --                                                      | --               | B (10.9)        |
| Big Station Camp Boulevard<br>and Site Access 3                        | Northbound<br>Left-Turn         | --                                                      | --               | A (9.9)         |
|                                                                        | Eastbound<br>Left-Turn          | --                                                      | --               | E (40.6)        |
|                                                                        | Eastbound<br>Right-Turn         | --                                                      | --               | C (15.5)        |
| Big Station Camp Boulevard<br>and Site Access 4                        | Northbound<br>Left-Turn         | --                                                      | --               | A (9.6)         |
|                                                                        | Eastbound<br>Approach           | --                                                      | --               | C (20.0)        |

*Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.*



TABLE 8B: PROJECTED PM PEAK HOUR LEVELS OF SERVICE

| INTERSECTION                                                     | TURNING MOVEMENT            | LEVEL OF SERVICE<br>(Average Approach Delay in sec/veh) |               |                 |
|------------------------------------------------------------------|-----------------------------|---------------------------------------------------------|---------------|-----------------|
|                                                                  |                             | EXISTING PM                                             | BACKGROUND PM | PROJECTED PM    |
| Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive | Overall Intersection        | C (28.3)                                                | E (55.2)      | E (69.7)        |
|                                                                  | <b>Overall Intersection</b> | --                                                      | --            | <b>D (35.4)</b> |
| Big Station Camp Boulevard and Starting Gate Drive               | Northbound Left-Turn        | A (7.8)                                                 | A (8.3)       | A (8.5)         |
|                                                                  | Eastbound Approach          | B (10.7)                                                | B (13.1)      | B (12.6)        |
| Long Hollow Pike and Site Access 1                               | Northbound Right-Turn       | --                                                      | --            | C (18.2)        |
| Long Hollow Pike and Site Access 2                               | Northbound Left-Turn        | --                                                      | --            | F (>300)        |
|                                                                  | Northbound Right-Turn       | --                                                      | --            | C (18.5)        |
|                                                                  | Westbound Left-Turn         | --                                                      | --            | B (11.0)        |
| Big Station Camp Boulevard and Site Access 3                     | Northbound Left-Turn        | --                                                      | --            | A (8.8)         |
|                                                                  | Eastbound Left-Turn         | --                                                      | --            | E (47.8)        |
|                                                                  | Eastbound Right-Turn        | --                                                      | --            | B (11.6)        |
| Big Station Camp Boulevard and Site Access 4                     | Northbound Left-Turn        | --                                                      | --            | A (8.5)         |
|                                                                  | Eastbound Approach          | --                                                      | --            | C (16.8)        |

*Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.*

## 5. ANALYSIS OF SITE PLAN

### 5.1 Site Access Review

According to information provided by the development team, the development is planned to consist of approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions. Five vehicular access points to the development are planned to be provided – two to the north on Long Hollow Pike, two to the east on Big Station Camp Boulevard, and one cross-parcel accesses to the south by way of Breaking Pen Road. Additionally, as new developments are built to the west of the project site, one future cross-parcel access to the west is planned to be provided. A description of each proposed access follows:

- Site Access 1 is planned to be right-in, right-out. Additionally, a channelized right-turn lane with approximately 120 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 1.
- Site Access 2 is planned to include one entering lane and two exiting lanes; one right-turn lane and one left-turn lane. Additionally, a right-turn lane with approximately 100 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 2 and a left-turn lane with approximately 190 feet of storage is planned to be installed on the westbound approach of Long Hollow Pike at Site Access 2.
- Site Access 3 is planned to include one entering lane and two existing lanes; one right-turn lane and one left-turn lane. Additionally, a right-turn lane with approximately 120 feet of storage is planned to be installed on the southbound approach of Big Station Camp Boulevard at Site Access 3.
- Site Access 4 and Site Access 5, which are intended for the exclusive use of residents of the development, are planned to include one entering lane and one exiting lane.

### 5.2 Sight Distance Analyses

Sight distance measurements were conducted at the proposed site accesses to determine if adequate sight distance would be available for motorists making left or right turns from the proposed site accesses. For 50 mph, the speed limit on Long Hollow Pike, the guidelines from *A Policy on Geometric Design of Highways and Streets*, by the American Association of State Highway and Transportation Officials (AASHTO), call for a minimum stopping sight distance of 425 feet as a design value. This is the distance required for a motorist to detect an object in the roadway necessitating a stop

and be able to stop before reaching the object. For 45 mph, the speed limit on Big Station Camp Boulevard, a minimum stopping sight distance of 360 feet is called for as a design value.

Subsequently, AASHTO also provides minimum design values for intersection sight distance. For example, for a speed of 50 miles per hour, the design value for the intersection sight distance for a motorist turning right from a stop is 480 feet. Therefore, it is desirable to provide a minimum of 480 feet of sight distance looking west from the proposed site accesses turning onto Long Hollow Pike. For a speed of 50 miles per hour, the design value for the intersection sight distance for a motorist turning left from a stop is 555 feet. Therefore, it is desirable to provide a minimum of 555 feet of sight distance looking east from the site accesses turning onto Long Hollow Pike.

Additionally, for a speed of 45 miles per hour, the design value for the intersection sight distance for a motorist turning right from a stop is 430 feet. Therefore, it is desirable to provide a minimum of 430 feet of sight distance looking north from the proposed site accesses turning onto Big Station Camp Boulevard. For a speed of 45 miles per hour, the design value for the intersection sight distance for a motorist turning left from a stop is 500 feet. Therefore, it is desirable to provide a minimum of 500 feet of sight distance looking south from the site accesses turning onto Big Station Camp Boulevard.

Table 9 summarizes the results of the sight distance measurements at the proposed sight accesses.

**TABLE 9: INTERSECTION SIGHT DISTANCE ANALYSES**

| INTERSECTION                                           | STOPPING<br>SIGHT<br>DISTANCE<br>DESIGN | INTERSECTION SIGHT<br>DISTANCE FOR LEFT<br>TURNS FROM STOP |           | INTERSECTION SIGHT<br>DISTANCE FOR RIGHT<br>TURNS FROM STOP |           |
|--------------------------------------------------------|-----------------------------------------|------------------------------------------------------------|-----------|-------------------------------------------------------------|-----------|
|                                                        |                                         | DESIGN                                                     | AVAILABLE | DESIGN                                                      | AVAILABLE |
| Site Access 1 and<br>Long Hollow Pike                  | 425'                                    | --                                                         | --        | 480'                                                        | 500'      |
| Site Access 2 and<br>Long Hollow Pike                  |                                         | 555'                                                       | 450'*     | 480'                                                        | 500'      |
| Site Access 3 and<br>Big Station Camp Boulevard        | 360'                                    | 500'                                                       | 465'      | 430'                                                        | 270'*     |
| Site Access 4 and<br>Big Station Camp Boulevard        |                                         | 500'                                                       | >500'     | 430'                                                        | 465'      |
| *Approximate distance to adjacent traffic signal heads |                                         |                                                            |           |                                                             |           |

Adequate sight distance is available for turning right out of Site Access 1. Approximately 500 feet of sight distance is available looking west, which exceeds the design value of 480 feet for right turns.

Adequate sight distance is available for turning right and left out of Site Access 2. With a sight distance of 450 feet looking east, a clear view of the intersection of Big Station Camp Boulevard and Long Hollow Pike, approximately 350 feet away, is provided. Approximately 500 feet of sight distance is available looking west, which exceeds the design value of 480 feet for right turns.

Adequate sight distance is available for turning right out of Site Access 3. A clear view is provided looking to the north of the intersection of Big Station Camp Boulevard and Long Hollow Pike, approximately 270 feet away. Due to the vertical curvature of Big Station Camp Boulevard, the available intersection sight distance for turning left out of the Site Access 3 does not meet design standards. Approximately 465 feet of sight distance is available looking south, which falls 35 feet below the design value of 500 feet for left turns. In order to enhance the sight distance at this access, the location of Site Access 3 can either be shifted or the driveway grade can be raised until the required sight distance is met for left-turning vehicles exiting the development.

Adequate sight distance is available for turning right and left out of Site Access 4. Over 500 feet of sight distance is available looking south, which exceeds the design value of 500 feet for left turns. Approximately 465 feet of sight distance is available looking north, which exceeds the design value of 430 feet for right turns.

### 5.3 Turn Lane Warrant Analysis

The westbound approach of Long Hollow Pike was evaluated for the need to provide a left-turn lane at Site Access 2 based on the projected traffic volumes. This analysis was based on the procedures outlined in M.D. Harmelink's *Volume Warrants for Left-Turn Storage Lanes at Unsignalized Intersections*. The results on the analysis indicate that a left-turn lane is warranted at Site Access 2 on Long Hollow Pike during the AM and PM peak hours. It should be noted that the speed limit on Long Hollow Pike is under consideration to be lowered to 40 mph. The results on the analysis indicate that a left-turn lane is warranted at Site Access 2 on Long Hollow Pike even with the reduced speed limit. The left-turn lane analyses are included in Appendix I.

The northbound approach of the proposed Site Access 2 and the eastbound approach of Site Access 3 were evaluated for the need to provide a two-lane approach based on the projected traffic volumes during the AM and PM peak hours. According to

*Evaluating Intersection Improvements: An Engineering Study Guide* (NCHRP 457) Figure 4-2, a two-lane approach is warranted for the northbound approach of Site access 2, but not for the eastbound approach of Site Access 3. Despite these results, a two-lane approach should still be considered for both Site Access 2 and Site Access 3 in order to improve the levels of service experienced by right-turning vehicles exiting the development. The turn lane analyses are included in Appendix I.

#### 5.4 Queue Analyses

In addition to the capacity analyses at the study intersections, the 95<sup>th</sup> percentile queue lengths during the AM and PM peak hours were evaluated for all study intersections. Table 10 shows the queues for the critical movements at the intersection of Long Hollow Pike and Big Station Camp Boulevard under projected conditions. Analysis worksheets for all study intersections are included in Appendix E.

**TABLE 10: PROJECTED PEAK HOUR QUEUES**

| INTERSECTION                                                                         | TURNING MOVEMENT          | AVAILABLE STORAGE | 95 <sup>TH</sup> PERCENTILE QUEUE LENGTH |      |
|--------------------------------------------------------------------------------------|---------------------------|-------------------|------------------------------------------|------|
|                                                                                      |                           |                   | AM                                       | PM   |
| Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive                     | Eastbound Left-Turn       | 90'               | 41'                                      | 90'  |
|                                                                                      | Eastbound Right-Turn      | 145'              | 319'                                     | 207' |
|                                                                                      | Westbound Left-Turn       | 100'              | 490'                                     | 95'  |
|                                                                                      | Northbound Thru/Left-Turn | 130'              | 367'                                     | 712' |
|                                                                                      | Northbound Right-Turn     | --                | 39'                                      | 59'  |
| Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive (With Improvements) | Eastbound Left-Turn       | 90'               | 26'                                      | 58'  |
|                                                                                      | Eastbound Right-Turn      | 280'              | 108'                                     | 28'  |
|                                                                                      | Westbound Left-Turn       | 100'              | 246'                                     | 61'  |
|                                                                                      | Northbound Left-Turn      | 300'              | 276'                                     | 279' |
|                                                                                      | Northbound Through        | --                | 101'                                     | 254' |
|                                                                                      | Northbound Right-Turn     | 100'              | 35'                                      | 59'  |

## 5.5 TDOT Driveway Standards

TDOT permits access to state highways according to the standards outlined in their *Manual for Constructing Driveway Entrances on State Highways*, 2015 Edition. The site accesses on Long Hollow Pike (State Route 174) were evaluated according to these standards.

According to Section 5.1.4, a two-way commercial driveway has a minimum width of 24 feet and a maximum width of 40 feet. The maximum width is permitted to increase to a maximum of 50 feet if the development is expected to serve a substantial volume of heavy vehicles.

According to Section 5.1.5, access driveways must have a minimum of 150 feet of corner clearance to an intersection of an arterial (Long Hollow Pike) and a collector (Big Station Camp Boulevard). According to the developer's site plan, the distance between Site Access 2 and the state Right-of-Way line is approximately 350 feet.

## 6. CONCLUSIONS AND RECOMMENDATIONS

The analyses presented in this study indicate that the impacts of the proposed project on the existing street network will be manageable by providing the recommendations below. These specific recommendations will provide safe and efficient traffic operations within the study area following the completion of the proposed project. The recommendations are as follows:

The following improvements for the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive were adopted from the Big Station Camp Boulevard corridor study prepared for the City of Gallatin:

- Install an exclusive left-turn lane with approximately 300 feet of storage on the northbound approach of Big Station Camp Boulevard.
- Extend the eastbound right-turn lane on Long Hollow Pike to provide a total of 280 feet of storage. The Big Station Camp Boulevard corridor study prepared for the City of Gallatin recommended that the eastbound right-turn lane on Long Hollow Pike be extended to provide a total of 300 feet of storage. However, a 300-foot long storage length would require the relocation of proposed Site Access 2 farther to the west, which would lead to sight distance limitations for vehicles turning left out of this proposed site access. In order to ensure adequate sight distance for Site Access 2 as designated in the current site plan, the storage for the eastbound right-turn lane of Long Hollow Pike at Big Station Camp Boulevard should be increased from 145 feet to 280 feet as opposed to 300 feet. According to the evaluation of the 95<sup>th</sup> percentile queue lengths for the intersection of Long Hollow Pike and Big Station Camp Boulevard under projected conditions with improvements, providing 280 feet of storage for the eastbound right-turn lane of Long Hollow Pike will be more than sufficient to accommodate traffic demand during both the AM and PM peak hours.
- Restripe the southbound approach of Carellton Drive to include one left-turn lane and one shared through/right-turn lane.
- Modify the traffic signal to provide protected-permissive left-turn signal phasing for all approaches. Also, provide a right-turn overlap phase for the eastbound approach of Long Hollow Pike.

The following improvements should be provided in conjunction with the development of this project:

Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive

- Due to the potential for pedestrian activity between the retail portion of the proposed development and the Carellton development to the north, it is recommended to provide a pedestrian crosswalk and pedestrian signals with countdown timers for movements across the west leg of Long Hollow Pike.

Long Hollow Pike and Site Access 1 (Western Access)

- The proposed connection to Long Hollow Pike should be designed as a right-in, right-out access with one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A channelized right-turn lane with approximately 120 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 1.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, adequate intersection sight distance is available for turning right out of the proposed site access.

Long Hollow Pike and Site Access 2 (Eastern Access)

- Based on the results of a left-turn lane analysis, a westbound left-turn lane on Long Hollow Pike is warranted under projected conditions.
  - It should be noted that the speed limit on Long Hollow Pike is under consideration to be lowered to 40 mph. The results of the analysis indicate that a left-turn lane is warranted at the site access even with the reduced speed limit.
- A right-turn lane with approximately 100 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 2 and a left-turn lane with approximately 190 feet of storage is planned to be installed on the westbound approach of Long Hollow Pike at Site Access 2.
- The proposed connection to Long Hollow Pike should be designed to include one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will



be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.

- According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

#### Big Station Camp Boulevard and Site Access 3 (Northern Access)

- The proposed connection of Site Access 3 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A right-turn lane with approximately 120 feet of storage is planned to be installed on the southbound approach of Big Station Camp Boulevard at Site Access 3.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, while adequate stopping sight distance is available, adequate intersection sight distance is only available for turning right out of the proposed site access. The available sight distance for turning left out of the proposed site access falls 35 feet below the design value. In order to enhance the sight distance for vehicles turning left out of Site Access 3, its location should either be shifted or its grade should be raised until sight distance requirements are met.

#### Big Station Camp Boulevard and Site Access 4 (Southern Access Serving the Residential Portion of the Site)

- The proposed connection of Site Access 4 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
  - According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Trip Generation and Big Station Camp Corridor Roadway Fees

- The Big Station Camp Corridor Roadway Fee program is based on the number of peak hour trips generated by a development. Since the analyses presented in this study are based on trip generation rates from a national dataset, additional analysis may be performed after the completion and occupation of each development phase to determine the actual peak hour trips generated, as they may be less than those estimated in this study.
- Additionally, the construction of the recommendations presented above should be considered against the City of Gallatin's impact fee program for this corridor. In some instances, constructed improvements that would need to be rebuilt in the future may not best serve the adjacent roadway network.

In summary, based on the analyses conducted, no further recommendations are presented for the proposed development.

## APPENDICES

APPENDIX A  
PRELIMINARY SITE PLAN

APPENDIX B  
DETAILED TURNING MOVEMENT COUNTS

APPENDIX C  
TDOT COUNT DATA

APPENDIX D  
GALLATIN SIGNAL TIMING

APPENDIX E  
CAPACITY ANALYSIS

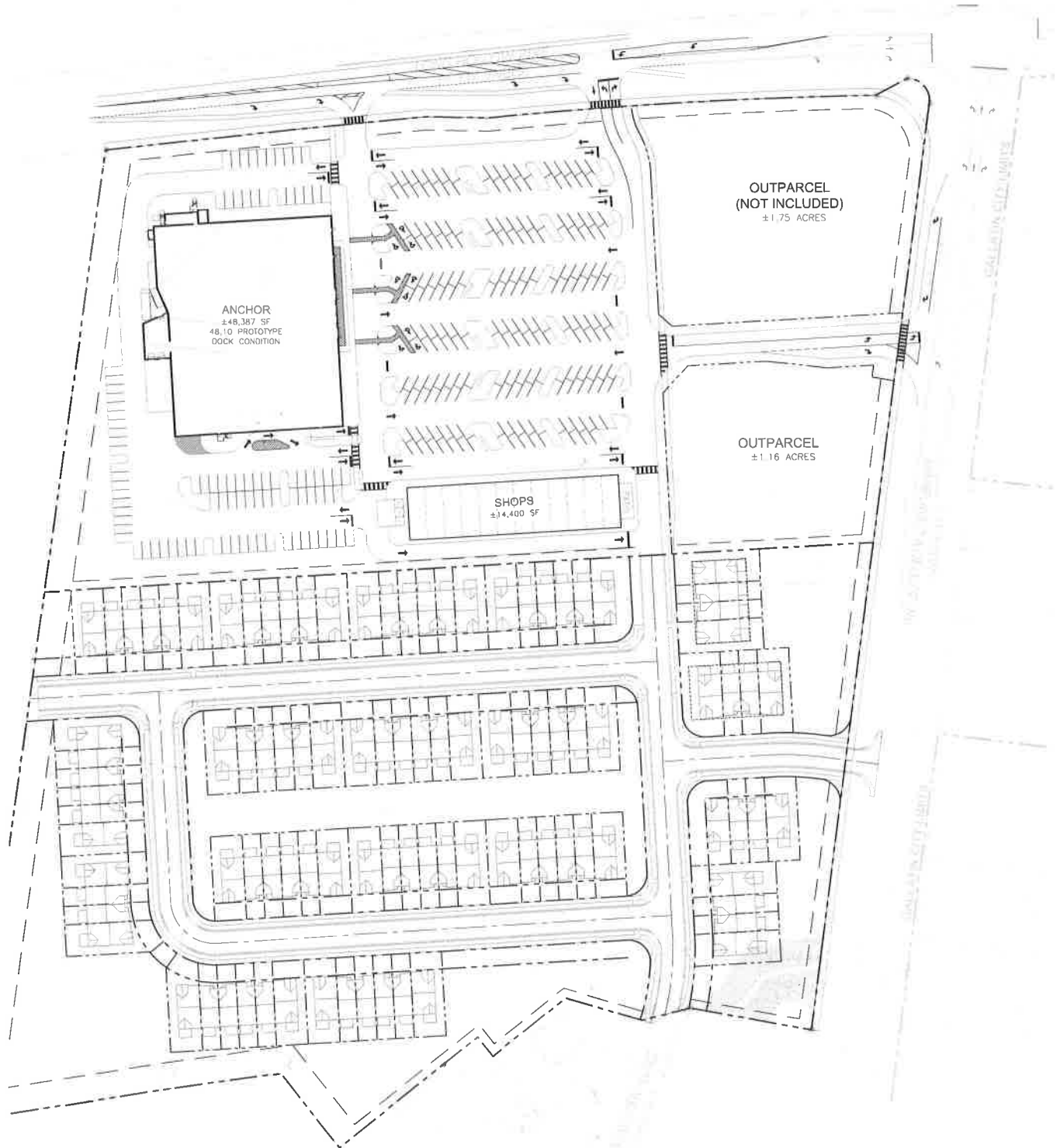
APPENDIX F  
BACKGROUND DEVELOPMENT TRAFFIC ASSIGNMENT FIGURES

APPENDIX G  
TRIP GENERATION CALCULATIONS

APPENDIX H  
PASS-BY DISTRIBUTION AND ASSIGNMENT

APPENDIX I  
TURN LANE WARRANT ANALYSES

APPENDIX A  
PRELIMINARY SITE PLAN



**Exhibit '3' – List and Cost of Offsite Improvements to be constructed by the Property Owner/Developer**

|                                                                           |                         |
|---------------------------------------------------------------------------|-------------------------|
| 520' LEFT TURN LANE ON BIG STATION CAMP:                                  | <u>\$200,540</u>        |
| EXTENSION OF EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE:               | <u>\$48,959</u>         |
| NEW EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE TO SITE ACCESS 1:       | <u>\$72,219</u>         |
| NEW EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE TO SITE ACCESS 2:       | <u>\$58,162</u>         |
| NEW SOUTHBOUND RIGHT TURN LANE ON BIG STATION CAMP BLVD TO SITE ACCESS 3: | <u>\$71,024</u>         |
| NEW WESTBOUND LEFT TURN LANE ON LONG HOLLOW PIKE TO SITE ACCESS 2:        | <u>\$115,434</u>        |
| SIGNAL / INTERSECTION IMPROVEMENTS COSTS:                                 | <u>\$422,785</u>        |
| Total Construction:                                                       | <u>\$989,123</u>        |
| Design:                                                                   | <u>\$26,000</u>         |
| Permit cost (TDOT):                                                       | <u>\$20,500</u>         |
| ROW Dedication (0.04ac):                                                  | <u>\$29,714.28</u>      |
| <b>TOTAL</b>                                                              | <b>- \$1,035,623.00</b> |

#### **Exhibit '4' – Timing and Allocation for Property Owner/Developer Payments**

1. Development of any parcel in the Commercial Project portion of the Development causes the need for the Transportation Corridor Improvements.
2. Therefore prior to the issuance of any certificate of occupancy for any building within the Commercial Project portion of the Development, the Transportation Corridor Improvements shall be completed.
3. The Property Owner/Developer shall place the Surety with the City as stated in this Agreement and TDOT as required immediately preceding commencement of construction for the Transportation Corridor Improvements and prior to pulling any permits in connection therewith. Notwithstanding any provision in the Agreement to the contrary, the City expressly agrees that that Property Owner/Developer may submit a ROW Excavation Surety to secure applicable permits for construction in City ROW in lieu of the Surety listed in Paragraph 4A of this Agreement (notwithstanding that the surety amounts may be different). In the event, the Property Owner/Developer has not completed the Transportation Corridor Improvements prior to issuance of any vertical building permit for the Commercial Project, Property Owner/Developer shall submit applicable Surety as required to satisfy the requirements of Paragraph 4A related to any remaining uncompleted Transportation Corridor Improvements, if any.
4. It shall be the Property Owner/Developer's responsibility to complete these improvements prior to the issuance of any certificate of occupancy for any building within the Commercial Project portion of the Development.
5. In no event shall any subdivision, building permit or certificate of occupancy on the Residential Project portion of the Development be conditioned, delayed or withheld prior to completion of the Transportation Corridor Improvements.
6. As stated in this Agreement, the attached traffic study and the approved plans improvements cost for these improvements will exceed the PM Peak Fees.
7. Therefore, completion of the Transportation Corridor Improvements will satisfy and fulfill any Pro-Rata Share Payment requirement

**Exhibit '5' to Pro-Rata Share Agreement  
Joinder Agreement for Transferees of the Property Owner/Developer**

The undersigned, in connection with the transfer of the real property / lots described below, hereby agrees to become a party to that certain Big Station Camp Boulevard Corridor Transportation Improvements Pro-Rata Share Agreement (the "Agreement"). Capitalized terms used but not defined herein shall have the meaning ascribed to such term in the Agreement.

**RECITALS:**

**WHEREAS**, Newmans Crossing (Property Owner/ Developer) and the City have contracted for the security for, and the payment of, the Pro-Rata Share Payments pursuant to the Agreement;

**WHEREAS**, the Property Owner/Developer has sold a portion of the Development, as evidenced by that certain deed of record in Record Book \_\_\_\_\_, page \_\_\_\_\_, in the Register's Office for Sumner County, Tennessee (the "Transferred Property");

**WHEREAS**, as a condition to the development and construction of the Transferred Property, the City requires delivery of this Joinder and its accompanying Exhibit '5-1;'

**NOW, THEREFORE**, in consideration of the transfer of the Transferred Property and payment of Pro-Rata Share Payments by the Property Owner/Developer and the undersigned, the undersigned and the City agree as follows:

1. The undersigned agrees to be bound by the terms and provisions of the Agreement as they pertain only to the Transferred Property. The undersigned shall perform all obligations of the Property Owner/Developer related to the development and construction of the Transferred Property.
2. Attached hereto as Exhibit 5-1 is a schedule for the Surety and Pro-Rata Share Payments required for the Transferred Property.
3. The undersigned shall indemnify and hold the Property Owner/Developer harmless for any and all obligations required by the Agreement for the Transferred Property.
4. The City agrees to release and remise the Property Owner/Developer for its obligations under the Agreement pertaining only to the Transferred Property, as reflected by Exhibit '5-1.'
5. This Joinder may be executed in any number of counterparts (including telecopied or email .pdf signatures), each of which when so executed and delivered shall be deemed an original, and such counterparts together shall constitute one instrument. This Joinder shall take effect upon its execution by the City.



**IN WITNESS WHEREOF**, the parties have agreed as set forth above.

**TRANSFeree**

BY: \_\_\_\_\_  
ITS: \_\_\_\_\_

**ACKNOWLEDGED AND AGREED:**

**CITY OF GALLATIN**

BY: \_\_\_\_\_  
PAIGE BROWN, MAYOR

**CITY OF GALLATIN  
COUNCIL COMMITTEE AGENDA**

June 9, 2020

**DEPARTMENT:    Engineering**

**AGENDA # 3**

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**SUBJECT:**

**BIG STATION CAMP BOULEVARD CORRIDOR TRANSPORTATION IMPROVEMENTS**

**SUMMARY:**

Resolution authorizing Mayor to execute Big Station Camp Boulevard Corridor Transportation Improvement District Pro-Rata Share Agreement with TNHomesSites.com and Tenn Properties Newmans Crossing GP for the Newmans Crossing Development

**RECOMMENDATION:**

**ATTACHMENT:**

☒ Resolution  
☐ Ordinance

☐ Correspondence  
☐ Contract

☐ Bid Tabulation  
☒ Other

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Approved ☒  
Rejected ☐  
Deferred ☐

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**Notes:**